Tulsa Metropolitan Area Planning Commission

MPD-6 Staff Report

Hearing Date: February 4, 2026 (Continued from 1/7/2026 and 11/5/2025)

Prepared by: Nathan Foster
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918-596-7609

Owner and Applicant Information

Applicant: Fair Oaks Ranch, LLC & ROB-WAL, LLC

Property Owner: Same as applicant.

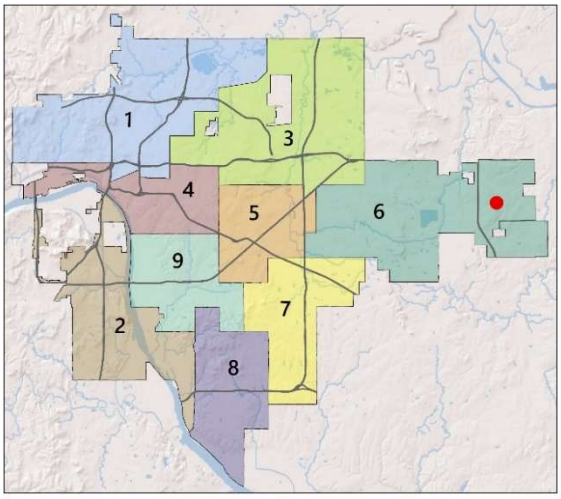
Property Location

Multiple properties bounded by U.S. Highway 412, East 41st Street South, South 193rd East Avenue, and South 273rd East Avenue

Tract Size: ±6,229 acres

Location within the City of Tulsa

(shown with City Council districts)



Elected Representatives

City Council: District 6, Christian Bengel
County Commission: Wagoner County District 1, James Hanning

Public Notice Required

Newspaper Notice – min. 20 days in advance
Mailed Notice to 300' radius – min. 20 days in advance
Posted Sign – min. 20 days in advance

Staff Recommendation

Staff recommends approval.

Request Summary

Rezone subject properties from AG to MPD-6 to permit new development consisting of mixed-use, commercial, residential, and industrial uses.

Zoning

Existing Zoning: Agriculture (AG)

Existing Overlays: None

Proposed Zoning: Master Planned Development 6 (MPD-6)

Use

Current Use: Vacant

Proposed Use: Mixed-Use/Residential/Commercial/Industrial

Comprehensive Plan Considerations

Land Use

Land Use Plan: Regional Center, Multiple Use, Employment, Local Center

Small Area Plans: None

Development Era: Future Growth

Transportation

Major Street & Highway Plan: Multiple MSHP designations throughout the property.

planitulsa Street Type: N/A

Transit: N/A

Existing Bike/Ped Facilities: None

Planned Bike/Ped Facilities:
Creek Turnpike – Shared Use Path
East 21st Street – On-street signed route

Environment

Flood Area: City of Tulsa Regulatory Floodplain, FEMA

Tree Canopy Coverage: 30-50%

Parks & Open Space: N/A

Detailed Staff Recommendation

The applicant is proposing a master planned development (MPD) covering the subject properties under application. MPDs are regulated by Chapter 25 of the Tulsa Zoning Code and are intended to accommodate developments that would be difficult or impossible to carry out under otherwise applicable zoning regulations. Provisions of the MPD must be consistent with the city's adopted plans.

If approved, MPDs adopt all zoning regulations for included properties. Unlike other development plans, MPDs do not include base zoning districts. All development standards are outlined in the MPD and are subject to the review and approval procedures of Section 70.040 of the Tulsa Zoning Code. TMAPC is authorized to approve minor amendments to development plans while major amendments require review by TMAPC and approval by the Tulsa City Council.

MPD-6 covers approximately 6,229 acres of property divided into 6 separate development areas which regulate uses, signage, minimum lot requirements, and building regulations. General regulations for open space, parking, landscaping and screening are also included.

The proposed development standards in MPD-6 as outlined below and in the applicant's text and exhibits are consistent with the land use designations and the recommendations of the Tulsa Comprehensive Plan. MPD-6 is consistent with the purpose and intent of the master planned development district and meets the following objectives of the Tulsa Zoning Code:

1. Variety in housing types and sizes to accommodate households of all ages, sizes, incomes, and lifestyle choices.
2. Compact, mixed-use development patterns where residential, commercial, employment, civic, and open space areas are located in close proximity to one another.
3. A transportation network designed to accommodate safe and efficient motorized and non-motorized travel.
4. Direct, safe and convenient non-motorized travel routes within the boundaries of the development site, as well as connections to abutting properties.
5. Buildings and other improvements that by their arrangement, massing, design, character and site design elements establish a quality, livable environment.

With consideration given to the factors listed herein, staff recommends **approval** of the application subject to the MPD-6 development standards outlined below and in the applicant's text and exhibits attached to the staff recommendation.

MPD-6 Development Standards

Property included within the boundaries of MPD-6 will be subject to the regulations of the MPD-6 development plan. Standards for MPD-6 are found in the applicant's text and exhibits which are attached to the staff recommendation. References in this section refer to the Fair Oaks Master Planned Development District document attached as an exhibit.

MPD-6 consists of 6 separate development areas:

1. Regional Centers
2. Town Centers
3. Town Center Neighborhoods
4. Village Centers
5. Neighborhood Centers
6. Business and Industrial Centers

Each development area is subject to the use restrictions and additional regulations of the Fair Oaks Master Planned Development District.

In accordance with Chapter 25 of the Tulsa Zoning Code, the following sections of the Fair Oaks Master Planned Development District provide the development standards for MPD-6.

Section 3 – Administration
Section 4 – Master Development Plan
Section 5 – Site Standards
Section 6 – Development Area Standards
Section 7 – Transportation Development Standards

MPD-6 does not waive, vary, or modify City of Tulsa requirements for public infrastructure which will be reviewed upon the submittal of infrastructure development plans. Section 7 of the Fair Oaks Master Planned Development District will guide future subdivision development by providing recommendations on the locations and types of public streets, alleys, and pedestrian infrastructure. The design elements of streets must meet or exceed the minimum design criteria, standards and/or regulations of the City of Tulsa, Oklahoma Department of Transportation (ODOT), Federal Highway Administration (FHWA), Manual on Uniform Traffic Control Devices (MUTCD), Public Right-of-Way Accessibility Guidelines (PROWAG), American Association of State Highway and Transportation Officials (AASHTO) Geometric Design and Roadside Design Guide, and Oklahoma Department of Environmental Quality (ODEQ).

In areas where the MPD is silent, provisions of the Tulsa Zoning Code will apply.

Comprehensive Plan Considerations

Land Use Plan

The subject properties contain multiple land use designations.

Regional Centers are defined by existing regional trip generators, in contrast to Local Centers. These centers should be the most connected land use pockets outside of downtown for public transit access and high-capacity arterial streets. New regional trip generators should be permitted in the area with special consideration given to transportation access and circulation. Regional trip generators include universities, malls, large medical campuses, casinos, big-box shopping centers, and very large churches.

Multiple Use areas are mostly commercial or retail uses, which include restaurants, shops, services, and smaller format employment uses. This land use designation is most common in areas of the city from earlier development patterns, with Local Centers being more commonplace in newer parts of the city. For single properties that are commercial but surrounded by Neighborhood, Multiple Use is the preferred designation.

Local Centers serve the daily needs of those in the surrounding neighborhoods. This designation implies that the center generally does not serve an area beyond the nearby neighborhoods. Typical uses include commercial or retail uses that serve the daily needs of nearby residents. In order to introduce a regional trip generator, the entire local center designation should be amended to be Regional Center with significant input from all affected properties and nearby neighborhoods.

Employment is intended to accommodate offices, warehousing and storage, manufacturing and assembly, and industrial processes. The Industrial Site Suitability map corresponds to the Employment land use designation and indicates where uses that are potentially incompatible with sensitive land uses are best suited to locate. This directs industrial uses to particular areas of the city while discouraging industrial in close proximity to Neighborhood areas.

Small Area Plans
The subject properties are not located within any adopted small area plans.

Development Era
The subject property is designated as a future growth area. These areas of the city have yet to be developed beyond agricultural uses, and they present opportunities to ensure the pattern of development is efficient and fiscally responsible. These areas typically do not have subdivision streets or connectivity beyond the mile-by-mile grid, have poor public service distribution (fire, police, transit, etc.) and lack utility infrastructure (water, sewer, broadband, etc.) Some areas also include exposed bedrock and/or extreme slopes. Priorities in these areas include ensuring the ability to provide adequate public services, the implementation of planned streets in the Major Street and Highway Plan, land use planning to establish frameworks for decision making, and conservation of natural areas.

Transportation
Major Street & Highway Plan: There are multiple MSHP designations throughout the subject properties. The transportation plan included with the MPD aligns with the recommendations of the MSHP. Right-of-way dedications consistent with the recommendations of the MSHP will be required to be made as development occurs on the subject property.

Comprehensive Plan Street Designation: N/A

Transit: N/A

Existing Bike/Ped Facilities: None

Planned Bike/Ped Facilities: A shared use trail is planned along the west side of the Creek Turnpike corridor. East 21st Street west of the Creek Turnpike is planned as an on-street, signed bicycle route.

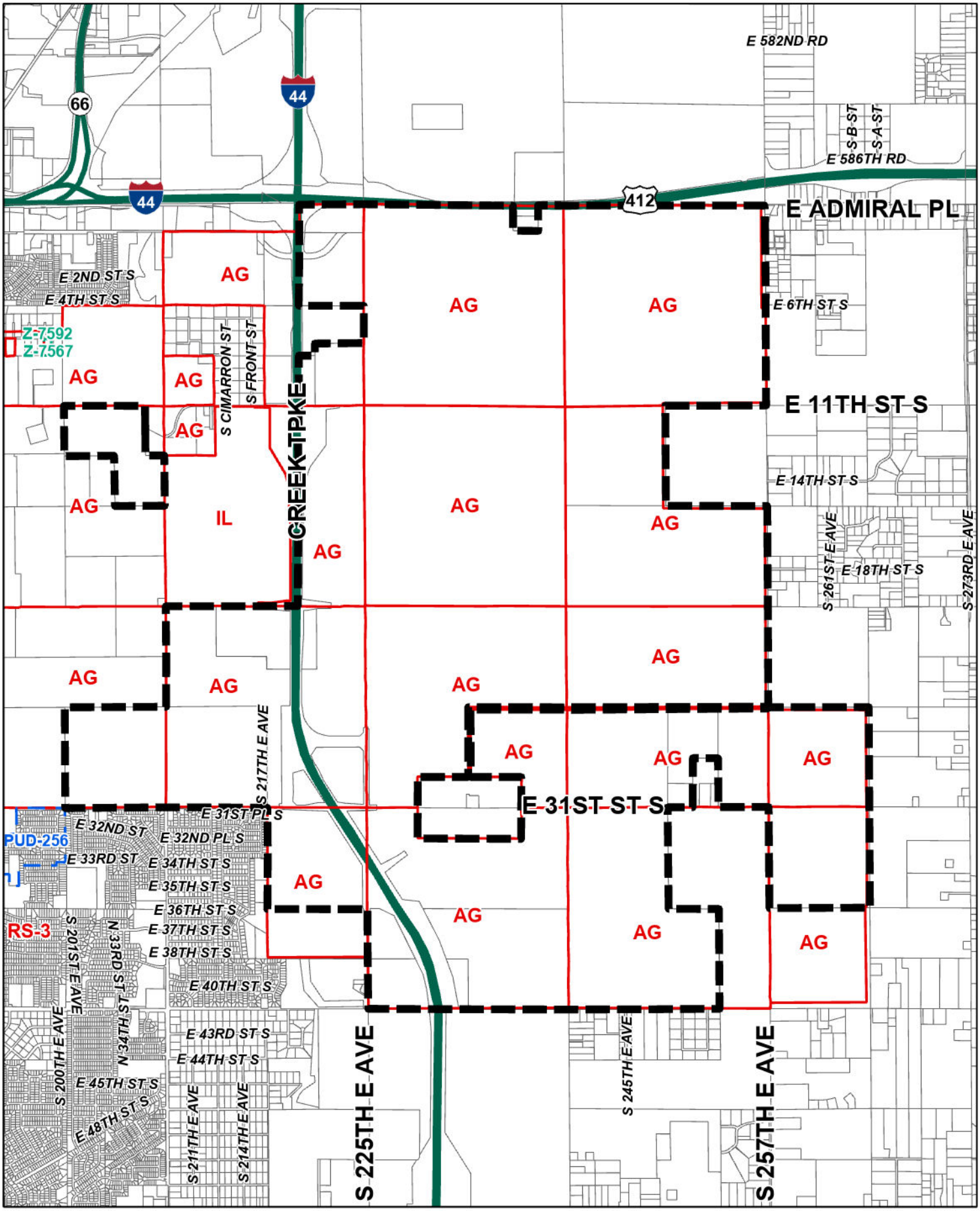
Environmental Considerations
Flood Area: The subject properties contain several areas of designated floodplain. Floodplain areas are contained within proposed open space areas of the MPD. Any proposed development in designated floodplain areas will be required to comply with development restrictions applied to those areas by City of Tulsa ordinances.

Tree Canopy Coverage: Tree canopy in the area ranges between 20-50% coverage. Significant effort should be given to the preservation of mature stands of trees. Tree canopy removal should be minimized, and replacement of trees that need removing should be encouraged. Landscaping requirements included in the MPD will ensure development is complemented by robust landscaping.

Parks & Open Space: There are no existing City of Tulsa park facilities in the area of the subject property. The MPD proposes a large amount of open space and community amenities which would be implemented as part of future development.

Zoning History
Ordinance 20244, dated November 20, 2001, established zoning for the subject property.

Exhibits
Case map
Aerial (small scale)
Aerial (large scale)
Tulsa Comprehensive Plan Land Use Map



Feet
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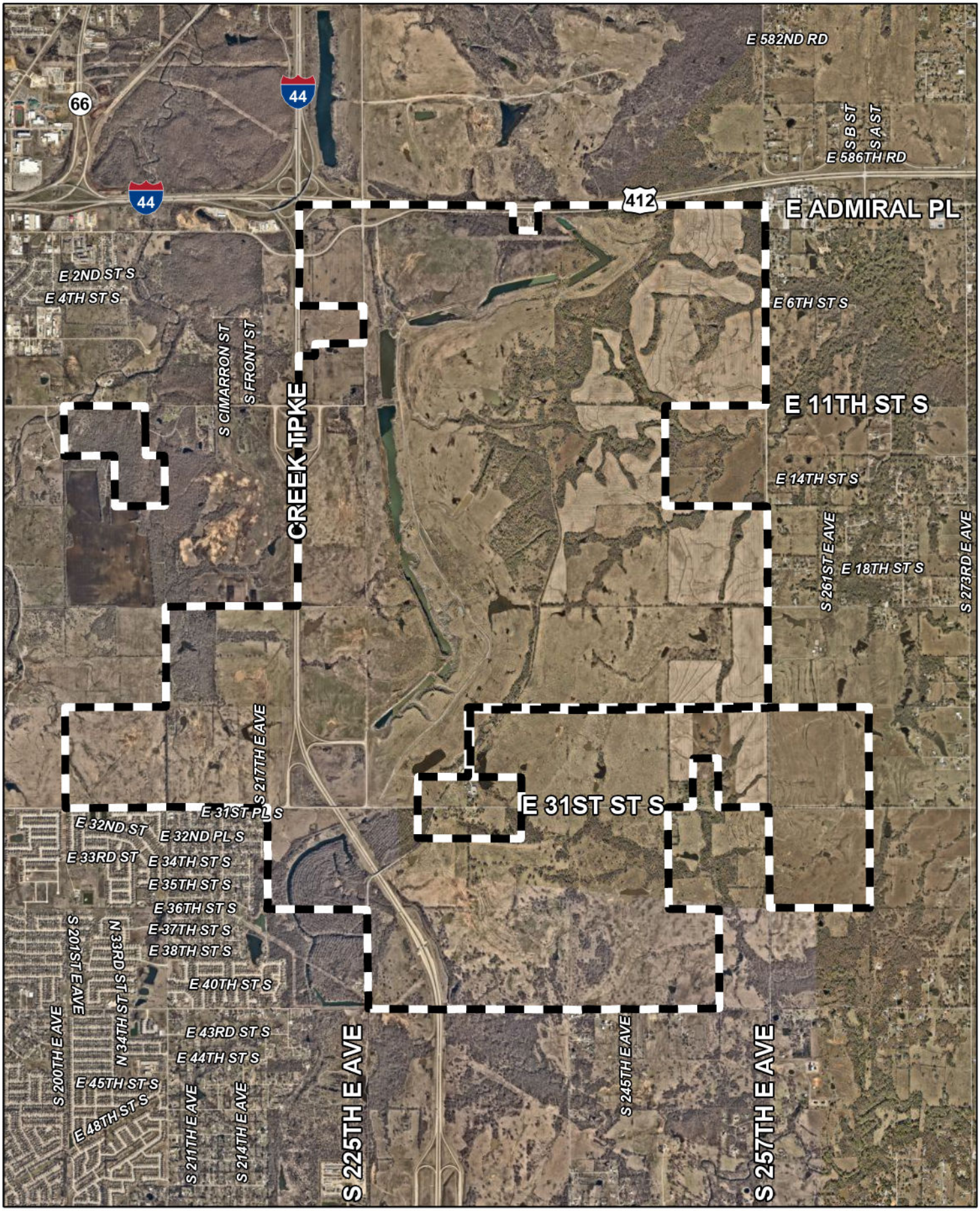
Subject Tract

MPD-6

19-15 3,4,5,7,8,9,10,14, 15,16,17,18,20,21,22,23

N



Feet
0 2,000 4,000

Subject Tract

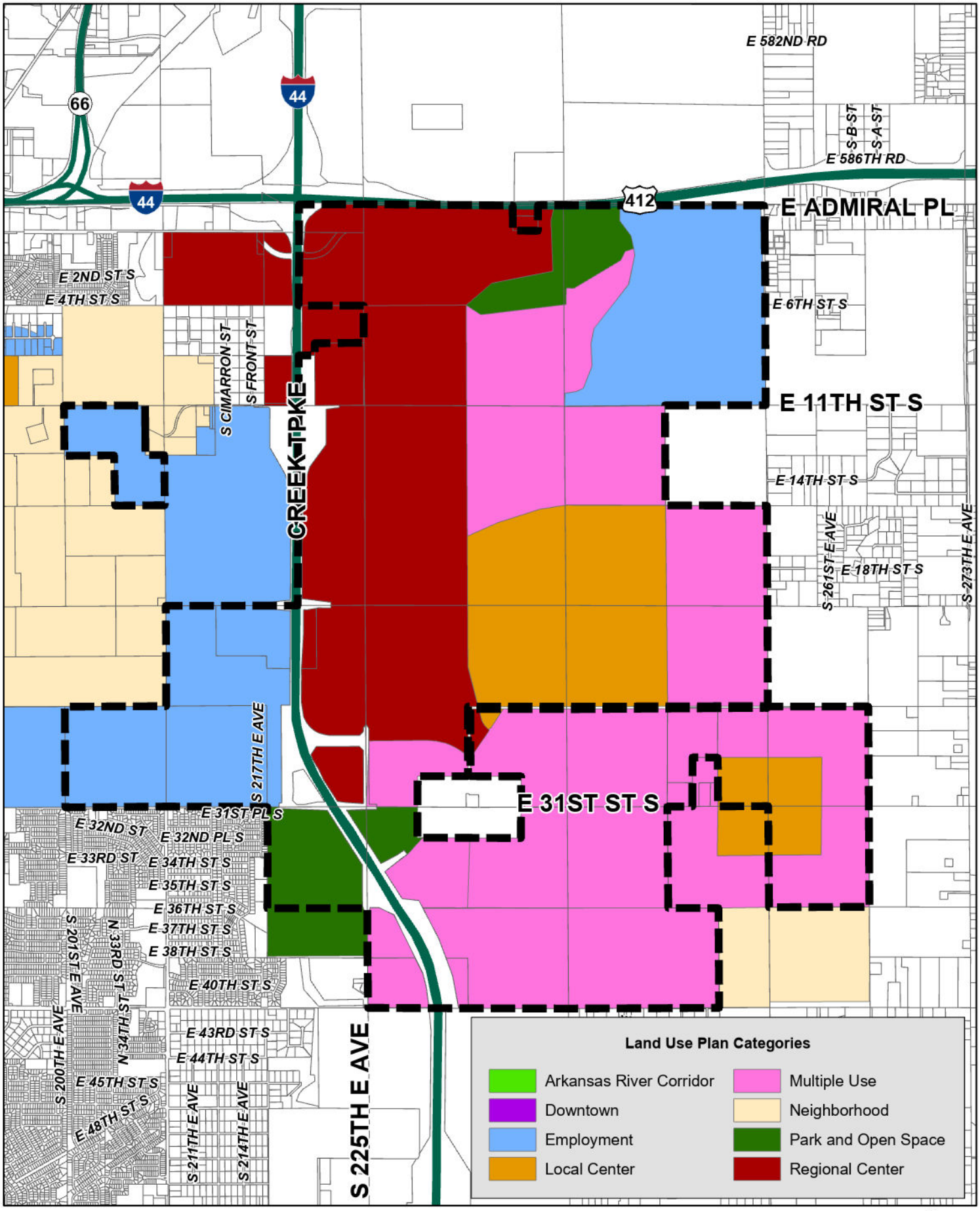
MPD-6

19-15 3,4,5,7,8,9,10,14, 15,16,17,18,20,21,22,23

Note: Graphic overlays may not precisely align with physical features on the ground.

Aerial Photo Date: 2025

N



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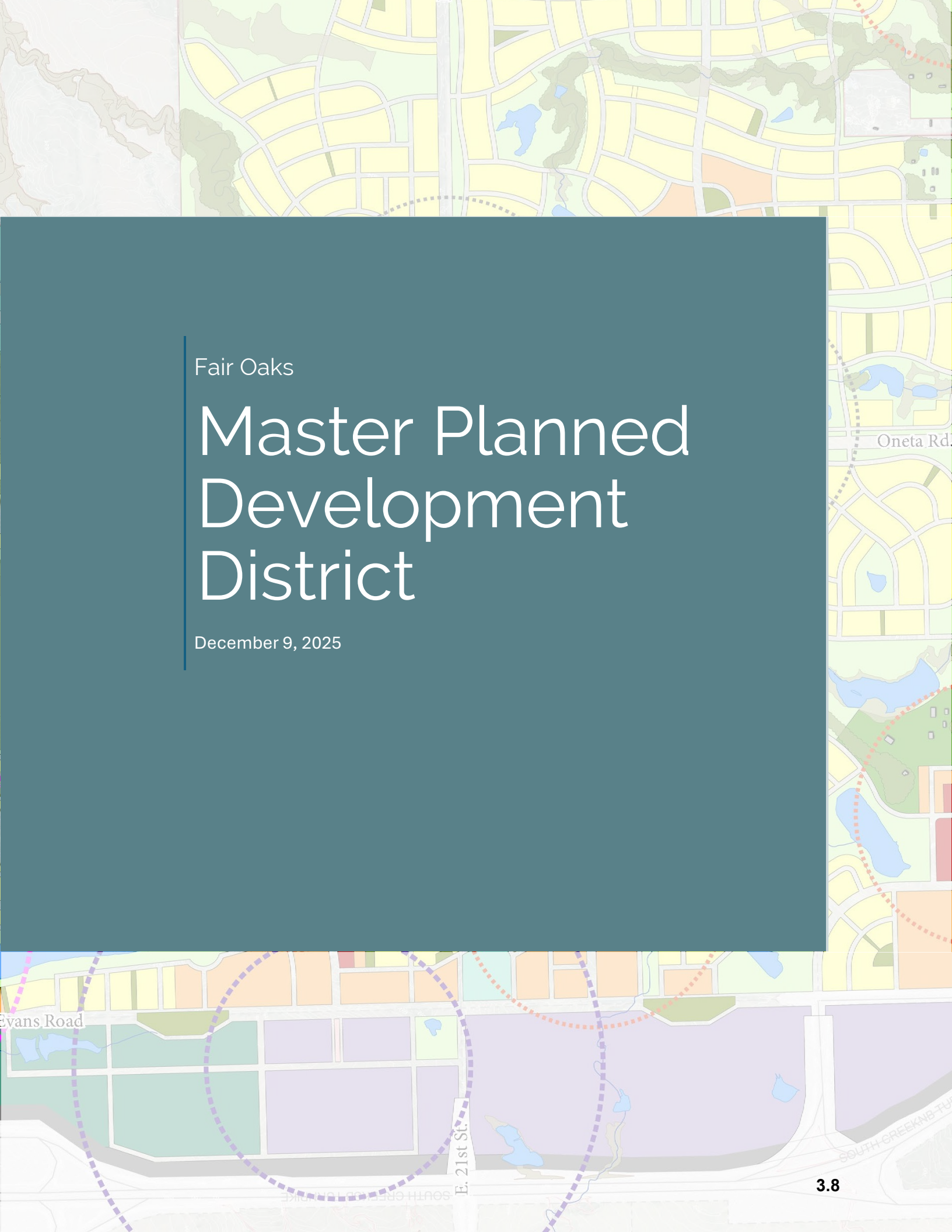

Fair Oaks

Master Planned Development District

December 9, 2025

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Section 1. Introduction

1.1. Development Overview

The Fair Oaks Master Planned Development District (MPD) is a 6,229-acre community with a core area generally bound by Highway 412 on the north, Midway Road on the east, E. 41st Street on the south, and the Creek Turnpike on the west with area extending west of the Creek Turnpike between 21st Street and 31st Street. The full boundary of the MPD is shown on Exhibit 1 on the following page. It is the intent of the Fair Oaks MPD to be developed incrementally over time with a variety of land uses, with industrial/employment parks, retail centers, mixed-use development, residential, and recreation. The vision of the Fair Oaks development plan is to become a full-service regional mixed-use center that blends the site's rich history with elements of new urbanist design, including:

A. Quality, human-scale design,

B. Main street-style commercial areas,

C. Housing suitable for a variety of lifestyles and price points,

D. Streets designed for walking and biking,

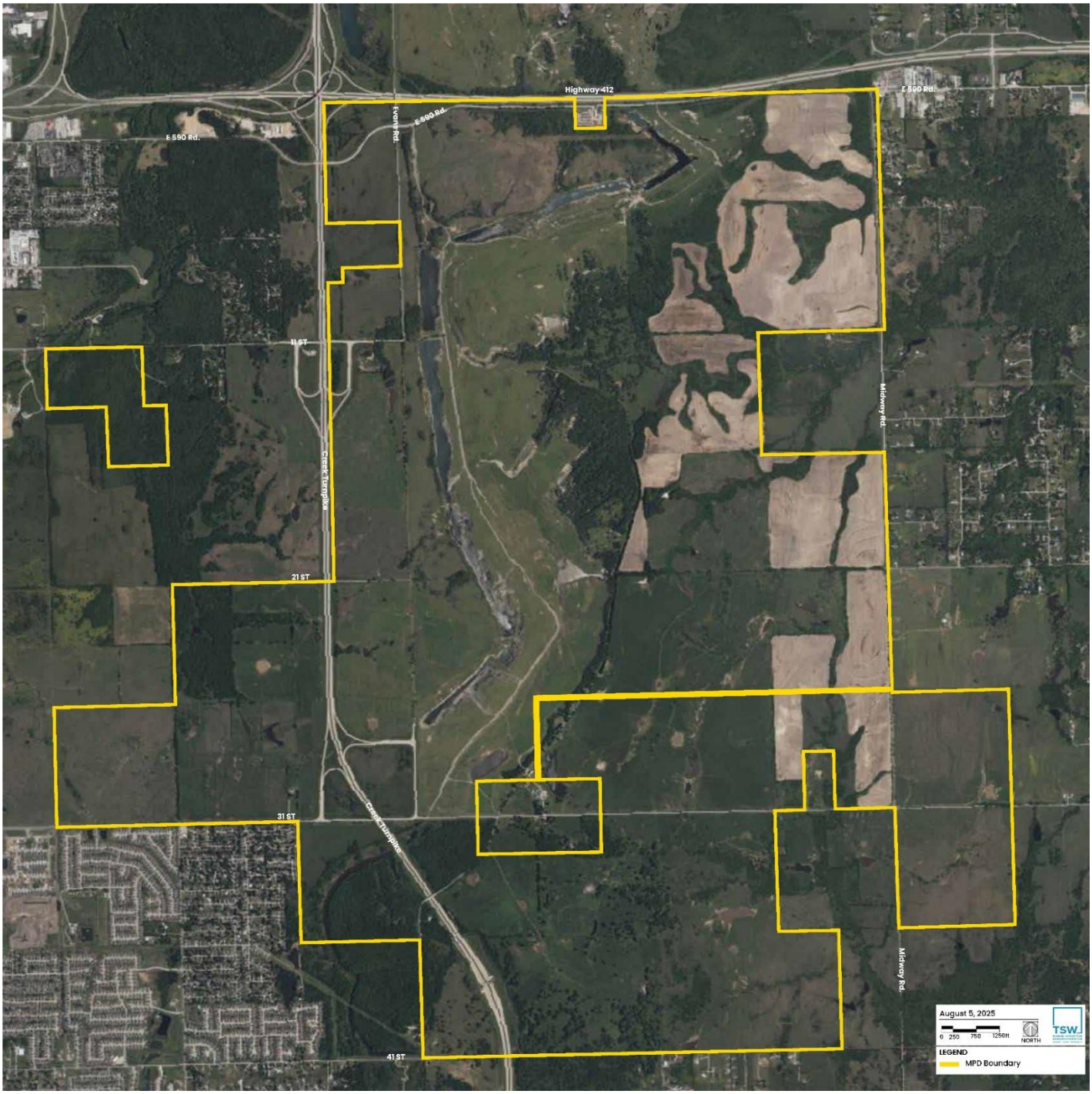
E. Sustainable infrastructure,

F. Accessible public spaces, and

G. Recreational and open space amenities.

1.2. MPD District Boundary

Exhibit 1. Fair Oaks MPD Boundary Map



Section 2. MPD Purpose and Intent

2.1. Goals

The Fair Oaks MPD has been prepared with the following goals:

A. To establish baseline standards that support innovative site planning consistent with City of Tulsa policies and the Fair Oaks master plan vision.

B. To provide an appropriate level of flexibility for the project to develop incrementally over the long term and in response to future market conditions.

C. To establish standards that can be efficiently administered by the City of Tulsa.

2.2. Conformance with Master Plan Development Criteria

The Fair Oaks MPD reflects a vision that aligns with the purpose and intent of a Master Planned Development district as outlined in Section 25.070-A and the supplemental review criteria of 25.070-D2 in the City of Tulsa Zoning Ordinance (ZO) through the following:

A. Variety in Housing Types and Mixed Use Development Patterns.

The vision includes a range of housing options suitable for diverse lifestyles and income levels. The Fair Oaks MPD emphasizes a compact, mixed-use development pattern where residential, commercial, and open space areas are integrated to promote community interaction and convenience.

B. Transportation Network and Non-Motorized Travel

The Fair Oaks MPD incorporates a transportation network designed for safe and efficient motorized and non-motorized travel. Pedestrian-friendly streets, biking lanes, and multi-purpose trail connectivity to residential areas are prioritized to encourage alternative modes of transportation.

C. Open Space Amenities and Natural Resource Features

The MPD emphasizes the incorporation of open space amenities and the preservation of natural resource features. Existing natural elements such as wooded areas, water bodies, and wildlife habitats are retained and enhanced, providing recreational opportunities, contributing to the area's ecological richness, and promoting long-term sustainability.

D. Compliance with Comprehensive Plans and Development Plans

The Fair Oaks MPD is intended to be an implementation tool of the Fair Oaks Master Plan, Fair Oaks Comprehensive Plan, and City of Tulsa Comprehensive Plan (as adopted on June 14, 2023). It also complies with the MPD district provisions outlined in Section 25.070 (ZO), ensuring consistency with adopted plans.

E. Public Benefits and Community Interest

The development is designed to provide public benefits that exceed those achievable under conventional zoning standards. These include a mix of housing options, sustainable practices, enhanced public spaces, and economic opportunities that contribute to the well-being of residents and the surrounding community.

In summary, the Fair Oaks MPD meets the purpose and intent of a Master Planned Development District as outlined in the City of Tulsa Zoning Ordinance by fostering a vibrant, sustainable, and inclusive community that preserves its natural resources, embraces modern design principles, and enhances the quality of life for future residents and visitors.

Section 3. Administration

3.1. Applicability

The City of Tulsa Subdivision Regulations (adopted on February 21, 2018 and as amended) and Zoning Ordinance (adopted on November 5, 2015 and as amended) apply in the MPD, except as expressly set out within the MPD.

3.2. Site Plans

Due to the long-term development horizon, the requirement for the filing of a site plan in this MPD is extended. A complete application for site plan approval must be filed within 10 years of the date of MPD approval. The site plan can be a portion of the MPD area. An application for site plan approval is not required for the entire MPD area within a specified time frame.

3.3. Nonconformities

Nonconformities that exist within the MPD are governed by the regulations of Chapter 80 (ZO).

3.4. Amendments

Except as otherwise expressly stated, the MPD may only be amended in accordance with the following procedures:

A. Zoning Map Amendment

Amendments that expand or reduce the exterior boundary of the MPD or terminate the MPD must be processed in accordance with the zoning map amendment procedures of Section 70.030 (ZO).

B. Major Development Plan Amendment

1. Any amendment to an approved development plan that is not authorized as a minor amendment must be processed as a new development plan following the development plan approval procedures of Section 70.040 (ZO), including all requirements for fees, notices, and hearings.
2. The following is a non-exhaustive list of changes that may be considered major development plan amendments:

i. Modifications to the circulation system that include:

a. A reduction or increase in the number of 4-lane roads within the MPD;

b. An intensity increase of a planned lower classification road to become a 4-lane road;

c. Movement of an MPD-regulated street a distance greater than 300 feet from its location shown in an online geodatabase map provided to the City of Tulsa.

3. In those cases where the city council has expressly imposed a condition more restrictive than recommended by the planning commission, any amendment of that city council-imposed condition must be reviewed and approved by the city council.

C. Minor Development Plan Amendment

1. The non-exhaustive list of changes that may be considered as minor amendments in Section 70.040-I (ZO) is modified in this MPD to include the following:

i. Any deviation expressly authorized at the time of development plan approval;

ii. Limitation or elimination of previously approved uses, provided the character of the development is not substantially altered;

iii. Changes reducing the number of permitted dwelling units, the amount of nonresidential floor area or the area covered by buildings or paved areas;

iv. Increases in the number of dwelling units, provided the increase is not more than 15% of the maximum number of dwelling units shown in Section 5.1, A (MPD);

v. Increases in permitted nonresidential floor area, provided the increase is not more than 15% of the maximum floor area shown in Section 5.1, A (MPD);

vi. Changes in structure heights, building setbacks, lot widths, or frontages if not increased or decreased by more than 5 feet of the limit;

vii. Changes in percentage of yard or building coverage if not increased or decreased by more than 15% of the limit;

viii. Adjustment of internal development area boundaries are allowed by the developer of Fair Oaks, provided the allocation of land for any particular development area is not adjusted by more than 20% of the respective development area at the date of MPD adoption;

ix. Modification of the internal circulation system, provided the system is not substantially altered in design, configuration or location or as listed in Section 4.3 (MPD).

x. Changes in points of access, provided the traffic design and capacity are not substantially altered;

xi. Modifications to building height or block length in the development area design standards for public, civic, and institutional uses.

2. Notice of the planning commission's public hearing on a minor amendment request must be provided at least 10 days in advance of the hearing by mailed written notice to all owners of property within a 300-foot radius of the exterior boundary of the subject property requesting the minor amendment.

D. Sketch Plan

1. Prior to submitting a preliminary plat, a sketch plan must be prepared and submitted to the City of Tulsa Planning Office for review. The sketch plan shall show the following:

    i. Sketch plan location, acreage, boundary, scale and north arrow;

    ii. Designation and descriptions of the street sections to be used in the street network;

    iii. Planned open space and parks and their locations and uses;

    iv. Layout of parcels (lots) that will be subdivided as part of the subsequent platting process;

    v. Land use designations, acreage and boundaries;

    vi. Estimated number of dwelling units;

    vii. Trail and walkway systems;

    viii. Waterways and water bodies; and

    ix. Estimated phasing schedule

A predevelopment meeting must be scheduled with the City of Tulsa Office to review the sketch plan.

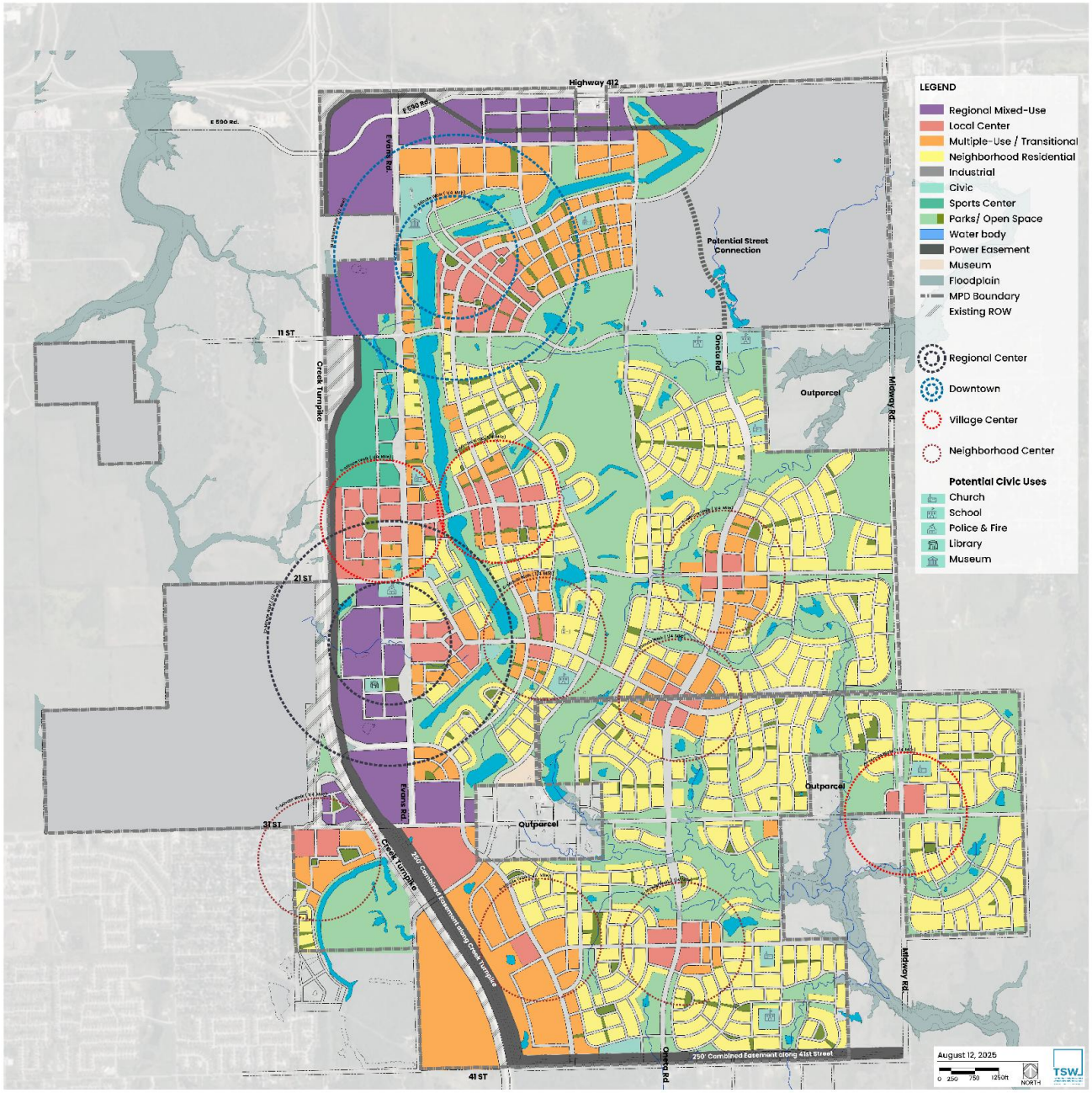
Section 4. Master Development Plan

To ensure the intended development pattern is achieved over the long term, the MPD development hereby adopts the Fair Oaks MPD Land Use Plan, Development Area Plan, Street Network Plan, and Open Space as described below.

4.1. Fair Oaks MPD Land Use Plan

The Land Use Plan helps to balance environment, economic, and social needs by guiding the allocation of land. It establishes the framework and design intent of the development areas and reflects how land uses should transition and relate to each other. The Land Use Plan is intended to be a guide for land use and density.

Exhibit 2. Fair Oaks Land Use Plan



4.2. Development Area Plan

The Development Area Plan delineates development areas that determine the site, lot, and building standards. The development areas aid in efficient land use planning and promote a cohesive, organized layout.

To successfully develop a large-scale project over the long term, a challenge exists to identify the various factors influencing current and future lifestyles and economic conditions, allowing for proper anticipation and planning. Therefore, this MPD allows the development area designations to be modified before platting or site plan approval to align with the economic conditions present at the time of filing an application for development, provided the allocation of land for any particular development area is not adjusted by more than 10% of the respective development area at the date of MPD adoption.

Exhibit 3a. Development Area Plan

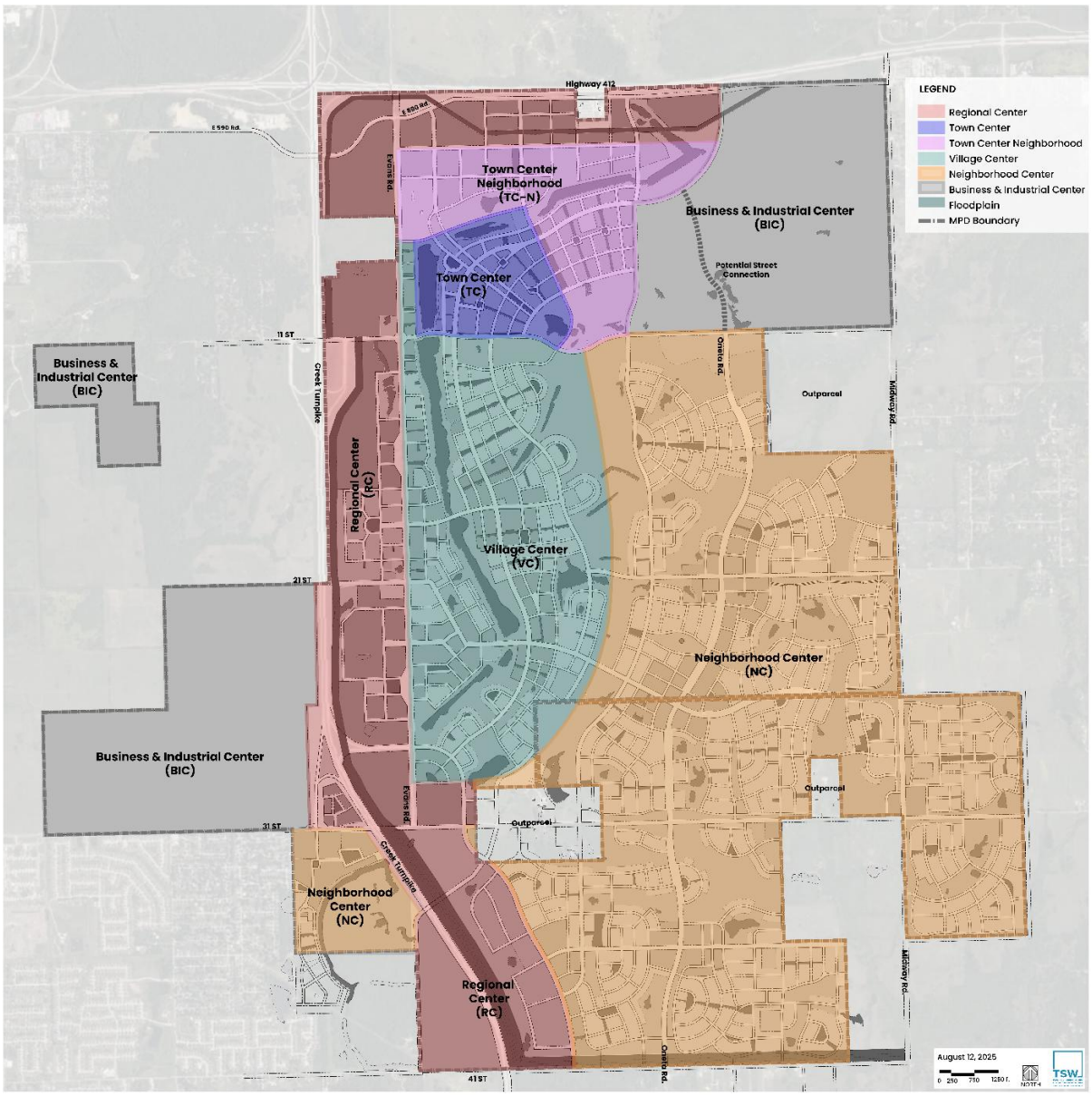
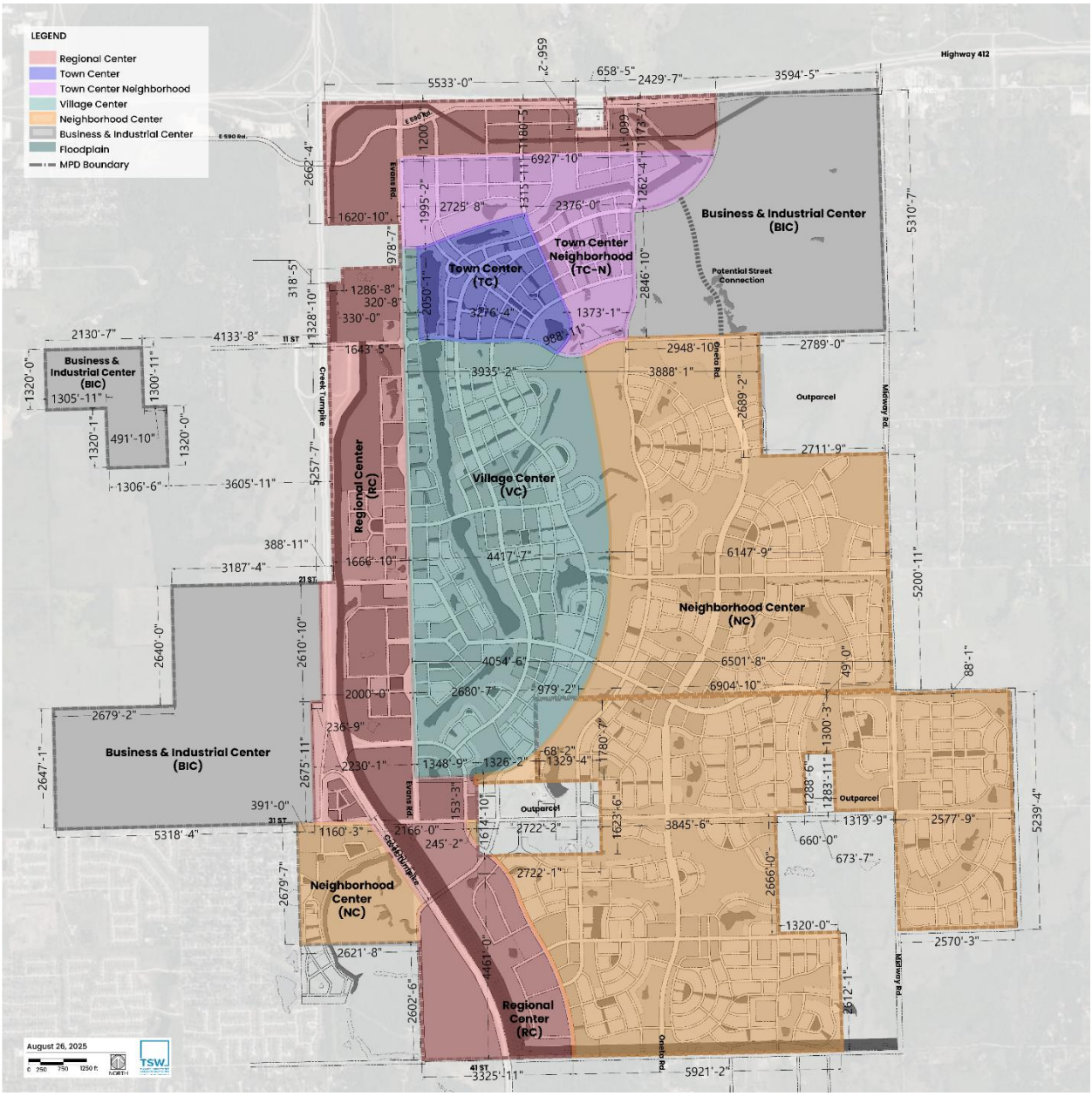


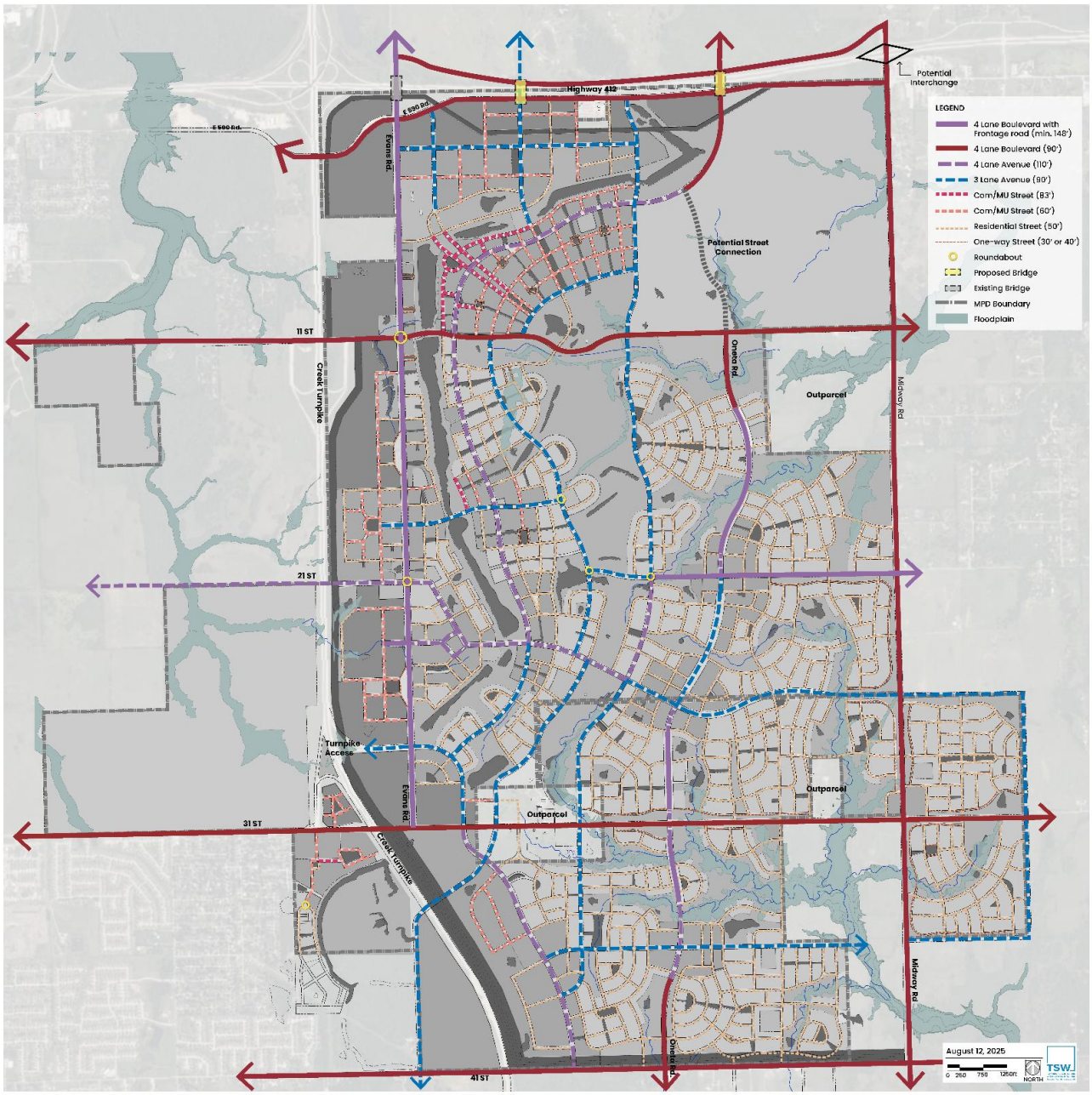
Exhibit 3b. Development Area Plan with Dimensions



4.3. Street Network Plan

At the time of this MPD creation, most streets and roadways do not exist within the MPD boundary. The Street Network Plan is included to aid in planning for transportation infrastructure, including roads, alleys, sidewalks, and bike lanes. This ensures efficient connectivity within the development and with surrounding areas. The Street Network Plan designates the street types and the planned layout for MPD-regulated streets. MPD-regulated streets are shown in an online geodatabase map on the City of Tulsa's website. The non-MPD-regulated streets are illustrative and reflect the intent of the design.

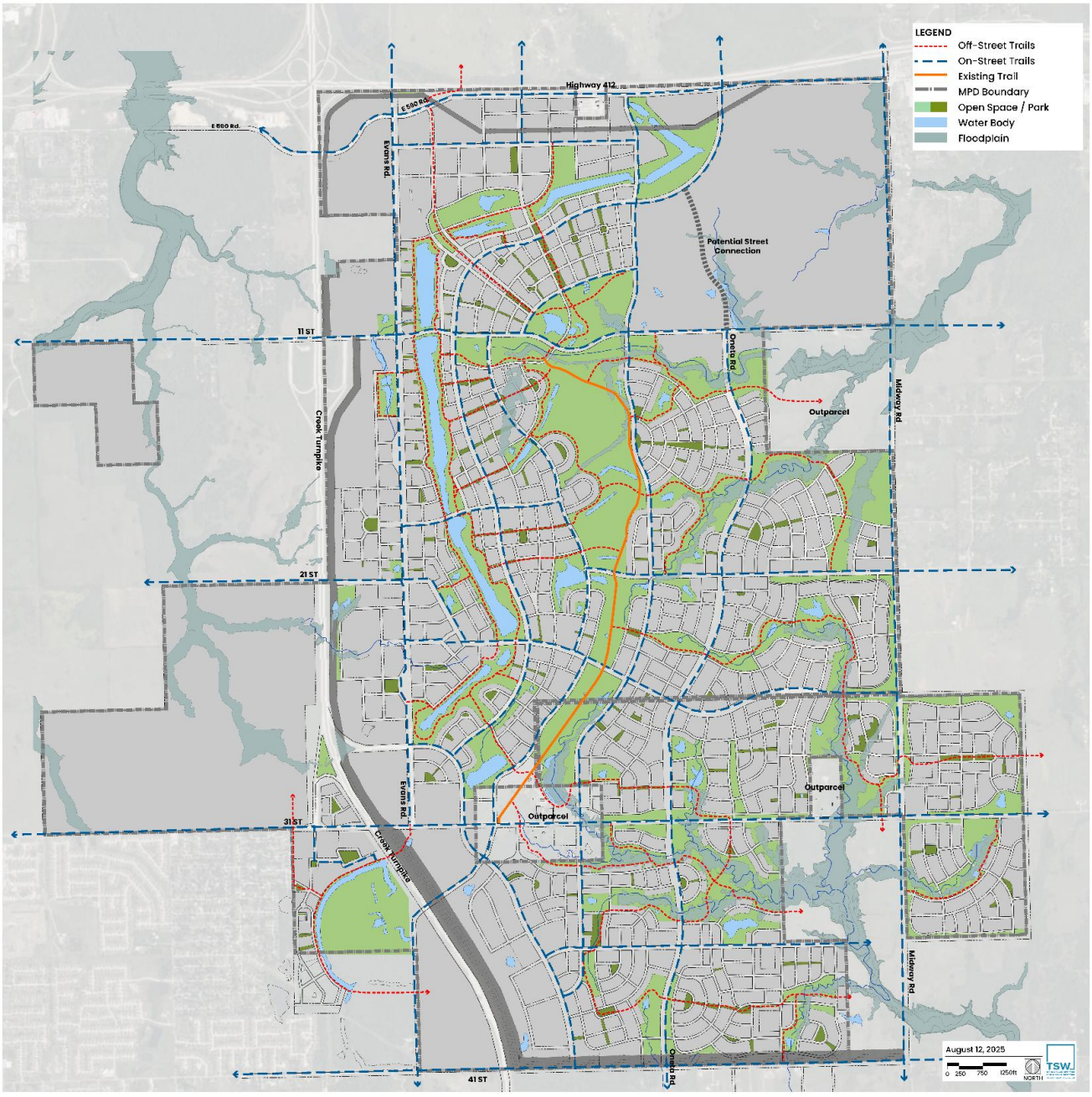
Exhibit 4. Street Network Plan



4.4. Open Space and Mobility Plan

The Open Space and Mobility Plan allows for the identification and preservation of key green areas, parks, and recreational zones within the MPD to help maintain a balance between developed areas and natural environments, promoting sustainability and quality of life.

Exhibit 5. Open Space and Mobility Plan



Section 5. Site Standards

5.1. MPD Development Program

A. Development Area Summary.

Development areas are designated within this MPD to set specific standards within certain portions of the district. The statistical summary provided below outlines the estimated acreage and percent of the total MPD area that is devoted to each development area as reflected in Exhibit 3. Development Area Plan:

Development Area	Number of acres (gross)	Percent of total MPD area
Regional Center	1,147.9	18.2%
Town Center	169.5	2.7%
Town Center-Neighborhood	337.1	5.4%
Village Center	890.3	14.1%
Neighborhood Center	2,525.9	40.1%
Business and Industrial Center	1,228.7	19.5%

5.2. Open Space Program:

A. Purpose

The parks and open space program support development of a range of active and passive recreation spaces, including but not limited to parks, playgrounds, and trails, within the MPD. This program also supports the protection of natural resources and environmentally sensitive areas.

B. Design Standards

1. **Open Space Requirement**. This MPD is designed to create a regional open space amenity. Accordingly, all areas designated as "Open Space" on Exhibit 5. Open Space and Mobility Plan shall be provided for this purpose. All required open space is also shown in the online geodatabase map available on the City of Tulsa's website.

    i. Individual lots, blocks, or phases within the project will not be subject to the City of Tulsa's open space requirements on an individual basis. However, to promote variety and accessibility, the inclusion of smaller parks and open space areas throughout the development is encouraged.

2. **Open Space and Trail Network Arrangement**

    The arrangement of open space and off-street trail network in new developments shall make provision for the continuation of existing and planned open space and off-street bike networks in adjoining areas by the Open Space and Mobility Plan.

3. **Trails**

   Trails, where constructed, must be designed to meet the following standards:

   i. Trails must provide a minimum width of 10 feet. Where different modes of transportation are provided as separate facilities (such as a dedicated bike lane adjacent and parallel to the trail), the minimum width of the trail may be reduced to 6 feet.

   ii. Trails must be constructed of a hard, durable surface, unless designed as a natural trail amenity, and must shed water to prevent standing puddles on their surface.

   iii. Trails, where constructed, must be located to allow for connection to other trail systems in the city.

1. **Public Access Required Open Space**. A perpetual public access easement must be recorded in the county clerk's office for all required open space or trail designated on Exhibit 5. Open Space and Mobility Plan Map prior to subdividing or platting property within the MPD.

2. **Trails**. A perpetual public access easement must be recorded in the county clerk's office for all trails reflected on Exhibit 5. Open Space and Mobility Plan Map at the time of platting for each phase of development in which the trail amenity is located.

C. Uses

Parks, common open space, gardens, playfields (other than golf courses), game courts, playgrounds, paved pedestrian spaces, and trails are allowed and may be used for pedestrian, bicycle, equestrian, and non-motorized recreation. Trails may further be used for emergency and/or maintenance public vehicle access. Portions of trails may be set aside and restricted to equestrian or other specific users, so long as a continuous trail route is available to pedestrians and cyclists.

D. Ownership and Maintenance

Provisions for the ownership and maintenance of common open space as designated on Exhibit 5. Open Space and Mobility Plan to ensure its continuity, conservation, and maintenance must be incorporated in the subdivision plat or in covenants recorded in the county clerk's office**.**

5.3. Use Provisions:

A. Use Categories and Definitions

Use categories and definitions are in accordance with the Zoning Ordinance (as adopted on November 5, 2015 and amended on March 13, 2025) with the addition of the following use within the low-impact manufacturing and industry use subcategory:

1. **Artisan Workshop**

   i. **Defined**

   A facility whose primary use is the shared or individual use of hand-operated tools for the manufacturing of products or parts, including their design, processing, fabrication, assembly, treatment and packaging. Craft manufacturing may also include the incidental storage, sale, and distribution of said products or parts. Craft manufacturing specifically includes, but is not limited to, the manufacturing of electronic goods, food and bakery products, non-alcoholic beverages, printmaking, household appliances, leather products, jewelry and clothing, metalwork, furniture, glass or ceramics, and paper.

5.4. Allowed Uses

A. Principal Uses

Principal uses are allowed in development areas in accordance with Table 1: Allowed Use by Development Area.

1. Permitted Uses: Uses identified with a "P" are permitted as-of-right in the subject development area, subject to compliance with any supplemental regulations identified in the final column of Table 1 and with all other applicable regulations the Zoning Ordinance, except as otherwise expressly stated.
2. Special Exception Uses: Uses identified with an "S" may be allowed if reviewed and approved in accordance with the special exception procedures of Section 70.120 (ZO). Special exception uses are subject to compliance with any supplemental regulations identified in the final column of Table 1 and with all other applicable regulations the Zoning Ordinance, except as otherwise expressly stated.
3. Prohibited Uses: Uses identified with an "–" are expressly prohibited. Uses that are not listed in Table 1 and that cannot be reasonably interpreted to fall within any defined use category are also prohibited.
4. Supplemental Regulations: The "supplemental regulations" column of Table 1 identifies additional City of Tulsa Zoning Ordinance regulations that apply to some uses. Unless otherwise expressly stated, compliance with these regulations is required regardless of whether the use is permitted as-of-right or requires special exception approval.

B. Accessory Uses

Accessory Uses: Accessory uses, such as home occupations, are not regulated by the Table 1. Customary accessory uses are allowed in conjunction with principal uses permitted by right or by special exception, subject to compliance with all applicable accessory use regulations of Chapter 41.

Table 1: Allowed Use by Development Area (If in allowed building type identified in Table 2)

Uses	Development Areas						Supplemental Regulations
	RC	TC	TC-N	VC	NC	BIC	
Agricultural							
Animal Husbandry	-	-	-	-	-	-	
Community Garden	P	P	P	P	P	P	Section 40.090, ZO
Farm, Market or Community-Supported	P	-	-	-	-	-	
Horticulture Nursery	P	-	-	-	-	-	
Medical Marijuana Grower Operation	-	-	-	-	-	-	
Residential							
Household Living							
Single Household	P [1]	P [1]	P [1]	P [1]	P [1]	-	
Two Households on Single Lot	P [1]	P [1]	P [1]	P [1]	P [1]	-	
Three or More Households on Single Lot	P [1]	P [1]	P [1]	P [1]	P [1]	-	
Group Living							
Assisted Living Facility	P	S	S	P	P	-	
Community Group Home	P	P	P	P	P	-	Section 40.100, ZO
Convent/Monastery/ Novitiate	P	P	P	P	S	-	
Elderly/Retirement Center	P	P	P	P	P	-	
Fraternity/Sorority	P	P	P	P	-	-	
Homeless Center	S	S	S	S	S	S	Section 40.130, ZO
Life Care Retirement Center	P	P	P	P	P	-	
Re-entry Facility	S	S	S	S	S	S	
Residential Treatment Center	S	S	S	S	S	S	Section 40.130, ZO
Rooming/Boarding House	P	P	P	P	-	-	
Shelter, Emergency and Protective	S	S	S	S	S	S	Section 40.130, ZO
Transitional Living Center	S	S	S	S	S	S	Section 40.130, ZO
Public, Civic, and Institutional							
Airport	-	-	-	-	-	S	
Cemetery	-	S	S	S	S	S	
College/University	P	P	S	P	P	S	
Day Care (Home, Center)	P	P	S	P	P	S	Section 5.5, E, MPD
Fraternal Organization	P	P	S	P	P	S	
Government Service	P	P	S	P	P	S	
Hospital	P	S	S	S	S	S	
Library, Museum, or Cultural Center	P	P	S	P	P	P	
Natural Resource Preservation	P	P	P	P	P	P	
Parks and Recreation	P	P	P	P	P	P	
Postal Services	P	P	S	P	P	S	
Religious Assembly	P	P	S	P	P	S	

Uses	Development Areas						Supplemental Regulations
	RC	TC	TC-N	VC	NC	BIC	
Safety Service	P	P	S	P	P	P	
School	S	P	S	P	P	S	
Utilities and Public Service Facility							
Minor	P	P	P	P	P	P	
Major	S	S	S	S	S	S	
Wireless Communication Facility							Section 40.420, ZO
Freestanding Tower	S	S	S	S	S	P	
Building or Tower-mounted Antenna	P	P	P	P	P	P	
Commercial							
Animal Service							Section 40.020, ZO
Boarding or Shelter	P	-	-	P	-	P	
Grooming	P	P	-	P	P	P	
Veterinary	P	P	-	P	P	P	
Assembly and Entertainment							
Indoor Gun Club	S	-	-	-	-	S	
Other Indoor							
Small (up to 250 persons capacity)	P	P	S	P	P	P	
Large (>250 persons capacity)	P	S	-	P	S	S	
Outdoor Gun Club	S	-	-	-	-	S	
Other Outdoor	S	S	-	S	S	S	
Broadcast or Recording Studio	P	P	-	P	-	P	
Commercial Service							
Building Service	P	S	-	P	-	P	
Business Support Service	P	P	-	P	-	P	
Consumer Maintenance/ Repair Service	P	P	-	P	P	P	
Personal Improvement Service	P	P	P	P	P	-	
Research Service	P	P	-	P	-	P	Section 40.225, ZO
Financial Services (except as below)	P	P	-	P	P	P	
Personal credit establishment	P	-	-	-	-	P	
Funeral or Mortuary Service	P	-	-	P	P	P	
Lodging							
Bed & Breakfast	P	P	S	P	P	S	Section 40.060, ZO
Short-term Rental	P	P	P	P	P	P	Section 40.375, ZO
Campgrounds and RV Parks	P	-	-	P	P	P	Section 5.5, D, MPD
Hotel/Motel	P	P	S	P	P	S	
Office							
Business or Professional Office	P	P		P	P	P	
Medical, Dental, or Health Practitioner Office	P	P	S	P	P	P	

Uses	Development Areas						Supplemental Regulations
	RC	TC	TC-N	VC	NC	BIC	
Plasma Center	P	P	-	P	-	P	Section 40.300, ZO
Parking, Non-accessory	P	P	-	P	P	P	
Restaurants and Bars							
Restaurant	P	P	-	P	P	P	Section 40.330, ZO
Bar (except as below)	P	P	-	P	P	S	Section 40.050, ZO & as modified Section 5.5, C, MPD
Brewpub	P	P	-	P	P	S	Section 40.050, ZO & as modified Section 5.5, C, MPD
Retail Sales	P	P	P	P	P	-	Section 40.340, ZO & Section 5.5, F, MPD
Building Supplies and Equipment	P	-	-	-	-	P	
Consumer Shopping and Goods	P	P	-	P	P	P	
Convenience Goods	P	P	-	P	P	P	
Grocery Store	P	P	-	P	P	P	
Small Box Discount Store	P	P	-	P	P	P	
Medical Marijuana Dispensary	-	-	-	-	-	-	
Self-service Storage Facility	P	P	-	P	-	P	Section 5.5, G, MPD
Sexually Oriented Business Establishment	-	-	-	-	-	-	
Studio, Artist, or Instructional Service	P	P	-	P	P	P	
Trade School	P	P	-	-	-	P	
Vehicle Sales and Services							Section 5.5, H, MPD
Commercial vehicle repair/maintenance	P	-	-	-	-	P	
Truck Stop	P	-	-	-	-	P	
Commercial vehicle sales and rentals	P	-	-	-	-	P	
Fueling Station	P	-	-	S	S	P	
Personal Vehicle Repair and Maintenance	P	-	-	P	-	P	
Personal Vehicle Sales and Rentals	P	-	-	-	-	P	
Vehicle Part and Supply Sales	P	P	-	P	-	P	
Vehicle Body and Paint	S	-	-	-	-	P	

Uses	Development Areas						Supplemental Regulations
	RC	TC	TC-N	VC	NC	BIC	
Finishing Shop							
Wholesale, Distribution, & Storage							
Equip. & Materials Storage Outdoor	-	-	-	-	-	P	
Trucking and Transportation Terminal	-	-	-	-	-	P	
Warehouse	-	-	-	-	-	P	
Wholesale Sales and Distribution	-	-	-	-	-	P	
Industrial							
Artisan Workshop	P	P	-	P	-	P	Section 5.5, B, MPD
Low-impact Manufacturing & Industrial	P	-	-	-	-	P	
Moderate-impact Manufacturing & Industrial	-	-	-	-	-	P	
High-impact Manufacturing & Industrial	-	-	-	-	-	-	
Mining or Mineral Processing	-	-	-	-	-	S	
Junk or Salvage Yard	-	-	-	-	-	-	
Recycling							
Construction or Demolition Debris	-	-	-	-	-	S	
Consumer material drop-off station	-	-	-	P	-	P	
Consumer Material Processing	P	-	-	-	-	P	
Other							
Drive-in or Drive-through Facility (as a component of an allowed use)	P	-	-	S	S	S	
Oil or Gas Well	W	-	-	S	S	S	Section 40.270, ZO

[1] Accessory dwelling units are allowed by right on a lot occupied by a single household, two households on single lot, and three or more households on single lot. The supplemental regulations for accessory structures are in Section 5.5, A of this MPD.

5.5. Supplemental Use Regulations:

A. Accessory Dwelling Unit

Accessory Dwelling Units (ADUs) are clearly incidental and/or subordinate to the primary structure.

1. **Permitted Locations**

   Accessory Dwelling Units (ADUs) are permitted by right in all development areas contained within the MPD.

2. **Maximum Height**

   The maximum allowable height for accessory dwelling units is two stories and less than the height of the principal structure.

3. **Accessory Dwelling Unit Size**

   The total aggregate floor area of all accessory dwelling units may not exceed the floor area of the principal residential structure.

4. **Setbacks**

   The setbacks for accessory dwelling units are the same as the principal structure with the exception that the rear setback is reduced to two (2) feet when abutting an alley.

B. Artisan Workshop

1. The following use standards apply to artisan workshops in the VC and TC development areas:

   i. No individual establishment may exceed 4,000 square feet of floor area.

   ii. No equipment or process may be used that creates, without limitation, noise, dust, vibration, glare, fumes, odors, or electrical interference detectable to the normal human senses, off the premises.

C. Bars

1. The supplemental use regulations for bars, except accessory use bars, are subject to Section 40.050-A (ZO) with the following exceptions:

   i. There is no minimum separation distance between a public entrance door or a portion of any outdoor seating/dining area and lots used for residential purposes or where residential use is permitted.

   ii. When a bar is located on property abutting a lot used for residential purposes, a screening wall or fence is only required if parking is located between the principal structure and the abutting property line.

D. Campgrounds and RV Parks

1. Campgrounds and RV parks are intended to be developed in harmony with natural features and park uses, enhancing recreational opportunities and preserving the natural landscape.
2. Campgrounds and RV parks must be located within or adjacent to designated park areas, nature reserves, or other protected natural features.
3. The design must include public access points to natural features, such as observation points and hiking trails.

E. Day Cares

1. **General**

   Outdoor child play equipment may not be located or stored in the street yard.

2. **Family Child Care Homes**

   Family child care homes must be licensed by the State of Oklahoma

   Applicants for family child care homes must obtain a zoning clearance permit and a certificate of occupancy before commencing operation.

   Family child care homes may provide care and supervision for the number of children authorized under the state license, up to a maximum of 12 children.

   When a family child care home is not abutting a street intersection, signs advertising a Family Child Care home are prohibited.

   When a family child care home is not abutting a street intersection, no exterior building alterations or site modifications may be made that would change the residential character of the premises.

F. Retail Stores, Large

1. **Applicability**

   Large retail stores (50,000 square feet or greater) shall conform to the standards listed in this Subsection.

2. **Vehicular Access**

   No large retail store shall be located on a public right-of-way or private street less than four lanes (two in each direction) on at least one side of the property.

3. **Expansion**

   Any building expanded to a footprint exceeding 50,000 square feet to be used as a large retail store shall comply with the provisions of this subsection.

G. Self-Storage Facilities

1. General Provisions

i. Self-storage facilities must be designed as multi-story buildings in the Town Center and Village Center development areas. The ground floor along the street frontage must be occupied by active uses, such as retail, office or other commercial space.

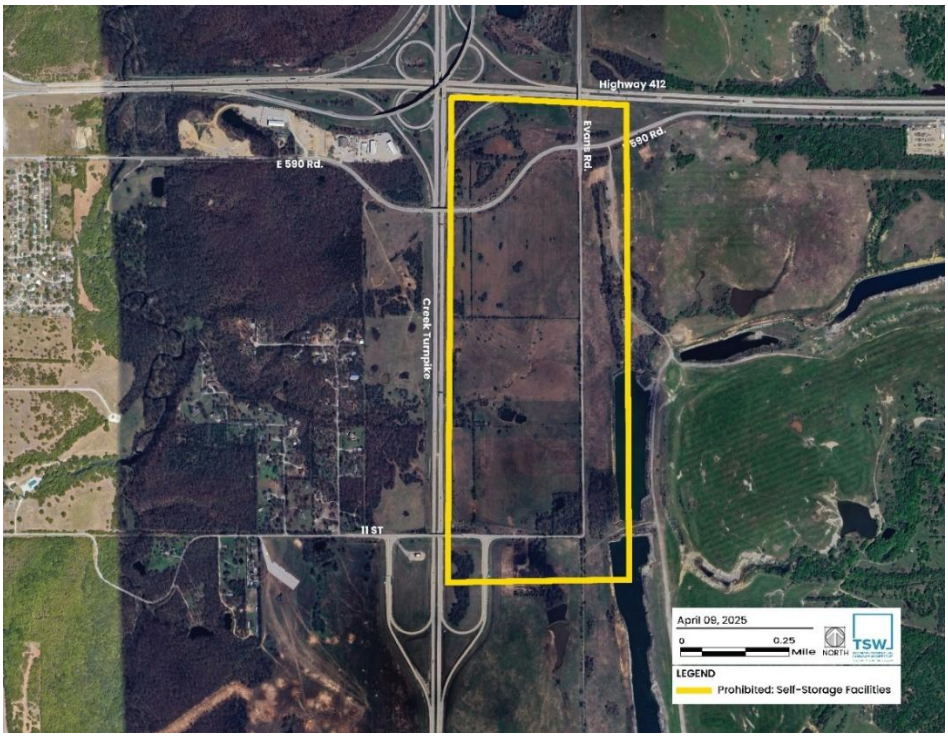
ii. A screening fence or masonry wall is required along all lot lines adjacent to self-storage facilities in the Regional Center development area. Required screening fences and walls must be at least 8 feet in height. If buildings are masonry, the building wall can serve as the screening wall, provided that no entries to storage units may be viewed from outside of the property. The screening fence/wall requirements of this section do not apply to climate-controlled self-storage buildings in which self-storage spaces are accessed only from within the building.

iii. No activities other than storage and pick-up and deposit of stored materials are allowed within the storage units.

2. Specific Provisions

i. Self-storage facilities must meet the following provisions in all development areas with the exception of the Business and Industrial Development Area which is exempt from this section.

ii. Self-storage facilities are prohibited between the Creek Turnpike, Highway 412, 500 feet east of Evans Road, and 500 feet south of 11th Street as depicted in the map below:



iii. A self-storage facility shall be set back a minimum of 250 feet away from any boulevard, avenue, arterial street or limited access highway right-of-way.

iv. Self-storage facilities shall be part of mixed-use developments to create a more vibrant and active streetscape. The portion of a development devoted to self-storage use shall not exceed 50% of the area of the site. No provisions in this MPD prohibit self-storage facilities from occupying their own lot.

v. Exterior building walls visible from streets and abutting lots must be of masonry construction, using brick, stone, stucco, or concrete tilt-up panels. Corrugated steel or standard (smooth) concrete block exterior walls are not permitted on these walls.

vi. Access doors to drive-up style storage units may not be visible at ground-level from abutting uses in areas designated as neighborhood residential, multiple-use/transitional, or local center in Exhibit 2. Land Use Plan or from abutting street rights-of-way.

vii. The storage of flammable liquids, highly combustible, explosive materials or hazardous chemicals is prohibited.

viii. No outdoor (open-air) storage of any kind is allowed that is visible at ground level from abutting property or from any street rights-of-way.

H. Vehicle Sales and Service

1. Whenever a vehicle sales and service use is located on a lot abutting a residential use, a screening wall or fence must be provided along the common lot line in accordance with the F1 screening fence or wall standards of Section 65.070-C (ZO).

2. Whenever commercial or personal vehicle sales or rentals are within 300 feet of a residential use, off-street parking and vehicle display areas must comply with the parking area design standards of Section 55.090 (ZO).

Section 6. Development Area Standards

6.1. Building Types

A. Definitions

Building types are defined by Section 35.010 (ZO) with the addition of the following building types established and described below:

1. **Neighborhood Commercial**

   Neighborhood commercial is a principal building intended to accommodate small-scale commercial uses that serve nearby residential neighborhoods. The building is occupied primarily by non-residential uses and does not exceed 10,000 square feet.

2. **Urban Commercial**

   Urban commercial is a principal building intended to accommodate urban-scale commercial uses that serve the region. The building is occupied primarily by non-residential uses and does not exceed 20,000 square feet.

3. **Large Commercial**

   Large commercial is a principal building intended to accommodate large-scale commercial uses that serve many surrounding neighborhoods, visitors, and workers. The building is occupied solely by non-residential uses and is over 20,000 square feet.

4. **Industrial/General Commercial**

   An industrial/general commercial building is a principal building occupied primarily by industrial uses or commercial uses allowed in the BIC development area.

B. Allowed Building Types by Development Area

The table of building type regulations by development area is provided in **Table 2** on the following page.

6.2. Lot and Building Design Criteria

Lot and Building Design Criteria are outlined in **Table 3**, designating the minimum design standards for development in the MPD. Table 3 is provided as on the following pages.

Table 2: Allowed Building Types by Development Area

USE CATEGORY Subcategory Specific use Building Types	Development Areas						Supplemental Regulations
	RC	TC	TC-N	VC	NC	BIC	
Residential							
Household Living							
Single household							
Detached House	-	-	P [2]	P	P	-	
Townhouse	P	P	P	P	P	-	
Mixed-Use Building	P	P	P	P	P	-	
Two households on single lot							
Duplex	-	-	P	P	P	-	
Mixed-Use Building	P	P	P	P	P	-	
Three or more households on single lot							
Cottage House Development	-	-	P	P	P	-	Sec. 40.110 (ZO)
Multi-Unit House	P	P	P	P	P	-	Sec. 40.250 (ZO)
Apartment/Condo	P	P	P	P	P	-	
Mixed-Use Building	P	P	P	P	P	-	
Non-Residential							
Open Space	P	P	P	P	P	P	
Civic/Institutional	P	P	P	P	P	-	
Neighborhood Commercial	P	P	P	P	P	-	
Urban Commercial	P	P	-	P	-	-	
Large Commercial	P	-	-	-	-	-	
Industrial	P	-	-	-	-	P	

P = Permitted **-** = Prohibited

[1] Supplemental NC Regulations

a) Household living building types categories (except mixed-use buildings) are prohibited in commercial nodes. A commercial node is defined as street intersections where both streets are 3-lane or 4-lane roads.

b) Mixed-use, neighborhood commercial, and civic/institutional are allowed at street intersections and adjacent to existing non-residential use.

c) Apartments/condos are limited to 12 dwelling units per lot.

[2] Detached House

d) Single household with detached house are only allowed on small lots and standard lots in accordance with Lot and Building Design Criteria

Table 3. Lot and Building Design Criteria

ATTACHMENT A

Table 3: Lot and Building Design Criteria: Household Living

Standard		Detached House				Townhouse
		Estate Lot	Large Lot	Standard Lot	Small Lot	
Minimum Lot Area (sq. ft.)		13,500	6,900	4,000	2,500	1,200
Lot Width (ft.)		100 (Min.)	75 (Min.)	40 (Min.); 74 (Max.)	30 (Min.); 39 (Max.)	16 (Min.)
Minimum Street Frontage (feet)*		30	30	30	30	60 (development, not per unit)
Maximum Building Coverage		40%	45%	55%	70%	90%
Building Setbacks (feet)	**Street [1]**	20 (Min)	20 (Min.)	10 (Min.); 20 (Max)	10 (Min.); 15 (Max)	5 (Min.); 15 (Max)
	Side	5 (Min.)	5 (Min.)	5 (Min.)	5 (Min.)	• 0 (internal) • 5 (end-units)
	Rear	25 (Min.)	• Garages and Accessory Dwelling Units (ADUs): 2' (Min.) garage setback • All Other Structures: 20 (Min.)	• Garages and ADUs: 2' (Min.) garage setback • All Other Structures: 20 (Min.)	• Garages and ADUs: 2' (Min.) garage setback • All Other Structures: 20 (Min.)	• Garages and ADUs: 2' (Min.) garage setback • All Other Structures: 20 (Min.)
Garage, Parking Lot, and Access Placement		• Parking spaces may be accessed by alley, rear-loaded drive, side, or front drive • Front-loaded garages may be max. 40% of primary façade, and must be recessed a minimum of 5' behind the primary façade	• Parking spaces may be accessed by alley, rear-loaded drive, side, or front drive • Front-loaded garages may be max. 40% of primary façade, and must be recessed a minimum of 5' behind the primary façade	• Parking spaces must be accessed by alley or rear-loaded drive if one is present or proposed • If one is not present, parking spaces may be accessed by rear-loaded drive, side or front drive • No parking between the primary structure and the street • Front-loaded garages must be recessed a minimum of 30' from a primary street lot line • Driveways may be no wider than 10' for a depth of 30' from the primary street lot line	Parking spaces must be accessed by alley, rear-loaded drive, or side drive	• Parking spaces must be accessed by alley or rear-loaded drive if one is present or proposed • If one is not present, parking spaces may be accessed by rear-loaded drive, side or front drive
Street-Facing/Pedestrian Entrance		Required	Required	Required	Street or common green-facing pedestrian entrances required. If fronting on a common green space, minimum street frontage applies to common green space frontage	Street or common green-facing pedestrian entrances required. If fronting on a common green space, minimum street frontage applies to common green space frontage

[1] Porches and awnings may encroach beyond street setback area by 2'.

Table 3: Lot and Building Design Criteria: Household Living						
		Duplex	**Cottage House Development**	**Multi-Unit House**	**Apartment/Condo**	**Mixed-Use Building**
Minimum Lot Area (sq. ft.)		4,500	10,000	4,000	7,500	2,500
Minimum Lot Width (ft.)		35	75	40	50	25
Minimum Street Frontage (feet)		30	100	30	30	20
Maximum Building Coverage		65%	-	65%	60%	N/A
Building Setbacks (feet)	**Street [1]**	10 (Min.); 20 (Max.)	10 (Min.); 20 (Max.)	10 (Min.); 20 (Max.)	• 10 (Min.) • Town Center Development Area and VC: 2 (Min.), 12 (Max.)	• 10 (Min.); 20 (Max.) • Town Center and Village Center Development Areas: 2 (Min), 12 (Max)
	Side	5 (Min.)	5 (Min.)	5 (Min.)	• Town Center Development Area: 0 (Min) • Other Permitted Development Areas: 10 (Min.)	0 (Min.)
	Rear	• Garages and ADUs: 2' (Min.) garage setback • All Other Structures: 20 (Min.)	• Garages and ADUs: 2' (Min.) garage setback • All Other Structures: 20 (Min.)	• Garages and ADUs: 2' (Min.) garage setback • All Other Structures: 20 (Min.)	• Garages and ADUs: 2' (Min.) garage setback • All Other Structures: 20 (Min.)	• Garages and ADUs: 2' (Min.) garage setback • All Other Structures: 20 (Min.)
	Supplemental Provisions	N/A	Buildings within a cottage house development must be separated by a minimum distance of 10'.	N/A	Min. separation between detached buildings on the same parcel determined by the International Fire Code.	N/A
Garage, Parking Lot, and Access Placement		• Parking spaces for a minimum of 1 residential unit must be accessed by alley or side drive. • Parking spaces for the second residential unit may be accessed by alley, side, or front drive. • Front-loaded garages may be max. 45% of primary façade, and must be recessed a minimum of 5' behind the primary façade	• Parking spaces may be accessed by alley, side, or front drive. • Parking areas shall not be located between buildings and the street.	• Parking spaces must be accessed by alley side if alley is present. • Outdoor surface parking may not be located between the principal building and the street.	• Parking spaces must be accessed by alley side if alley is present. • Parking areas shall not be located between buildings and the street. • Side area parking lots must be a minimum of 10' further than the building setback. Side area parking shall never be located on a block corner.	• Unless fully below grade, parking areas shall not be located between buildings and street • Side area parking lots shall not project in front of the building façade. Side area parking shall never be located on a block corner. • The ground floor of street-facing parking structures must be screened by inhabited space
Street-Facing/Pedestrian Entrances		Required	Cottage houses must be oriented to and have a main entry onto a courtyard or common open space area that is accessible by all residents in the cottage house development, provided that cottage houses on lots abutting minor streets must have their front building elevation facing the street, including a building entrance, with a second entrance facing a courtyard or common open space area. The common open space must have a min. 18' width and 20' depth.	• Required • Up to two building entrances visible from the street is allowed.	Required	Required

[1] Porches and awnings may encroach beyond street setback area by 2'.

Table 3: Lot and Building Design Criteria: Non-Residential

		Civic/Institutional	Neighborhood Commercial	Urban Commercial	Large Commercial	Industrial/General Commercial
Minimum Lot Area (sq. ft.)		N/A	3,500	3,500	10,000	N/A
Minimum Lot Width (ft.)		25	25	25	25	N/A
Minimum Street Frontage (feet)		20	20	20	20	50
Minimum Frontage Buildout		N/A	40%	80%	N/A	N/A
Building Setbacks (feet)	**Street [1]**	0 (Min.)	0	0 (Min.); 12 (Max.)	• Town Center Development Area: 2 (Min.); 12 (Max.) • Other Permitted Development Areas: 10 (Min.)	10 (Min.)
	Side	0 (Min.)	0 (Min.)	0 (Min.)	30' (Min.) from property used or designated as neighborhood residential or multiple-use/ transitional in the Land Use Plan	• 30' (Min.) from property used or designated as neighborhood residential, multiple-use/ transitional, or local center in the MPD Land Use Plan. • In BIC Development Area: 75' (Min.) from property zoned AG-R and R Districts
	Rear	• No Alley or Rear Drive: 20' (Min.) • Abutting Alley or Rear Drive: 2' (Min.)	• No Alley or Rear Drive: 20' (Min.) • Abutting Alley or Rear Drive: 2' (Min.)	• 2'	30' from property used or designated as neighborhood residential or multiple-use/ transitional in the Land Use Plan	• 30' (Min.) from property used or designated as neighborhood residential, multiple-use/ transitional, or local center in the MPD Land Use Plan. • In BIC Development Area: 75' (Min.) from property zoned AG-R and R Districts
Garage, Parking Lot, and Access Placement		N/A	• Unless fully below grade, parking areas shall not be located between buildings and street • Side area parking lots shall not project in front of the building façade. Side area parking shall not be located on a block corner.	• Unless fully below grade, parking areas shall not be located between buildings and street • Side area parking lots shall not project in front of the building façade. Side area parking shall never be located on a block corner. • The ground floor of street-facing parking structures shall be screened by inhabited space, landscaping, or other architectural features.	Max. of one double-loaded parking aisle (2 parking bays) is permitted between the building and street right-of-way	N/A
Street-Facing/Pedestrian Entrances		Yes	Yes	Yes	Yes	No

[1] Porches and awnings may encroach beyond street setback area by 2'.

6.3. Development Area Profiles

Profiles for each development area that include the development area purpose, allowed building types, and design standards are provided on pages 29-34.

A. Regional Center (RC) Development Area

1. **Purpose**

   i. The Regional Center designation is primarily located along the Creek Turnpike and Highway 412 and is generally intended to provide the greatest variety of building types while establishing walkability.

   ii. The following are typical characteristics of the Regional Center:

      a. Large-scale and medium-scale commercial, mixed-use, and/or multi-family

      b. Buildings located on larger lots and city blocks in a connected format

      c. Coordinated to facilitate vehicular and pedestrian access from nearby neighborhoods

      d. Landscaped to be attractive and provide appropriate buffering to residential uses

      e. Parking is primarily situated behind primary buildings although limited parking is allowed in front of buildings per Table 3.

2. **Allowed Building Types**

   - Large Commercial
   - Urban Commercial
   - Neighborhood Commercial
   - Mixed-Use Building
   - Civic/Institutional
   - Apartments/Condos
   - Multi-Unit House
   - Townhouse
   - Open Space

3. **Development Area Standards**

RC Development Area Standards
Building Height (max.)
90'
Block Length (max.)
1,600' ▪ Block lengths over 1,000' require a mid-block crossing

B. Town Center (TC) Development Area

1. Purpose

i. The Town Center designation is established to promote the development of a downtown as a high-intensity, connected, and walkable urban center for the Fair Oaks community and the region.

ii. The following are typical characteristics of the Town Center:

a. A mixture of commercial, mixed-use, and apartments with active building frontages set close to the sidewalk.

b. Attached buildings forming a continuous street wall.

c. Pedestrian-oriented scale with sidewalks and street trees.

2. Allowed Building Types

- Urban Commercial
- Neighborhood Commercial
- Mixed-Use Building
- Civic/Institutional
- Apartments/Condos
- Multi-Unit House
- Townhouse
- Open Space

3. Development Area Standards

TC Development Area Standards
Building Height (max.)
95'
Block Length (max.)
500'

C. Town Center-Neighborhood (TC-N) Development Area

1. Purpose

i. The Town Center-Neighborhood designation is established to promote the development of a higher-intensity residential neighborhood with seamless integration with the downtown.

ii. The following are typical characteristics of TC-N:

a. A mixture of residential building types with modest setbacks and inviting building frontages along city blocks.

b. Vehicle access from alleys or side drives.

c. Pedestrian-oriented scale with sidewalks and street trees.

2. Allowed Building Type

- Neighborhood Commercial
- Mixed-Use Building
- Civic/Institutional
- Apartments/Condos
- Cottage House Development
- Multi-Unit House
- Duplex
- Townhouse
- Small Lot Single-Family Detached
- Standard Lot Single-Family Detached
- Open Space

3. Development Area Standards

TC-N Development Area Standards
Building Height (max.)
3 stories or 50'
Block Length (max.)
500'

D. Village Center (VC) Development Area

1. Purpose

i. The Village Center designation is established to promote higher intensity, village centers, typically located within ¼ walk sheds from intersections of major streets and near the regional center and town center.

ii. The following are typical characteristics of VC:

a. A mixture of commercial retail, professional offices, and dwelling units located in townhouses, apartments/condos, and in upper stories of rear of mixed-use buildings.

b. Buildings with active building frontages set at or close to the sidewalk.

c. Pedestrian-oriented scale with sidewalks and trees.

2. Allowed Building Types

- Urban Commercial
- Neighborhood Commercial
- Mixed-Use Building
- Civic/Institutional
- Apartments/Condos
- Cottage House Development
- Multi-Unit House
- Duplex
- Townhouse
- Small Lot Single-Family Detached
- Standard Lot Single-Family Detached
- Open Space

3. Development Area Standards

VC Development Area Standards
Building Height (max.)
60'
Block Length (max.)
600'

E. Neighborhood Center (NC) Development Area

1. Purpose

i. The Neighborhood Center designation is established to enhance and support a full range of housing types, higher intensity neighborhood centers within ¼ walk sheds of major street intersections, and small-scale commercial uses at local street intersections.

ii. The following are typical characteristics of NC:

a. A mixture of commercial and mixed-use at neighborhood centers, low intensity residential up to apartments/condos near neighborhood centers, and small-scale commercial at local street intersections.

b. Pedestrian-oriented scale with sidewalks and trees.

2. Allowed Building Types

- Neighborhood Commercial
- Mixed-Use Building
- Civic/Institutional
- Apartments/Condos
- Cottage House Development
- Multi-Unit House
- Duplex
- Townhouse
- Small Lot Single-Family Detached
- Standard Lot Single-Family Detached
- Large Lot Single-Family Detached
- Estate Lot Single-Family Detached
- Open Space

3. Development Area Standards

NC Development Area Standards
Building Height (max.)
45'
Block Length (max.)
600'

F. Business & Industrial (BIC) Development Area

1. Purpose

i. The Business & Industrial designation is established to provide a location for low to medium intensity industrial uses near Highway 412.

ii. The following are typical characteristics of the BIC:

a. Office/warehouse, distribution, wholesale assembly, and manufacturing or processing facilities that may require substantial amounts of outdoor storage or operations.

b. Uses typically generate heavy traffic.

c. Buildings located on larger lots on bigger city blocks

d. Landscaped to be attractive and provide appropriate buffering to other uses.

2. Allowed Building Types

- Industrial/General Commercial
- Open Space

3. Development Area Standards

BIC Development Area Standards
Building Height (max.)
-
Block Length (max.)
-

Section 7. Transportation Development Standards

7.1. Transportation and Access

A. Purpose

The Fair Oaks Master Plan has been planned using design principles that place an emphasis on creating walkable, bikeable, and pedestrian friendly designed streets. The relationship between the design of a transportation facility/street (ie: how wide its lanes are, how often it accommodates driveways, whether it has on-street parking, whether it has street trees, etc.) and the land uses it serves, is critical to the success of a walkable community. Well-designed streets set the stage for many dimensions of community life and can have a profound effect on the image and identity of a neighborhood. The City of Tulsa's Comprehensive Plans seeks to implement a context sensitive solutions approach to transportation infrastructure with the resolution and adoption of the City of Tulsa Complete Streets Procedural Manual by the City Council and Mayor of Tulsa on February 2, 2012.

"That in the interest of fully implementing the transportation elements of the Comprehensive Plan, it is the consensus of this Council and the advice of this council, that future street projects in the City of Tulsa should be planned, designed, and operated, when possible, in accordance with accepted recommended best practices for Context Sensitive Solutions, as outlined by the Institute of Transportation Engineers in Designing Walkable Urban Thoroughfares: A Context Sensitive Approach, as amended and/or updated, to provide for a balanced, responsible, and equitable way to accommodate all users including pedestrians, bicyclists, public transit riders, freight providers, emergency responders, and motorists."

B. Street Types and Standards

To align with the city's adopted policies and long-range planning goals, the design of all streets and transportation facilities within the Fair Oaks MPD boundaries shall refer to the Street Network Plan shown in Exhibit 4: for placement/alignment of future streets. Prior to beginning detailed engineering plans, the Street Standards shown in Table 4, Exhibits 6-16 Illustrative Street Sections, and the City of Tulsa's Complete Streets Manual shall be a first point of reference to determine the horizontal layout of all roadways.

The design elements of streets must meet or exceed the minimum design criteria, standards and/or regulations of the City of Tulsa, Oklahoma Department of Transportation (ODOT), Federal Highway Administration (FHWA), Manual on Uniform Traffic Control Devices (MUTCD), Public Right-of-Way Accessibility Guidelines (PROWAG), American Association of State Highway and Transportation Officials (AASHTO) Geometric Design and Roadside Design Guide, and Oklahoma Department of Environmental Quality (ODEQ).

C. Online Geodatabase Map

MPD-regulated streets are shown in the online geodatabase map available on the City of Tulsa's website and must be located within 300 feet of the alignment shown on that map. Streets that are not MPD-regulated are illustrative only and are intended to convey the overall design concept.

D. Alley and Urban Residential Street Standard

All Street designs that include utilities, street trees within the right-of-way, and/or utilize an alley shall be governed by street standards STD 726 A, STD 726 B, and STD 727A, as approved by City of Tulsa Engineering in March of 2024 (see exhibit 17 for reference). These standards establish the standards for utility placement within a public street right-of-way, the use of street trees within the public right-of-way, and the design of rear alleys for residential development.

Exhibit 4. Street Network Plan

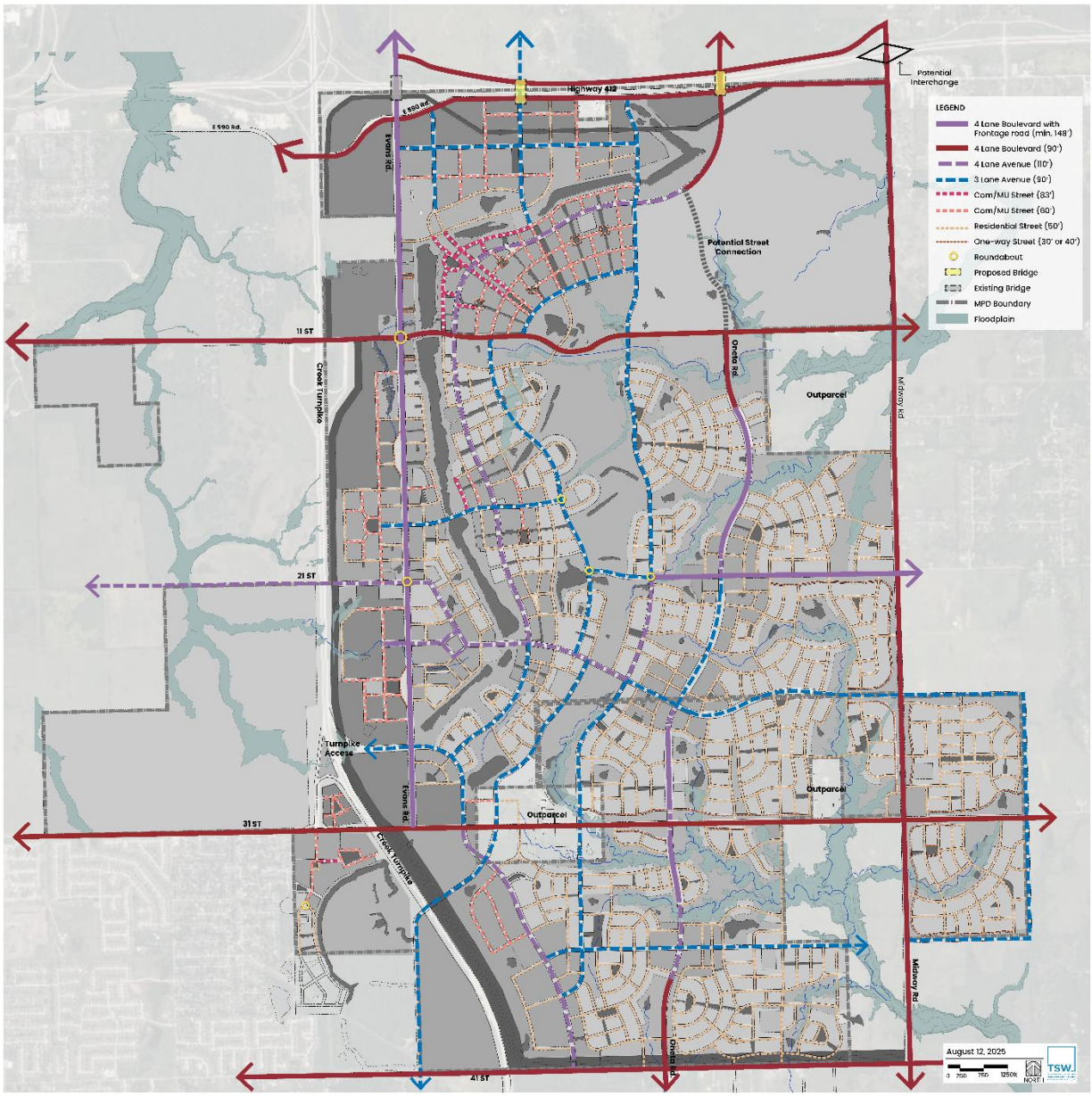


Table 4. Street Standards Table

ATTACHMENT B

Table 4: Street Standards Table

The standards are intended to reflect the design intent of the illustrative street sections in this MPD

Street Name	AVE-C4/C3-148	AVE-C4-110	AVE-C3-110	BLVD-90	AVE-C4-90	AVE-C3-90	ST-C4-83	ST-C4/C3-60	ST-C3-50 (1)	ST-C3-50 (2)	AL-25-15
Description	4-lane avenue	4-lane avenue	4-lane avenue	4-lane boulevard	3-lane avenue	3-lane avenue	2-lane street	2-lane street	2-lane street	2-lane yield street	Alley
Intended location	Major arterial roads	Major arterials going through commercial and mixed-use areas	Major arterials going through residential areas	Major section road	Minor arterials going through commercial and mixed-use areas	Minor arterials going through residential areas	Mixed-use or commercial streets in activity centers with higher parking needs	Mixed-use or commercial streets in activity centers	Typical residential street	Yield street with no designated on-street parking	Where alleys are provided
ROW width	148 ft.	110 ft.	110 ft.	90 ft.	90 ft.	90 ft.	83 ft.	60 ft.	50 ft.	50 ft.	25 ft.
Travel lane width	11 ft.	11 ft. outside lanes; 10 ft. inside lanes	11 ft. outside lanes; 10 ft. inside lanes	11 ft.	10.5 ft.	11 ft.	11 ft.	10 ft.	10 ft.	24 ft.	15 ft.
Typical section	116 ft.	72 ft.	72 ft.	58 ft.	51 ft.	52 ft.	60 ft.	36 ft.	27 ft.	24 ft.	15 ft.
Number of travel lanes	4 primary travel lanes; up to 2 frontage road travel lanes	4	4	4	2	2	2	2	2	1	1
Frontage road	Up to 2 one-way frontage roads; N/A for suburban or rural areas	N/A	N/A	N/A	N/A	N/A	N/A	N/A	N/A	N/A	N/A
Median width	Center 14 ft.; Between primary and frontage road 10 ft.	14 ft.	14 ft.	14 ft.	14 ft.	14 ft.	N/A	N/A	N/A	N/A	N/A
On-street parking	8 ft. for parallel parking (two sides) along frontage roads	8 ft. for parallel parking (two sides)	8 ft. for parallel parking (two sides)	N/A	8 ft. for parallel parking (two sides)	8 ft. for parallel parking (two sides)	19 ft. for angled parking (two sides)	8 ft. for parallel parking (two sides)	7 ft. for parallel parking (one side)	N/A	N/A
Landscaping	6 ft. between on-street parking and sidewalk/ multi-use path = 12 ft. total	5 ft. located adjacent to sidewalks = 10 ft. total	6.5 ft. between on-street parking and sidewalk/ multi-use path = 13 ft. total	6 ft. between travel lane and sidewalk/multi-use path = 12 ft. total	5 ft. (one side); 5.5 ft. (one side) located adjacent to sidewalks = 10.5 ft. total	6.5 ft. between on-street parking and sidewalk/ multi-use path = 13 ft. total	5.5 ft between on-street parking and sidewalk = 11 ft. total	6 ft. between on-street parking and sidewalk = 12 ft.	6.5 ft. between on-street parking and sidewalk = 13 ft. total	6 ft. between street and sidewalk = 12 ft. total	5 ft. on both sides = 10 ft. total
Planter buffer	N/A	N/A	2.5 ft. at the outer edges of ROW (two sides)	N/A	N/A	2.5 ft. at the outer edges of ROW (two sides)	N/A	N/A	N/A	2 ft. at the outer edges of ROW (two sides)	N/A
Landscape trees	Per Central Business District requirements	Per Central Business District requirements	Per Central Business District requirements	Per Central Business District requirements	Per Central Business District requirements	Per Central Business District requirements	Per Central Business District requirements	Per Central Business District requirements	Per Central Business District requirements	Per Central Business District requirements	N/A
Sidewalk	6 ft. (one side) at the outer edge of ROW	6 ft. (two sides) at the outer edges of ROW	6 ft. (one side) between landscape and planter buffer	6 ft. (one side) at the outer edge of ROW	6 ft. (two sides) at the outer edges of ROW	6 ft. (one side) between landscape and planter buffer	6 ft. at the outer edge of ROW (two sides)	6 ft. at the outer edge of ROW (two sides)	5 ft. (Two sides)	5 ft. (Two sides)	N/A
Multi-use trail	14 ft. (one side) at the outer edge of ROW	14 ft. (one side) between landscape and on-street parking	14 ft. (one side) between landscape and planter buffer	14 ft. (one side) at the outer edge of ROW	14 ft. (one side)	14 ft. (one side) between landscape and planter buffer	N/A	N/A	N/A	N/A	N/A
Curb	6 in.	6 in.	6 in.	6 in.	6 in.	6 in.	6 in.	6 in.	6 in.	6 in.	6 in.
Engineering criteria	Per current city standard& STD 726B General Notes & Utility Placement	Per current city standard& STD 726B General Notes & Utility Placement	Per current city standard& STD 726B General Notes & Utility Placement	Per current city standard& STD 726B General Notes & Utility Placement	Per current city standard& STD 726B General Notes & Utility Placement	Per current city standard& STD 726B General Notes & Utility Placement	Per current city standard & STD 726B General Notes & Utility Placement	Per current city standard & STD 726B General Notes & Utility Placement	Per current city standard & STD 726B General Notes & Utility Placement	Per current city standard & STD 726B General Notes & Utility Placement	Per current city standard & STD 726-7A

Exhibit 6. BLVD-90

Fair Oaks Street Sections — BLVD -90

4-Lane Boulevard: major arterial section road with no on-street parking. No reverse frontage development may be allowed.

Better to work with frontage road going through urban development areas: see BLVD-C4/C3-148

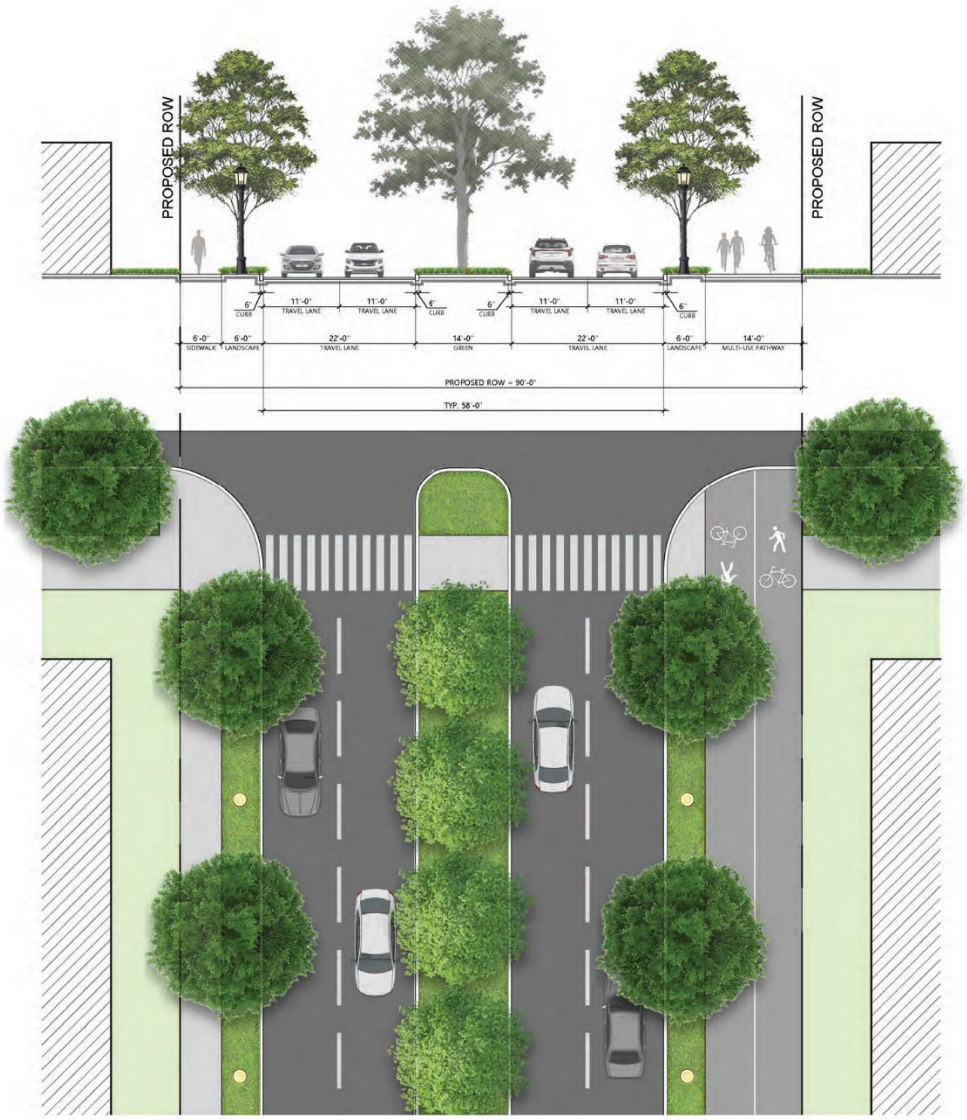


Exhibit 7. AVE-C4-110

Fair Oaks Street Sections — AVE-C4-110

4-lane Avenue: major arterials going through commercial and mixed-use areas.

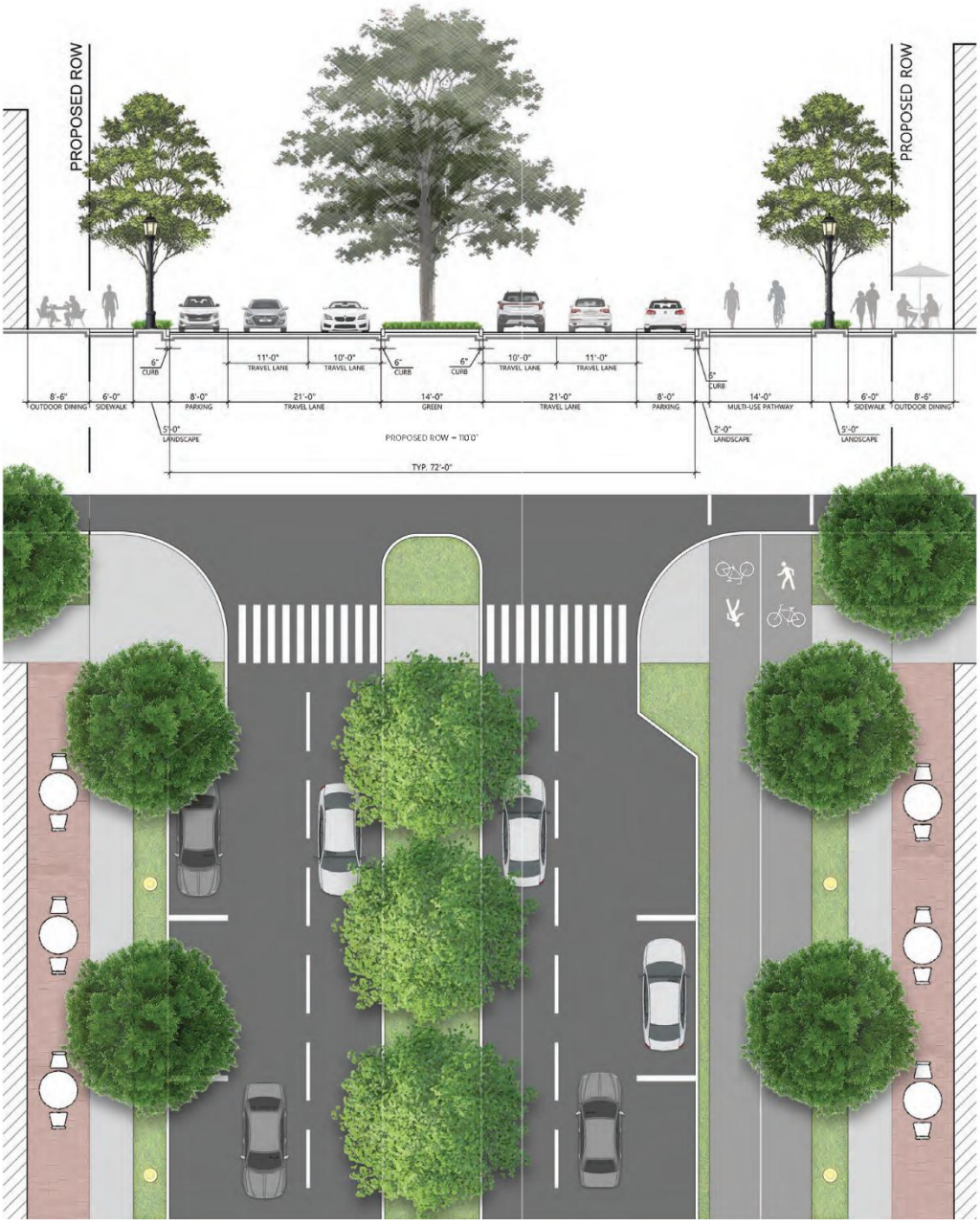


Exhibit 8. AVE-C4/c3-148

Fair Oaks Street Sections — AVE-C4/C3-148

4-lane Avenue: major arterial with one-way frontage road on one or both sides based on context.

Frontage road may not be necessary when going through suburban or rural areas: see previous BLVD-90 section.

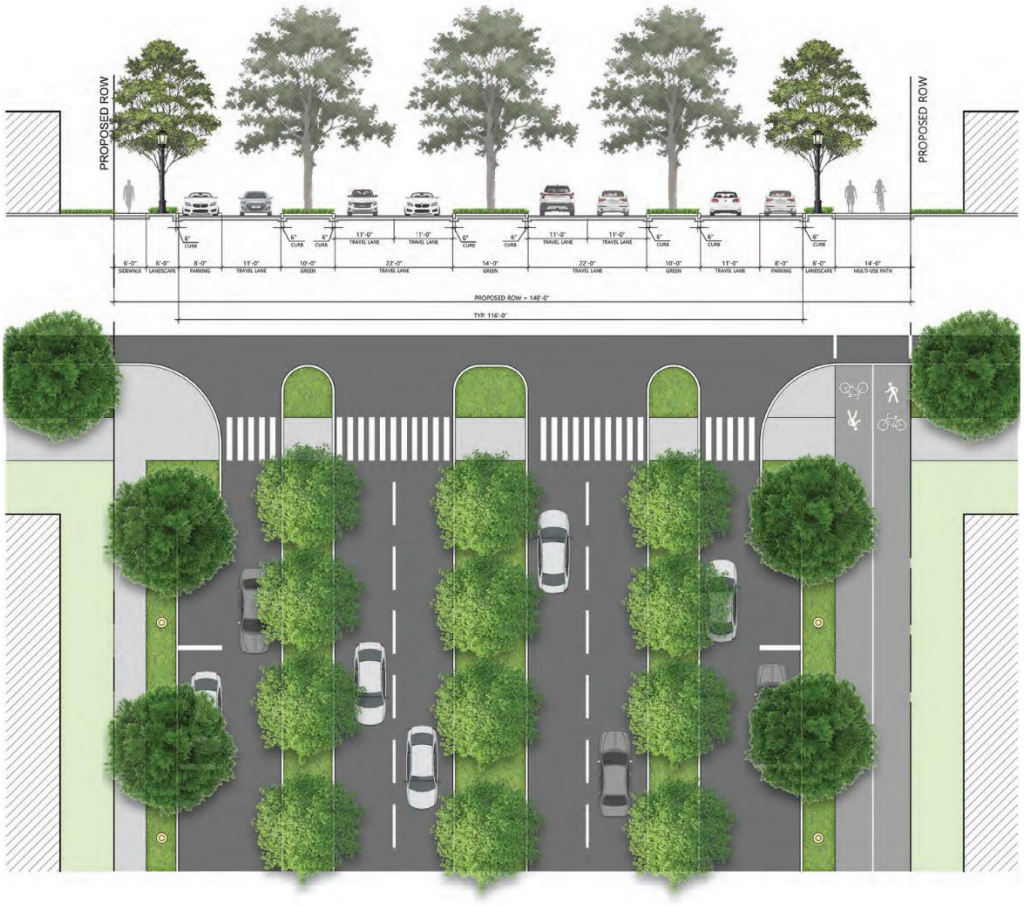


Exhibit 9. AVE-C3-110

Fair Oaks Street Sections — AVE-C3-110

4-lane avenue: major arterials going through residential areas.

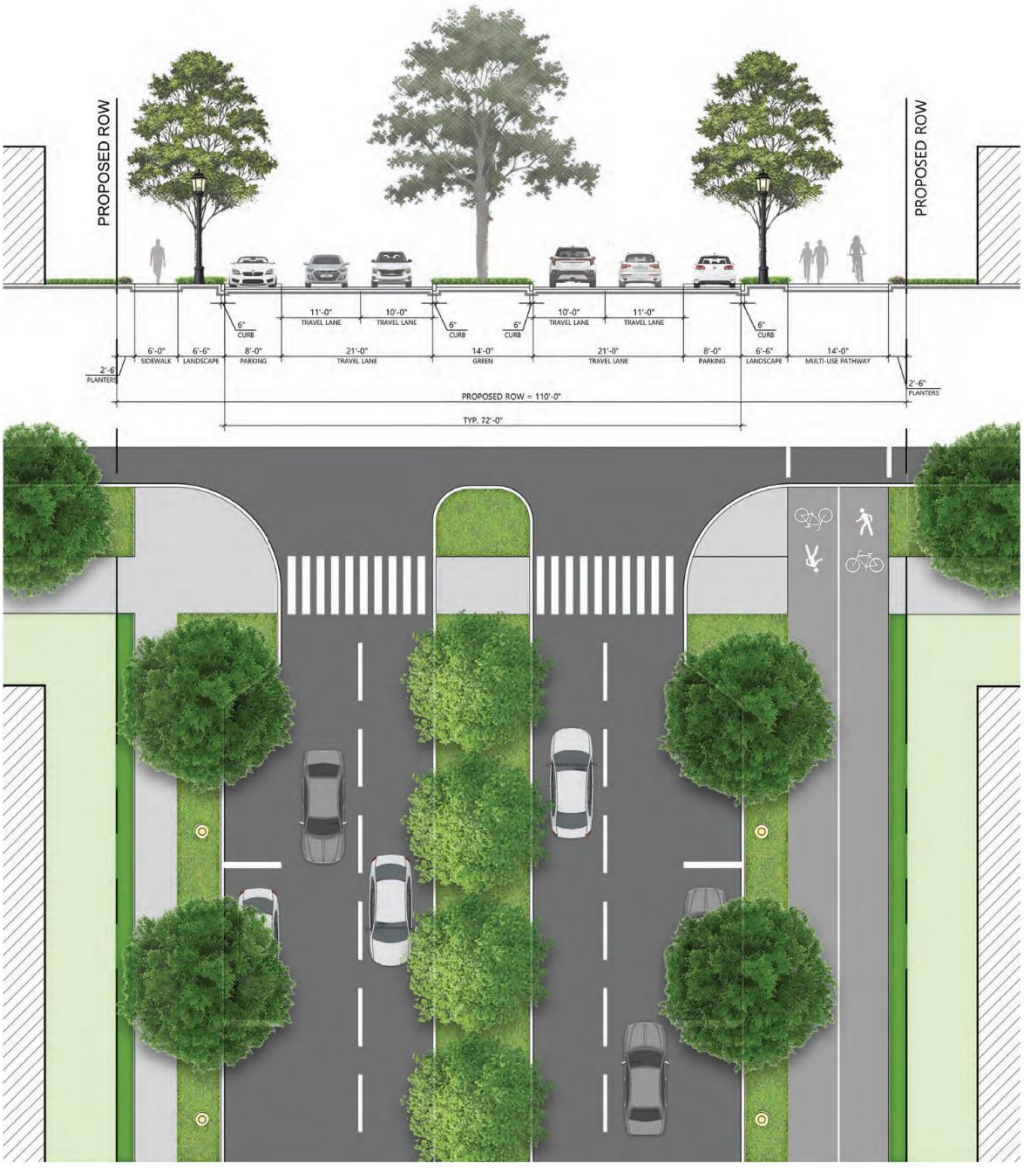


Exhibit 10. AVE-C4-90

Fair Oaks Street Sections — AVE-C4-90

3-lane Avenue: minor arterials going through commercial and mixed-use areas.

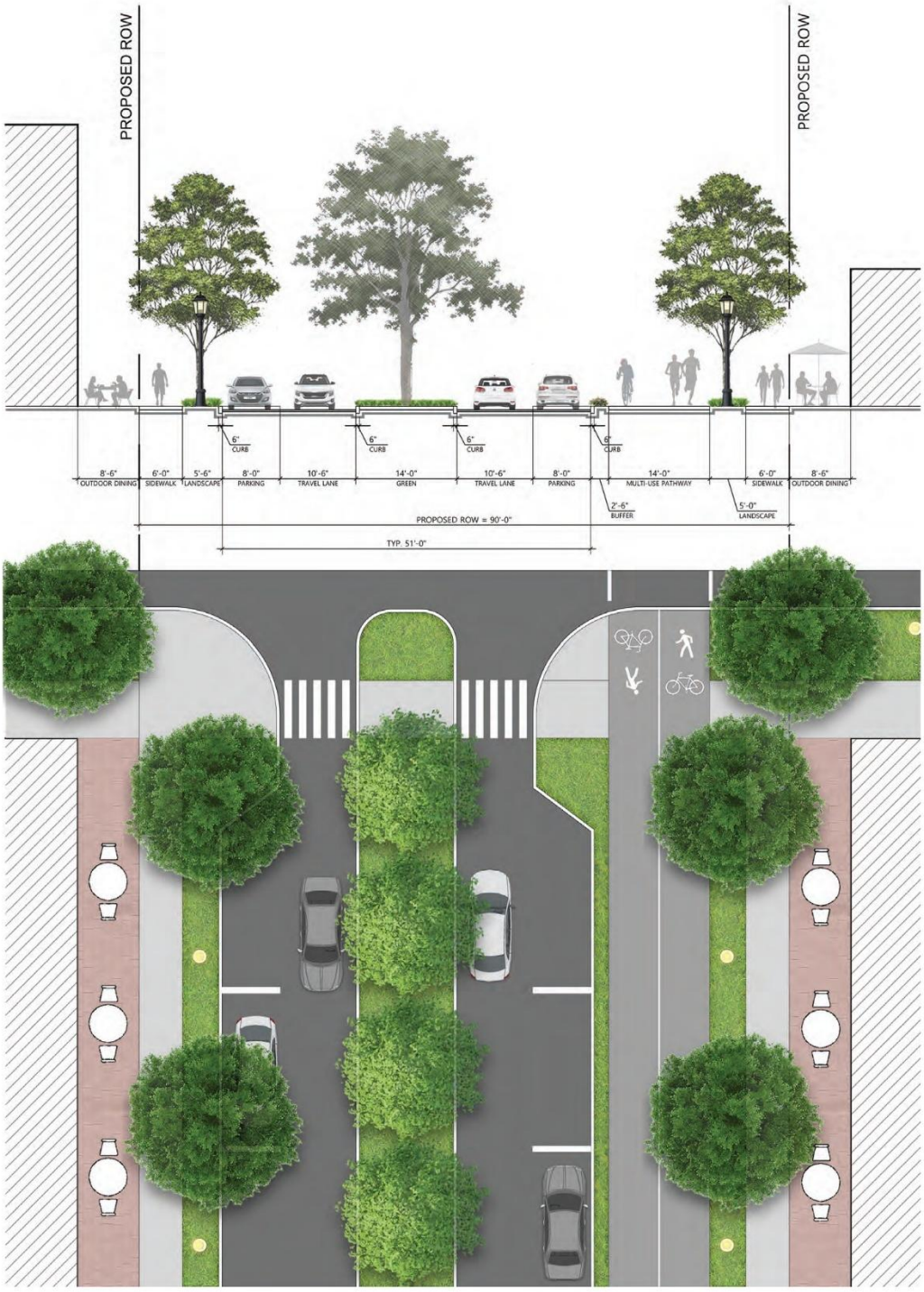


Exhibit 11. AVE-C3-90

Fair Oaks Street Sections — AVE-C3-90

3-lane Avenue: minor arterials going through residential areas.

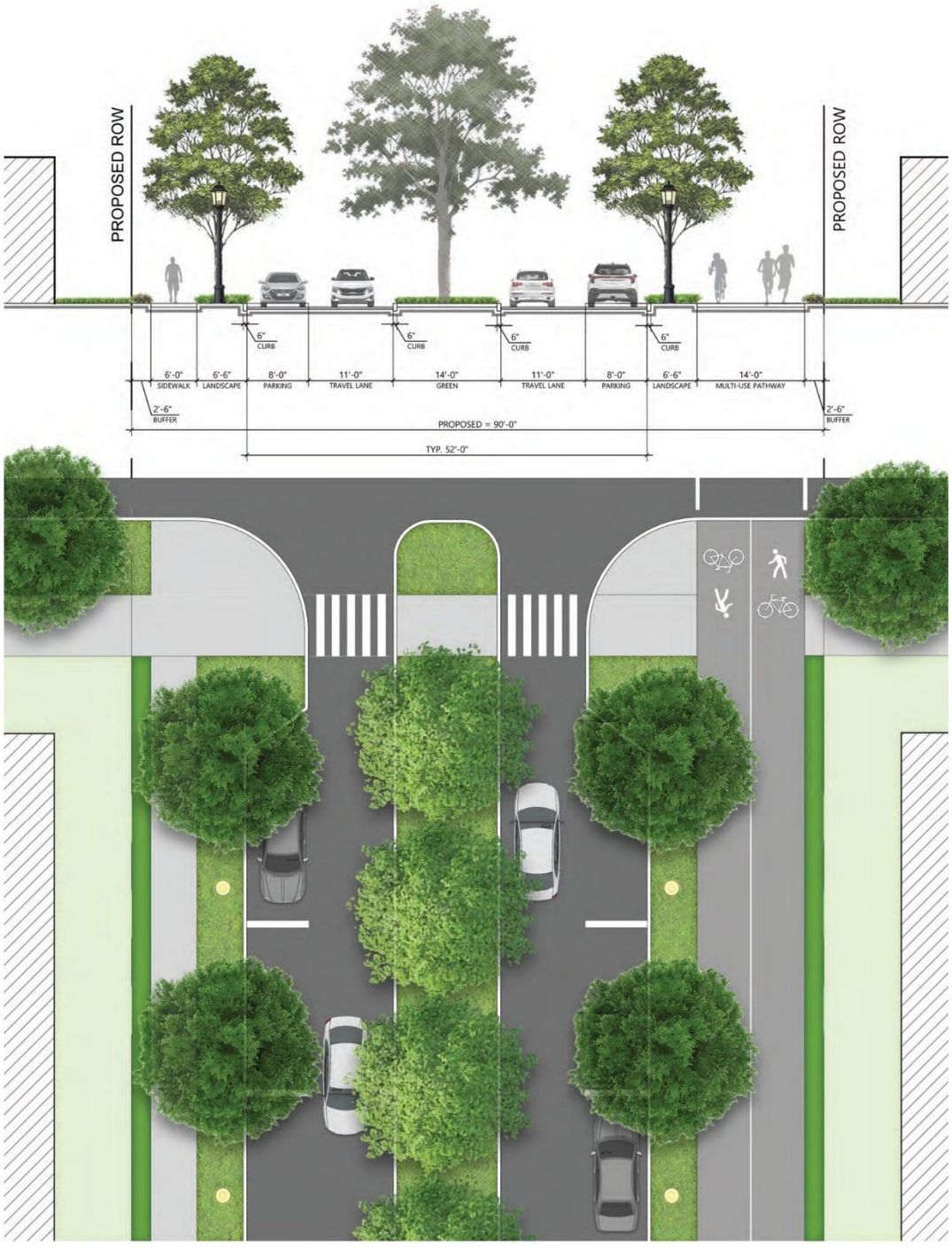


Exhibit 12. ST-C4-83

Fair Oaks Street Sections — ST-C4-83

2-lane Mixed-use or Commercial Streets in activity centers with higher parking need. This section also applies to downtown as two lane one-way street with parking on both sides.

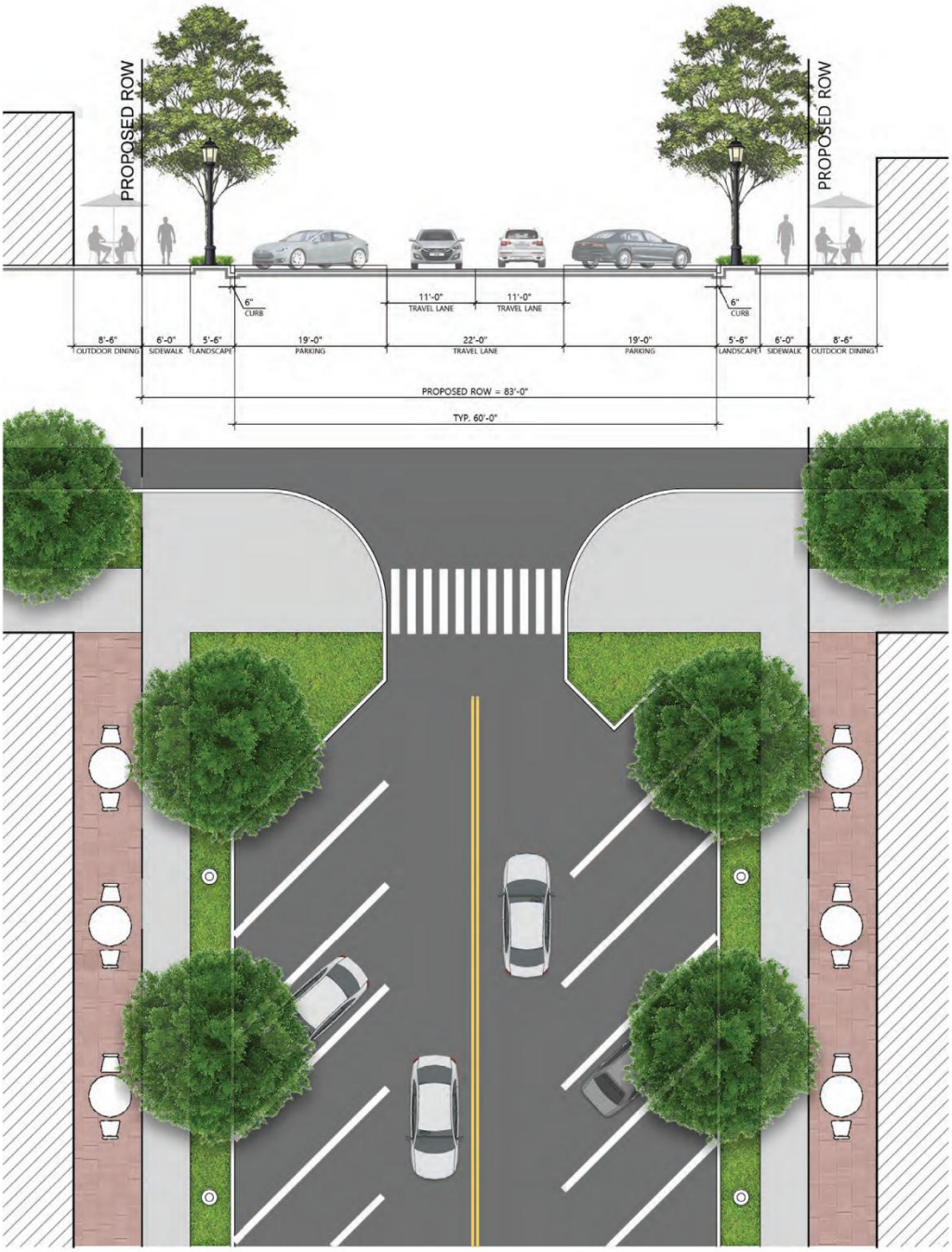


Exhibit 13. ST-C4/c3-60

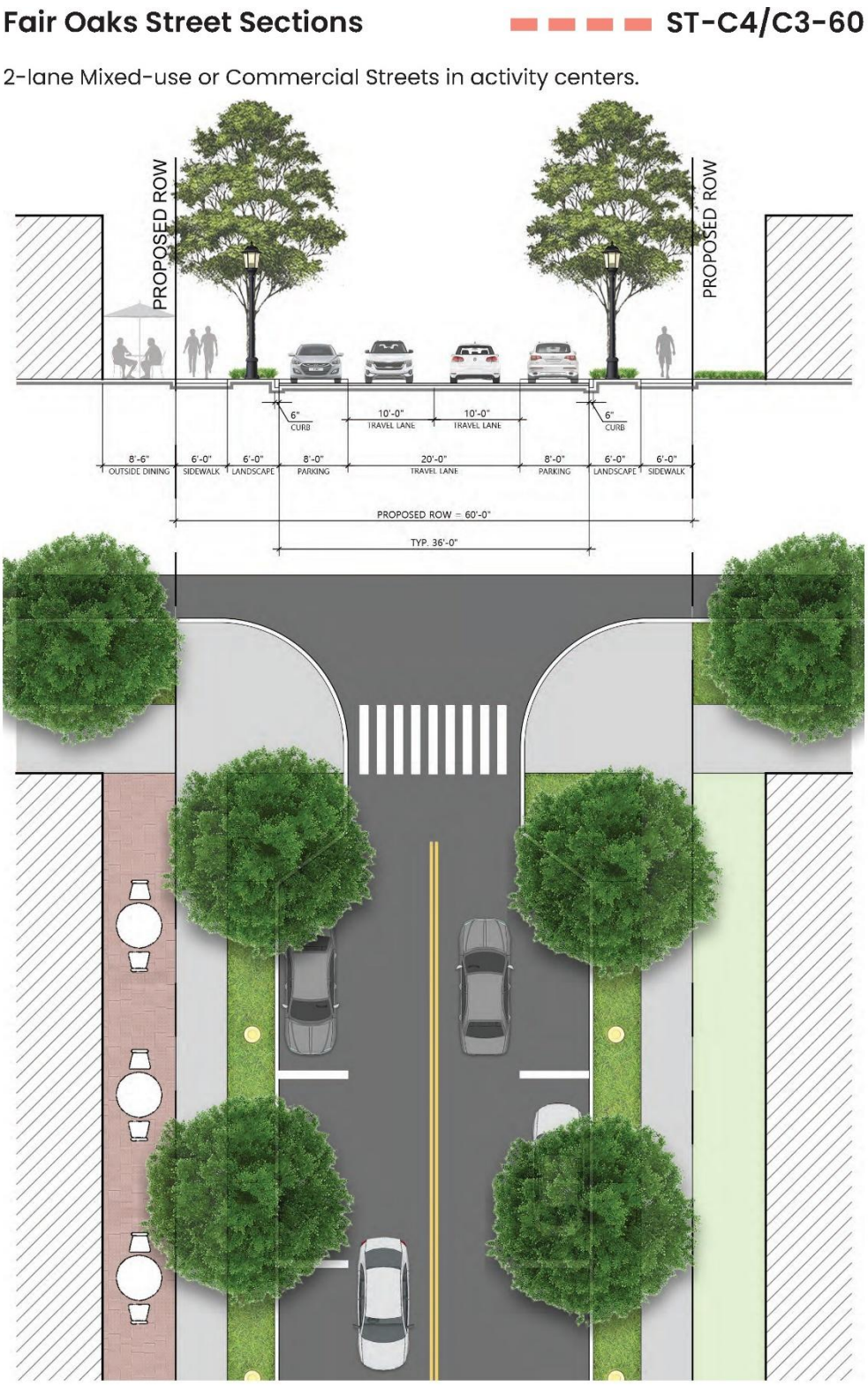


Exhibit 14. ST-C3-50

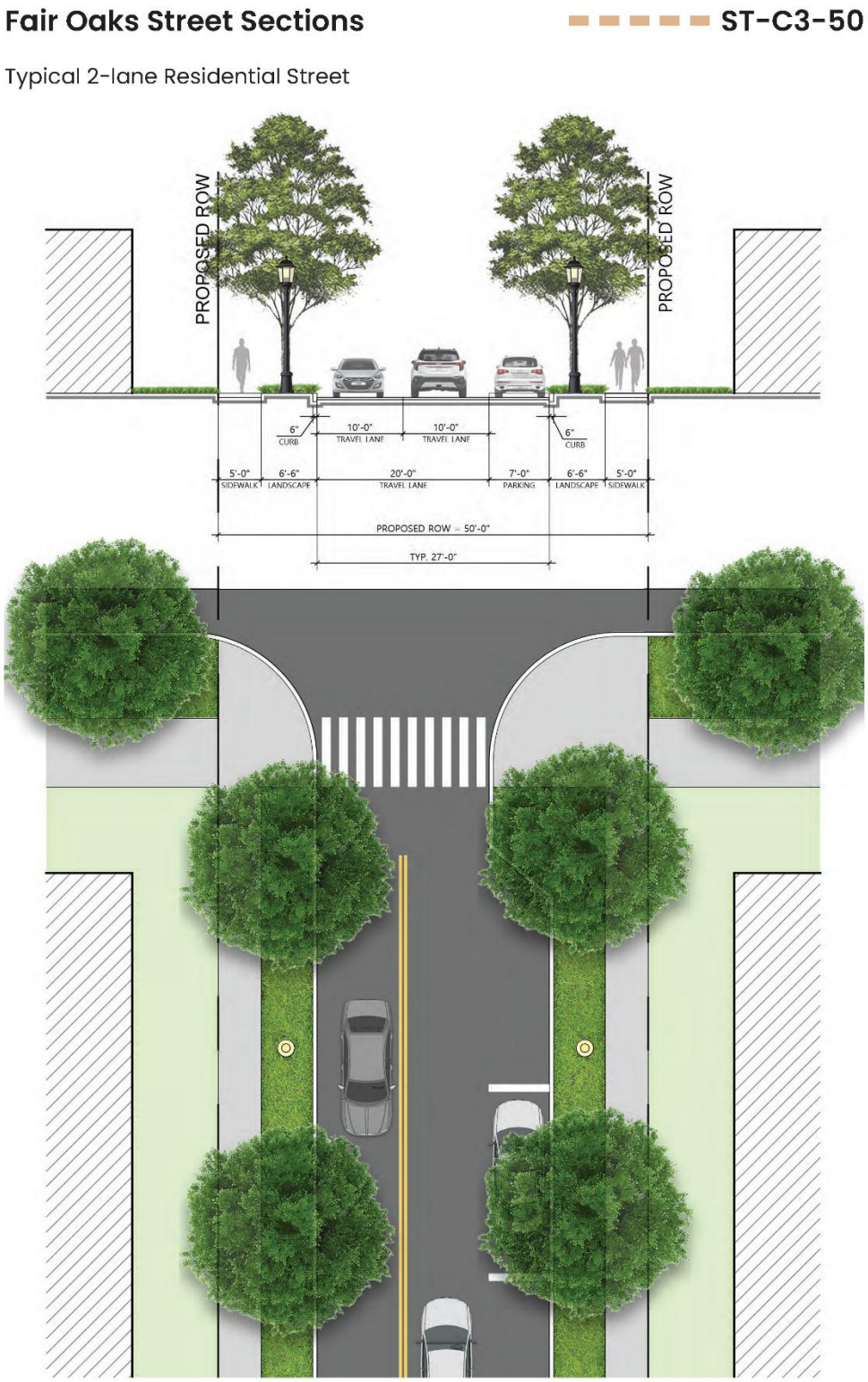


Exhibit 15. ST-C3-50

Fair Oaks Street Sections

ST-C3-50

2-lane Yield Street

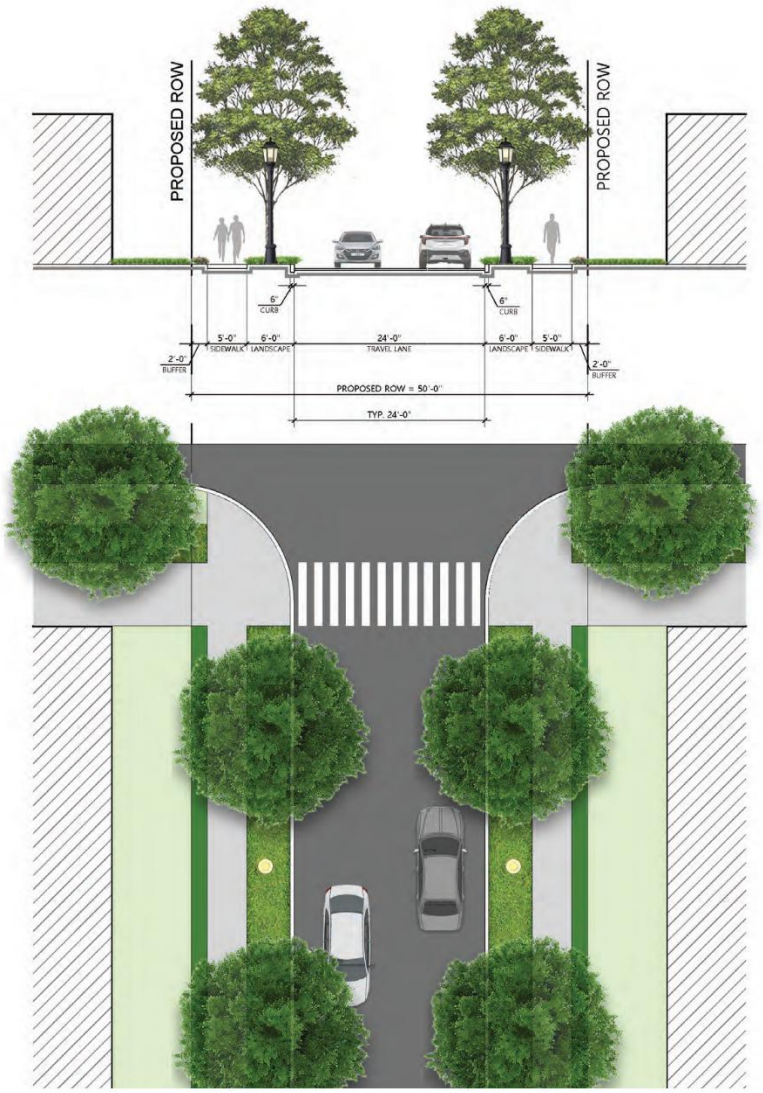


Exhibit 16. AL-25-15

Fair Oaks Street Sections AL-25-15

Typical Alley Section

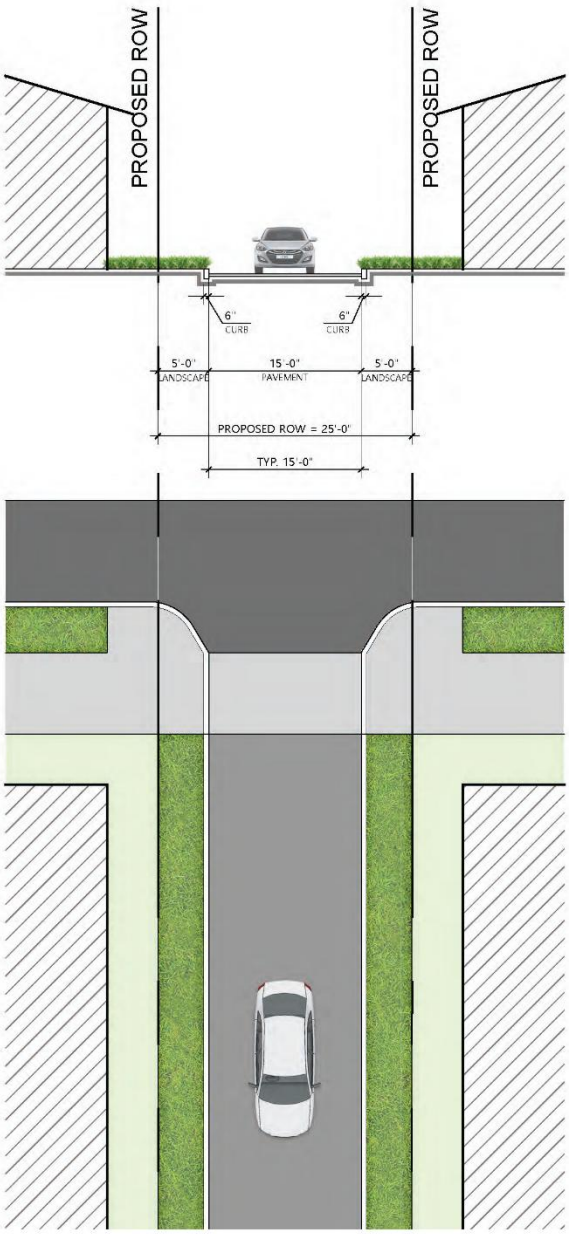
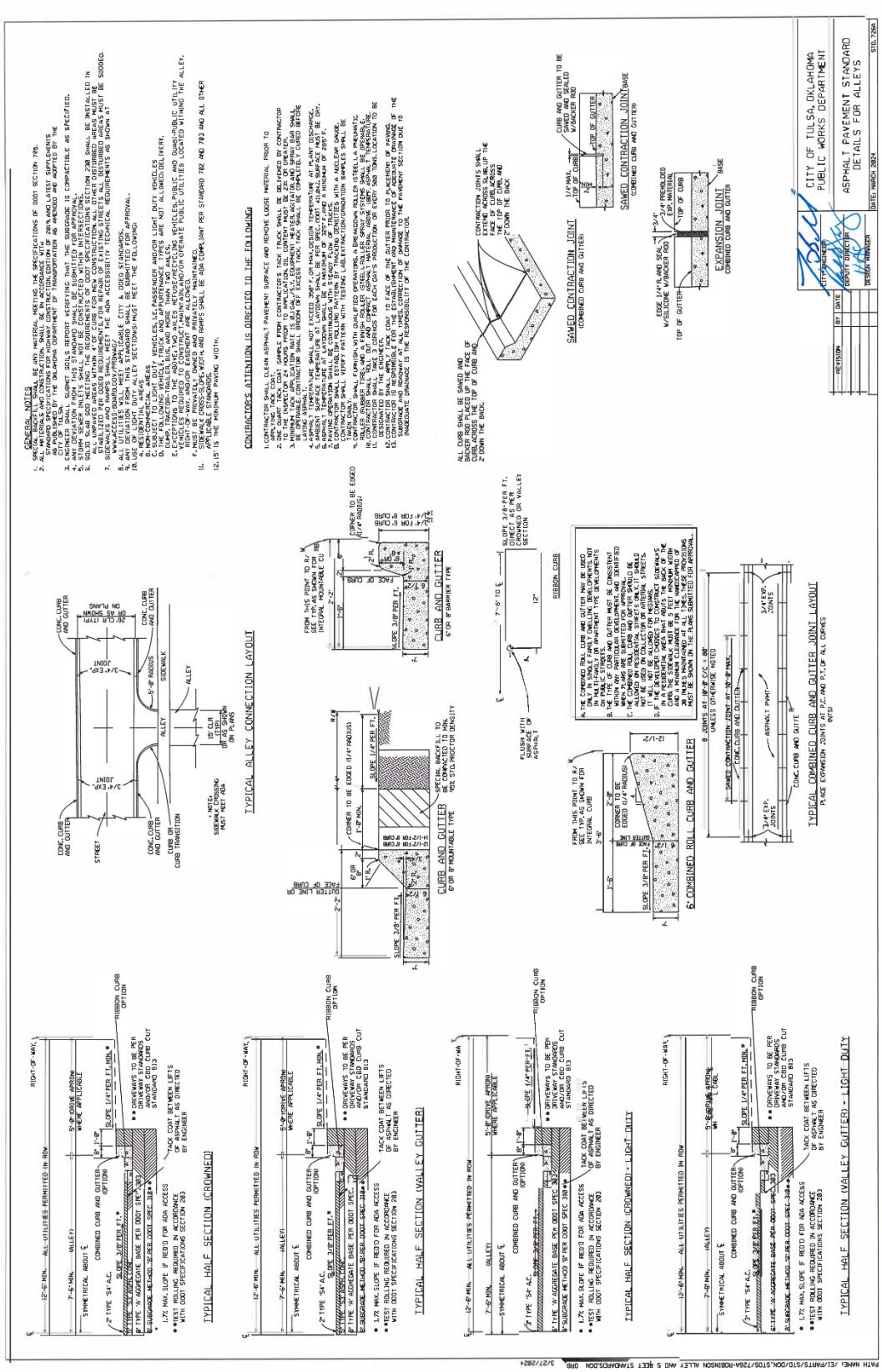
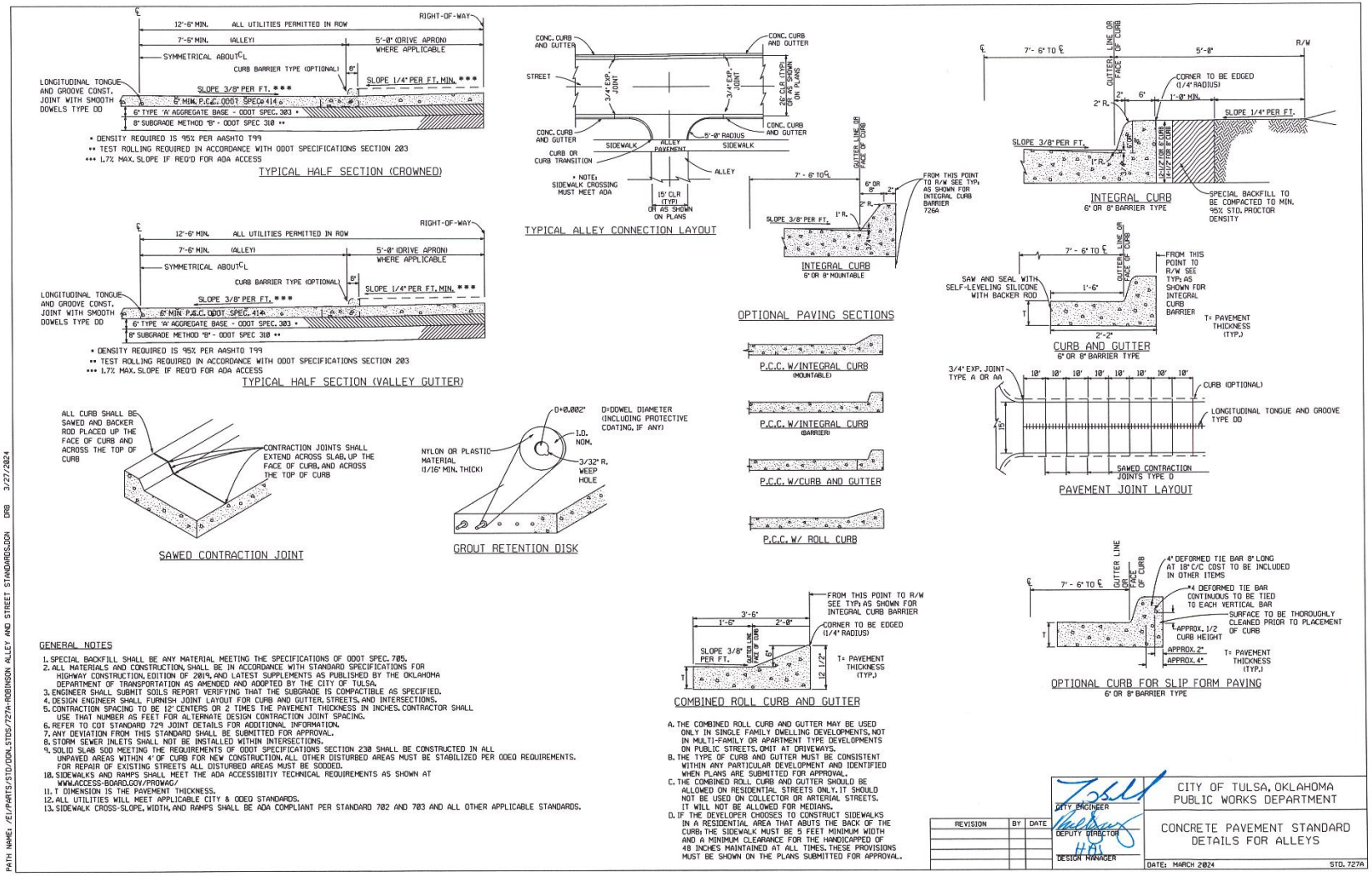


Exhibit 17. STD 726 A, STD 726 B, and STD 727A



RIGHT OF WAY
LANDSCAPE TREES.(SEE GENERAL NOTE 1)
ALL UTILITIES SHALL BE WITHIN THE RIGHT OF WAY. (SEE GENERAL NOTE 2)
53'-0" ROW
27'-0" (EDGE OF CURB)
12'-0" CROWN (TYP)
7'-0"
PARKING LANE EITHER SIDE
6'-0"
DRIVE AISLE
2'-0"
GRR MIRRORED
18'-0" DRIVE AISLE EITHER SIDE
SLOPE 3/8" PER FOOT (TYP)
ASPHALT PAVEMENT (SEE STD 726) CONCRETE PAVEMENT (SEE STD 727)
SANITARY/STORM SEWER (VARIES)
WATER (VARIES)
6'-0" MIN.
WATER METER (TYP)
5'-0" LANDSCAPE
5'-0" SIDEWALK
1'-0"
6'-0" SIDEWALK
SLOPE 1/4" PER FT.
SLOPE 1/4" PER FT.
CONC SIDEWALK (5' WIDTH TYP.)
1/2 OF REQUIRED EASEMENT WIDTH BASED ON DEPTH OF PIPE MIN.
SANITARY/STORM SEWER (VARIES)
CITY OF TULSA, OKLAHOMA
PUBLIC WORKS DEPARTMENT
NEW URBAN
RESIDENTIAL STREET
ASPHALT OR CONCRETE
DATE: MARCH 2024
STD. 726 B
REVISION
BY
DATE
CITY ENGINEER
DEPUTY DIRECTOR
DIRECTOR
DESIGN MANAGER
GENERAL NOTES
1. LANDSCAPE TREES: FOR PURPOSE OF STREET TREE ORDINANCE, THIS STREET SHALL COMPLY WITH CENTRAL BUSINESS DISTRICT AREA REQUIREMENTS.
2. UTILITIES
A. PERIMETER EASEMENTS ARE NOT REQUIRED.
B. WATER SERVICE CONNECTIONS SHALL BE ORIENTED AWAY FROM THE STREET AND INSTALLED PERPENDICULAR TO ROW BUT OUTSIDE PAVED STREET AREA.
C. ALL UTILITIES WILL MEET APPLICABLE CITY & ODEQ STANDARDS.
D. WATER MAINS (PREFERRED LOCATIONS)
SOUTH & EAST SIDE OF STREET ROW.
E. ACTUAL PLACEMENT OF UTILITY TYPES MUST MEET MINIMUM OFFSET REQUIREMENTS IN ROW TO PROVIDE ACCESS FOR OPERATIONS AND MAINTENANCE, BUT UTILITY LOCATIONS MAY VARY WITHIN RIGHT-OF-WAY.
F. SANITARY SEWER AND STORM SEWER MAY BE PLACED IN ALLEY ROW.
G. ANY DEVIATION FROM THIS STANDARD SHALL BE SUBMITTED FOR APPROVAL.
3. STREET & SIDEWALK
A. ASPHALT COT STD 726 OR CONCRETE COT STD 727.
B. SIDEWALKS MINIMUM 5' WIDE MATERIALS PER COT STD 726.
C. CURBS TO BE 6" RETAINING.
D. SIDEWALK LOCATION MAY VARY WITHIN RIGHT-OF-WAY OR WITHIN EASEMENT ON PRIVATE PROPERTY ONLY IF NECESSARY.
E. ALL MATERIALS AND CONSTRUCTION, SHALL BE IN ACCORDANCE WITH STANDARD SPECIFICATIONS FOR HIGHWAY CONSTRUCTION, EDITION OF 2019, AND LATEST SUPPLEMENTS AS PUBLISHED BY THE OKLAHOMA DEPARTMENT OF TRANSPORTATION AS AMENDED AND ADOPTED BY THE CITY OF TULSA -
F. SOLID SLAB SOD MEETING THE REQUIREMENTS OF ODOT SPECIFICATIONS SECTION 230 SHALL BE INSTALLED IN ALL UNPAVED AREAS WITHIN 4' OF CURB FOR NEW CONSTRUCTION. ALL OTHER DISTURBED AREAS MUST BE STABILIZED PER ODEQ REQUIREMENTS. FOR REPAIR OF EXISTING STREETS ALL DISTURBED AREAS MUST BE SODDED.
G. SIDEWALKS AND RAMPS SHALL MEET THE ADA ACCESSIBILITY TECHNICAL REQUIREMENTS AS SHOWN AT WWW.ACCESS-BOARD.GOV/PROWAG/
PATH NAME: /E1/PARTS/STD/DGN.STDS/726B-ROBINSON ALLEY AND STREET STANDARDS.DGN DRB 3/27/2024



GENERAL NOTES

1. SPECIAL BACKFILL SHALL BE ANY MATERIAL MEETING THE SPECIFICATIONS OF ODOT SPEC. 705.
2. ALL MATERIALS AND CONSTRUCTION, SHALL BE IN ACCORDANCE WITH STANDARD SPECIFICATIONS FOR HIGHWAY CONSTRUCTION, EDITION OF 2019, AND LATEST SUPPLEMENTS AS PUBLISHED BY THE OKLAHOMA DEPARTMENT OF TRANSPORTATION AS AMENDED AND ADOPTED BY THE CITY OF TULSA.
3. ENGINEER SHALL SUBMIT SOILS REPORT VERIFYING THAT THE SUBGRADE IS COMPACTIBLE AS SPECIFIED.
4. DESIGN ENGINEER SHALL FURNISH JOINT LAYOUT FOR CURB AND GUTTER, STREETS, AND INTERSECTIONS.
5. CONTRACTION SPACING TO BE 12' CENTERS OR 2 TIMES THE PAVEMENT THICKNESS IN INCHES. CONTRACTOR SHALL USE THAT NUMBER AS FEET FOR ALTERNATE DESIGN CONTRACTION JOINT SPACING.
6. REFER TO COT STANDARD 729 JOINT DETAILS FOR ADDITIONAL INFORMATION.
7. ANY DEVIATION FROM THIS STANDARD SHALL BE SUBMITTED FOR APPROVAL.
8. STORM SEWER INLETS SHALL NOT BE INSTALLED WITHIN INTERSECTIONS.
9. SOLID SLAB SOD MEETING THE REQUIREMENTS OF ODOT SPECIFICATIONS SECTION 230 SHALL BE CONSTRUCTED IN ALL UNPAVED AREAS WITHIN 4' OF CURB FOR NEW CONSTRUCTION. ALL OTHER DISTURBED AREAS MUST BE STABILIZED PER ODEQ REQUIREMENTS. FOR REPAIR OF EXISTING STREETS ALL DISTURBED AREAS MUST BE SODDED.
10. SIDEWALKS AND RAMPS SHALL MEET THE ADA ACCESSIBITIY TECHNICAL REQUIREMENTS AS SHOWN AT WWW.ACCESS-BOARD.GOV/PROWAG/
11. T DIMENSION IS THE PAVEMENT THICKNESS.
12. ALL UTILITIES WILL MEET APPLICABLE CITY & ODEQ STANDARDS.
13. SIDEWALK CROSS-SLOPE, WIDTH, AND RAMPS SHALL BE ADA COMPLIANT PER STANDARD 702 AND 703 AND ALL OTHER APPLICABLE STANDARDS.

A. THE COMBINED ROLL CURB AND GUTTER MAY BE USED ONLY IN SINGLE FAMILY DWELLING DEVELOPMENTS, NOT IN MULTI-FAMILY OR APARTMENT TYPE DEVELOPMENTS ON PUBLIC STREETS. OMIT AT DRIVEWAYS.
B. THE TYPE OF CURB AND GUTTER MUST BE CONSISTENT WITHIN ANY PARTICULAR DEVELOPMENT AND IDENTIFIED WHEN PLANS ARE SUBMITTED FOR APPROVAL.
C. THE COMBINED ROLL CURB AND GUTTER SHOULD BE ALLOWED ON RESIDENTIAL STREETS ONLY. IT SHOULD NOT BE USED ON COLLECTOR OR ARTERIAL STREETS. IT WILL NOT BE ALLOWED FOR MEDIANS.
D. IF THE DEVELOPER CHOOSES TO CONSTRUCT SIDEWALKS IN A RESIDENTIAL AREA THAT ABUTS THE BACK OF THE CURB; THE SIDEWALK MUST BE 5 FEET MINIMUM WIDTH AND A MINIMUM CLEARANCE FOR THE HANDICAPPED OF 48 INCHES MAINTAINED AT ALL TIMES. THESE PROVISIONS MUST BE SHOWN ON THE PLANS SUBMITTED FOR APPROVAL.

REVISION	BY	DATE

CITY ENGINEER
DEPUTY DIRECTOR
DESIGN MANAGER

CITY OF TULSA, OKLAHOMA
PUBLIC WORKS DEPARTMENT

CONCRETE PAVEMENT STANDARD DETAILS FOR ALLEYS

DATE: MARCH 2024 STD. 727A

PATH NAME: /E1/PARTS/STD/DGN/STDS/727A-ROBINSON ALLEY AND STREET STANDARDS.DGN DRB 3/27/2024

E. Street Connectivity

1. Intent

Street layouts should have a clear order of well-connected roads that spread traffic across multiple streets to prevent congestion on main roads. In each residential area, the road system should allow safe, efficient, and easy movement for cars, bikes, and pedestrians, and offer plenty of ways to connect nearby neighborhoods, properties, and land uses. Local neighborhood streets should provide many direct routes to places like parks, schools, and shopping centers. These connections should link different developments together instead of creating barriers between them.

2. Connections to Vacant Land

i. When new development is adjacent to vacant land, all streets, trails, and access ways shall extend through to the boundary lines of the area to provide for the connections to future subdivisions and meet transportation and access needs.

ii. At least two (2) points of access shall be provided per half mile.

3. Alleys/Rear Drives

i. To improve access, reduce street congestion, and enhance the aesthetic and functional quality of neighborhoods, alleys or rear drives are required in the design of subdivisions in the following development areas: Town Center, Town Center Neighborhood, and Village Center.

4. Cross-Access onto Adjacent Properties

All nonresidential development designed with vehicular access from the street shall be designed to allow for cross-access to adjacent properties to encourage shared parking and shared access points on public or private streets. When cross-access is deemed impractical by the land use administrator on the basis of topography, the presence of natural features, or vehicular safety factors, this requirement may be waived provided that bicycle and pedestrian connections are provided between adjacent developments or land uses. A cross access easement must be recorded prior to issuance of a building permit.

F. Access

1. Driveways Near Intersections

The centerline of driveways on a boulevard, avenue, arterial or collector street shall be located as far as the lot width permits from street intersections, and at least 250 feet away from the centerline of the intersecting street. Alleys and rear shared access drives are exempt from this standard.

2. Driveways Along Streets

For nonresidential and multi-family developments, the number of driveways per lot along boulevards and avenues shall not exceed one (1) per 250 feet of lot width. All curb cuts shall be spaced at least 250 feet apart, centerline-to-centerline. In addition,

the centerline of the access point shall either align with or be offset at least 200 feet from any access points on the opposite side of the arterial street when a raised or landscaped median is not present. Frontage roads are exempt from driveway separation requirements.

3. **Driveways Along Trails**

   If nonresidential and multi-family development is proposed along an off-street multi-use trail, all curb cuts should be spaced 500 feet apart, centerline-to-centerline. If nonresidential and multi-family development is proposed along an on-street multi-use trail, all curb cuts should be spaced 250 feet apart, centerline-to-centerline.

4. **Local Residential Streets**

   Platting single-family or two-family residential lots shall not have direct access to an arterial street. Whenever feasible, all single-family residential lots shall have direct access only from minor residential streets or alleys.

G. Standards for Pedestrian and Bikeway Facilities

1. **Sidewalks**

   Sidewalks shall be installed on both sides of all streets and along the frontage of all new developments. Sidewalks and street trees along new urban residential streets shall comply with the City of Tulsa approved standard in Exhibit 17 which follows the Central Business District zoning street tree ordinance.

   i. Exemption: Internal private streets located within the BIC development area are exempt from the sidewalk installation requirement.

2. **On-site Pedestrian Walkways**

   i. **Orientation**

      Site plan shall be oriented to provide direct pedestrian access to:

      a. Connections to existing and planned street and trail networks

      b. Nearby destinations within one-quarter (¼) mile, including schools, shopping areas, and community facilities; and

      c. Linkage points on adjacent parcels, including building entrances, transit stops, walkway easements, and signalized street crossings.

   ii. **Connectivity Requirements**

      On-site pedestrian walkways shall:

      a. Connect building entrances to one another; and

      b. Connect building entrances to public sidewalk connections and to existing or planned transit stops

3. **Bikeways**

   Bikeways located on-street shall meet AASHTO standards at the time of construction.

7.2. Architectural Character and Design Standards

1. **Private Standards**

   The intent of this development is to encourage new buildings that add visual interest, support a pedestrian-oriented environment, complement neighborhood character, and promote architectural variety. To ensure a high-quality built environment, architectural features within this MPD will be regulated through private design guidelines and architectural standards administered by a property owners' association, private design review committee, or other designated private entity. All architectural review and approval processes for private development shall be managed privately and documented through covenants, conditions, and restrictions or a similar binding instrument recorded with the property.

7.3. Signs

1. **Residential Development**

   Residential developments are subject to the sign regulations that apply to R districts.

2. **Nonresidential Development**

   i. Nonresidential developments are subject to the sign regulations that apply to MX districts.

   ii. Exception. Freestanding signs must be a monument-style sign or freestanding sign with a maximum height of eight (8) feet.

7.4. Parking

1. **Off-Street Parking**

   i. **No Required Parking Minimum**

      Off-street parking is not required within this MPD.

   ii. **Parking Maximum**

      Any use categorized as a "commercial" or "industrial" use in Table 1 of Section 5.4 (MPD), may provide no more than 100% of the minimum number of off-street vehicle parking spaces established in Table 55-1 of Section 55.020 (ZO).

   iii. **Provided Off-Street Parking**

      a. Any off-street parking areas provided, even though not required, shall be developed in compliance with the standards set forth in Chapter 55 (ZO).

      b. Shared parking is allowed and encouraged.

2. **On-Street Parking**

    i. On-street parking is encouraged and most appropriate in the following street sections:

        a. 4-lane avenue (AVE-C4/C3-148; AVE-C4-110; AVE-C3-110)

        b. 3-lane avenue (AVE-C4-90; AVE-C3-90)

        c. 2-lane street (ST-C4-83; ST-C4/C3-60; ST-C3-50(1))

7.5. Landscaping and Fencing

A. Applicability

The requirements of this Section 7.4 apply to properties outside of common open space and park areas.

B. Landscaping in Parking and Driveway Areas

The landscaping in parking and driveway areas is intended to create a public environment in which pedestrian safety, interest, and comfort are paramount. Therefore, parking areas that front public streets and pedestrian pathways shall be screened to minimize pedestrians' view of parked vehicles and the impact of vehicle headlights.

1. Parking lots and driveways that are located adjacent and parallel to a public street must be screened from the public right-of-way with landscaping, berms, fences, or walls a minimum of 3 feet in height measured from parking lot grade to a maximum of 4 feet in height.

2. Landscape islands, linear landscaping strips, bio-swales, or rain gardens must be provided in parking lots with 12 or more spaces. All landscape islands and strips shall have at least one tree.

3. Every parking space is required to be not more than 60 feet from a large canopy tree or 40 feet from a medium canopy tree, planted within a median, strip or island, measured from the trunk at planting.

4. Required size of landscape island and linear landscaping strips containing trees:

    i. Within parking lots with non-porous surfaces: 130 square feet; 8 feet minimum width.

    ii. Planted in structured soil: 64 square feet; 8 feet minimum width. The use of approved structural soils shall be limited to landscape islands and adjacent walkways and parking areas necessary for proper tree growth. Structural soils must not be used for fire lanes in parking areas.

    iii. Within parking lots with approved porous surfaces for parking areas excluding fire lanes: 16 square feet. Tree trunks should be protected by wheel stops or other physical barriers excluding curbs.

iv. Linear landscaping strips are encouraged in lieu of landscaping islands where possible.

C. Fencing and Walls

1. Fences and walls in street yards may not be taller than 4 feet. Fences and walls in side yards that abut a non-alley right-of-way may not be taller than 4 feet. All other fences and walls may not be taller than 7 feet unless otherwise stated in this MPD.
2. Fences and walls must be constructed of permanent, durable materials, including but not limited to brick, stone, concrete, textile block, vinyl, wood, iron, or steel.
3. Fences and walls must not be constructed of, nor incorporate within their design, barbed wire, concertina wire, razor wire, electrically charged wire, railroad ties, split face concrete masonry units, scrap metal, tarps, recycled materials, and similar types of materials.
4. Any fencing located near trails or sidewalks shall be offset a minimum of 2 feet from the edge of the trail or sidewalk pavement surface.

7.6. Other Relevant Regulations

1. Uses and development in the MPD are subject to other regulations and standards of the City of Tulsa Zoning Ordinance when not otherwise specified by this MPD, including the following chapters:
   i. Chapter 45: Accessory Uses and Structures
   ii. Chapter 50: Temporary Uses
   iii. Chapter 55: Parking
   iv. Chapter 60: Signs
   v. Chapter 65: Landscaping and Screening
   vi. Chapter 67: Outdoor Lighting
   vii. Chapter 80: Nonconformities

All of the following Sections are in Township 19 North Range 15 East, Wagoner County, State of Oklahoma:

Section 3: All

Section 4: The W/2 & SE/4 & E/2 of NE/4 of NE/4 & SW/4 of NE/4 of NE/4 & S/2 of NE/4 & NW/4 of NE/4

Section 5: The E 1,700' of NE/4 & E 1,700' of S/2 of S/2 & S/2 of S/2 of NE/4 of SE/4

Section 7: The NW/4 of NE/4 & SE/4 of NE/4 & W 25 acres of NE/4 of NE/4

Section 8: The E 1,700' of E/2

Section 9: All

Section 10: The W/2 & SE/4

Section 14: The SW/4

Section 15: The N/2 & SW/4 & N/2 of SE/4 & SE/4 of SE/4 & W/2 of SW/4 of SE/4

Section 16: All

Section 17: All

Section 18: SE/4

Section 20: NE/4

Section 21: All

Section 22: W/2 & W/2 of SE/4

Section 23: NW/4

Less and except the following, all of which lies within the City Limits of the Town of Fair Oaks:
a Continuous 70' strip or parcel of land beginning at the NE corner of Section 3 and ending at the SW corner of Section 23
AND
a 20' continuous Strip or parcel of land centered beginning at the SW corner of the SW of Section 10 then, West to the SE corner of the NW of Section 16 then south ending at the SW corner of the NW of SE of SW
AND
the S/2 of SW of SE and the S/2 of SE of SW Section 16
AND
the N/2 of NE of NW and the N/2 of NW of NE Section 21,

Good, Felicity

From: Terry Parent <terrysfishing@yahoo.com>
Sent: Thursday, October 16, 2025 10:58 AM
To: Tulsa Planning Office
Subject: [External Mail] Rezoning in Broken Arrow North of 31st. Between 209 st and 193 rd.

This area is already overrun with traffic! What are the plans to handle the additional traffic issues? I am opposed to this rezoning for that reason!
Also just curious what will happen to all the wild horses?

Sent from my iPhone
CAUTION: This email originated from outside of the organization. Do not reply, forward, click links, or open attachments unless you recognize the sender and know the content is safe. Please report using the Phish Alert button in the Outlook Desktop Client if this message contains potentially unsafe content.

Good, Felicity

From: Foster, Nathan
Sent: Friday, October 17, 2025 10:16 AM
To: Chapman, Austin; Good, Felicity; Miller, Susan; Sawyer, Kim
Subject: Fwd: [External Mail] Re: Filing of Protest Petition – Zoning Change Case MPD-6
Attachments: OCTOBER 16, 2025 PROTEST PETITON MPD-6,.pdf

Sent from my iPhone

Begin forwarded message:

> **From:** el roi <elroi81082@gmail.com>
> **Date:** October 16, 2025 at 9:29:06 PM CDT
> **To:** CityClerk <CityClerk@cityoftulsa.org>, "Doring, Lori" <LoriDoring@tulsacouncil.org>, council@cityoftulsa.org, lori.fullbright@newson6.net, sjcfrederick@gmail.com, "Foster, Nathan" <nathanfoster@cityoftulsa.org>, cnn.tips@cnn.com, foxfeedback@fox.com, news@fox21news.com, fox 23 <news@fox23.com>, kjrh <news@kjrh.com>, abc.news@abc.com, ktul <news@ktul.com>, News@koaa.com, tulsa.courtclerk@oscn.net, "Weeden, Andrew" <aweeden@cityoftulsa.org>, public.affairs@fbi.gov, trump.library@nara.gov, iris.wn@sbcglobal.net, Mack Greever <mack@greeverlaw.com>, Erika Plunkett <eplunkett@wagonercounty.ok.gov>, eric@daffernlawfirm.com, William Hickman <hickman@hickmanlawgroup.com>, Andrew Shank <AShank@ellerdetrich.com>
> **Subject: [External Mail] Re: Filing of Protest Petition – Zoning Change Case MPD-6**
>
> Dear Ms. Chappell,
>
> Please accept for filing and record in the Council minutes the enclosed **Protest Petition** concerning Zoning Change Case **MPD-6**, submitted on behalf of myself and adjoining property owners affected by the proposed development along U.S. Highway 412, East 41st Street South, South 193rd East Avenue, and South 273rd East Avenue.
>
> I respectfully request that this protest be entered into the official record of the Tulsa City Council and that a file-stamped or electronically acknowledged copy of the first page be returned by email for confirmation of receipt.
>
> Thank you for your attention and assistance in preserving this filing for inclusion in the Council meeting record.
>
> Respectfully,
>
> August Wakat, Pro Se

Enclosure: Protest Petition – Zoning Change Case MPD-6

CAUTION: This email originated from outside of the organization. Do not reply, forward, click links, or open attachments unless you recognize the sender and know the content is safe. Please report using the Phish Alert button in the Outlook Desktop Client if this message contains potentially unsafe content.

ZONING CHANGE PROTEST PETITION
Case No.: MPD-6
Hearing Date: November 5, 2025 – 1:00 p.m.
Location: Tulsa City Hall, 175 E. 2nd Street, Tulsa, OK 74103
Filed With: Tulsa Metropolitan Area Planning Commission (TMAPC)
Contact: planning@cityoftulsa.org | (918) 596-7526

PETITION OF PROTEST

I, **August Wakat**, owner and operator of **Poeboy Fleming Auto Salvage, Inc.**, 23780 E. Admiral Place, Catoosa, OK 74015, **Plaintiff/Appellant** in Tulsa County District Court Case Nos. **CV-2024-2320 (Wakat v. Winn & Lamar Advertising Co.)** and **CV-2023-1583 (Wakat v. City of Tulsa)**—each dismissed under what I contend was a **judicial gambit** in the Tulsa County court system—submit this **formal protest** regarding **Zoning Change Case MPD-6**, involving parcels along **U.S. Highway 412, East 41st Street South, South 193rd East Avenue, and South 273rd East Avenue**. My property lies adjacent within **Wagoner County's Cooley Creek watershed**, including **Tract A at 23882 East Admiral Place**, where a **Lamar Advertising billboard subject to a $12 million lien** is located. This protest is submitted on my behalf and on behalf of **neighboring citizens** in objection.

1. Jurisdictional Defects and Record Verification

1. **Wagoner County Authority Confirmed.** A letter from **Amanda Alsip attached hereto of 7 pages filed in Tulsa County Case CV-2024-2320**, Wagoner County Land Records Clerk, confirms that the subject property is **not within Fair Oaks Township** and remains of record under Wagoner County jurisdiction. Any representation to the contrary is false.
2. **Invalid Annexation.** Tulsa Ordinances Nos. 20244 and 20267 were recorded without owner consent or statutory notice required by **11 O.S. §§ 21-103 and 21-105**. Annexations enacted contrary to statute are void. *In re De-Annexation of Certain Real Property from the City of Seminole*, 2004 OK 60, ¶¶ 10–13.
3. **Recording and Contiguity.** Where no valid ordinance is properly filed in the county records, jurisdiction fails. *Public Service Co. of Okla. v. Northeastern Okla. Elec. Co-op.*, 2002 OK 29, ¶¶ 9–13. Annexations using narrow "string" connectors violate statutory contiguity rules under 11 O.S. §§ 21-101, 21-102. See also *City of Claremore v. Town of Verdigris*, 2001 OK 3, ¶¶ 9–14, 21.

2. Environmental and Public-Health Hazards – Coal Mine Legacy and Runoff

The area beneath the MPD-6 tracts is undermined by abandoned coal shafts and spoil material. Groundwater and spring samples after rainfall display dark-blue, acidic runoff consistent with mine-drainage pollutants containing sulfur, lead, arsenic, and mercury. These contaminants make the soil unsafe for human habitation without proper remediation. Because this region lies within the historical corridor associated with the **1921 Tulsa Race Massacre**, where unmarked graves and cultural materials have been **suspected in subsurface mining and floodplain areas**, any excavation should proceed with caution. A comprehensive **Phase I/II Environmental Site Assessment**, **hydrological study**, and consultation with the **Oklahoma Archaeological Survey** should be completed before any zoning or construction approval.

3. Billboard on Tract A – Out of Compliance under Federal Law

A **Lamar Advertising billboard** located on **Tract A (23882 E. Admiral Place, 12M Lien)** operates under Permit No. 13707 in Roger County, Oklahoma. Records show the structure and lease have never been updated to comply in Wagoner County Oklahoma with the **Highway Beautification Act (23 U.S.C. § 131)** and related **Federal Highway Administration (23 C.F.R. § 750.705 et seq.)** requirements for spacing, illumination, and zoning consistency. Because the sign stands in an area outside legally recognized municipal limits, it is **non-conforming and unlawful** under both federal and state law. TMAPC cannot lawfully approve any master plan that relies on or ratifies a federally non-compliant structure.

4. Notice and Due-Process Deficiencies

Adjacent property owners received no mailed notice or consent as required by **11 O.S. §§ 21-103 and 21-105**. Failure to comply renders the annexations under **Ordinances 20244 and 20267** invalid.

5. Relief Requested

1. Deny or table MPD-6 until lawful jurisdiction of Fair Oaks Township (City of Tulsa) has been established under Oklahoma law pursuant to 11 O.S. §§ 21-103 and 21-105, and until environmental safety and federal billboard compliance are verified in accordance with the Freedom of Information Act, 5 U.S.C. § 552, and the Highway Beautification Act, 23 U.S.C. § 131.
2. Require Phase I/II ESAs, mine-hazard and drainage studies demonstrating no adverse impact.
3. Direct City staff to correct official maps to reflect that 23610, 23780, 23882 East Admiral property are **not within City of Tulsa Ordinance 20244 and 20267**.

Verification and Community Endorsement
The undersigned neighboring property owners and concerned citizens hereby join in this protest and affirm that the foregoing is true and correct to the best of their knowledge and belief.

Signature: _____ Date: Oct 16 2025
Name: August Wakat
Address: 33050 Tall Timber Trace, Trinidad, CO 81082
Email: elroi81082@gmail.com, Phone: (719) 680-1335

1. Name: _____ Address: _____
   Signature: _____ Date: _____

2. Name: _____ Address: _____
   Signature: _____ Date: _____

Filing and Service:
Tulsa Metropolitan Area Planning Commission
Attn: Christina Chappell, City Clerk
175 E. 2nd Street, Tulsa, OK 74103
Email: planning@cityoftulsa.org | cityclerk@cityoftulsa.org

Gmail

el roi <elroi81082@gmail.com>

Wakat Property and Fair Oaks

CV-2024-2320

3 messages

Amanda Alsip <aalsip@wagonercounty.ok.gov> Tue, Mar 25, 2025 at 2:21 PM
To: "elroi81082@gmail.com" <elroi81082@gmail.com>
Cc: Erika Plunkett <eplunkett@wagonercounty.ok.gov>

DISTRICT COURT
FILED
MAR 26 2025
DON NEWBERRY, Court Clerk
STATE OF OKLA. TULSA COUNTY

Mr. Wakat,

Our Land Records Supervisor, Erika asked me to take a look at your email. You are correct. The Title opinion does state that the subject property was not included in the annexation of Fair Oaks, however it was annexed into the City of Tulsa in book 1189 page 167 in the Ordinance Amending and Correcting Ordinance No. 20244. Mr. Gray's opinion on page 4, item no. 12 and paragraph 3 states that "The use and occupancy of the property may be subject to and restricted by said annexation as shown therein." I would recommend contacting an attorney to help clarify whether or not a letter from former Planning and Zoning staff is sufficient to exempt the property from annexation or ordinances imposed by other municipalities and whether or not an affidavit signed by Mr. Winn opposing annexation is sufficient to exempt. Our office is just a filing office and record keeper for the county. Annexation documents were prepared and filed by the City of Tulsa therefore any clerical errors would need to be corrected by them. Please let me know if you need copies of any other documents on file and we will be happy to assist.

Respectfully,

Amanda Alsip

First Deputy Wagoner County Clerk

918-485-7705 (direct)

918-485-7718 (fax)

el roi <elroi81082@gmail.com> Wed, Mar 26, 2025 at 7:24 AM
To: Amanda Alsip <aalsip@wagonercounty.ok.gov>, nathanfoster@cityoftulsa.org
Cc: Erika Plunkett <eplunkett@wagonercounty.ok.gov>, nfoster@incog.org, Brian Wilson <Brian.Wilson@oumvdmhc.ok.gov>

Subject: Request for Meeting to File Report on Legal Sham, Annexation Violations, and Fraudulent Instrument Filing Concerns

To: nathanfoster@cityoftulsa.org
Cc: nfoster@incog.org

Dear Mr. Foster and Ms. Alsip,

I hope this message finds you well. I am writing to address serious concerns regarding the handling and maintenance of annexation documents for the subject property and to file a formal report regarding what I believe constitutes a legal sham under applicable Oklahoma statutes 19 O.S. § 267.

In Ms. Alsip's email, it was noted that:

> Our Land Records Supervisor, Erika, asked me to take a look at your email. You are correct. The Title opinion does state that the subject property was not included in the annexation of Fair Oaks; however, it was annexed into the City of Tulsa in book 1189 page 167 in the Ordinance Amending and Correcting Ordinance No. 20244. Mr. Gray's opinion on page 4, item no. 12 and paragraph 3 states that "The use and occupancy of the property may be subject to and restricted by said annexation as shown therein." I would recommend contacting an attorney to help clarify whether or not a letter from former Planning and Zoning staff is sufficient to exempt the property from annexation or ordinances imposed by other municipalities and whether or not an affidavit signed by Mr. Winn opposing annexation is sufficient to exempt. Our office is just a filing office and record keeper for the county. Annexation documents were prepared and filed by the City of Tulsa therefore any clerical errors would need to be corrected by them.

While I appreciate this clarification, I have additional concerns. Enclosed is a Violation Report to and from Wagoner County, prepared by Lisa Miller on 06-22-22, which indicates that under 2024 Oklahoma Statutes Title 11, Cities and Towns, §11-21-103 (Annexation Procedure), these documents should be maintained in the county seat. The absence of these annexation documents from your office raises significant questions regarding statutory compliance and transparency.

Furthermore, I assert that my constitutional rights under color of law—as safeguarded by the U.S. Constitution and protected under federal statutes such as 42 U.S.C. §1983—are being compromised by these actions. Additionally, 19 O.S. § 267 defines and addresses the filing of fraudulent or deceptive legal instruments, imposing penalties on those who knowingly file such instruments while providing protection for county clerks who refuse to file them. This statute underscores the importance of strict adherence to legal standards in the management of public records and legal instruments.

To address these issues formally, I respectfully request a meeting in your office to file a detailed report on these matters. I would like County D.A. Jack Thorp and Sheriff Chris Elliott to be present at this meeting, ensuring that all pertinent parties are involved, and addressing the "moniker" "COWBOY MAFIA" within Wagoner County, OK Government.

Could you please advise on a convenient time and date for this meeting?

Thank you for your prompt attention to this serious matter. I look forward to your response and to working together to resolve these concerns expeditiously.

Respectfully,

"El-Roi" Genesis 16:13

"In the Year of Jubilee"

[Quoted text hidden]

Violation Report, Wagoner County, OK Lisa Miller 06-22-22.pdf
523K

Mail Delivery Subsystem <mailer-daemon@googlemail.com> Wed, Mar 26, 2025 at 7:31 AM
To: elroi81082@gmail.com

Address not found

Your message wasn't delivered to **nfoster@incog.org** because the address couldn't be found, or is unable to receive mail.

planning@wagonercounty.ok.gov
918-485-8123
231 Church Street
Wagoner, OK 74467

Code Enforcement Violation Report

Wagoner County
Planning and Zoning Department

DATE 06·22·22

PERSON MAKING COMPLAINT (anonymous reporting is optional)

☒ CITIZEN
☐ STAFF

NAME August Wakat
ADDRESS 23780 E. Admiral PL Catoosa, OK 74015 PHONE 918·313·8705

INFORMATION OF PROPERTY IN VIOLATION

OWNER'S NAME City of Tulsa PHONE 918·596·9878
OWNER'S ADDRESS 175 East 2nd ST, Suite 590 Tulsa, OK ~~74103~~ 74103
OCCUPANT'S NAME Michael Ryder PHONE 918·693·0767
ADDRESS OF VIOLATION Code Enforcement
DATE VIOLATION FIRST OBSERVED On or about 05. 25. 22
Give or take on start of investigation

NATURE OF COMPLAINT (PLEASE ATTACH VISUAL DOCUMENTATION IF POSSIBLE)

~~Facts~~ City of Tulsa doe not have proper jurisdiction. Improper annexation procedure.

See Attached document. dated ~~last~~ 10.21.20

Technically the violation started @ ~~the Zoning~~ 2001,

TYPE OF VIOLATION

☒ ZONING CODE
☐ BUILDING CODE
☐ SUBDIVISION REGULATION

EMAIL FORM AND ANY VISUAL DOCUMENTATION TO
PLANNING@WAGONERCOUNTY.OK.GOV
TO BEGIN INVESTIGATION

OFFICIAL USE ONLY

*DATE RECEIVED*_____
*ASSIGNED CASE NUMBER*_____

CV-2024-2320 WIN CASE # 69279-2022

BL

------- Original message -------
From: "Rider, Michael" <MRIDER@cityoftulsa.org>
Date: 2/10/23 9:43 AM (GMT-06:00)
To: august <august@poeboyssalvage.com>
Subject: RE: Zoneing investigation

DIS *105991403 6*
FILED
OCT 23 2024
DON NEWBERRY, Court Clerk
STATE OF OKLA. TULSA COUNTY

Martha appears to be an employee of Mark Lyons. I've attached the email correspondence between us, along with the aerial photos attached to the original correspondence and referenced therein. As previously advised, I do not have any "annexation process paperwork." You should be able to obtain any records related to the annexation through INCOG and/or the City Clerk's Office.

I don't have the authority to determine whether or not your property was lawfully annexed. My sources tell me your property is lawfully and unquestionably within the City of Tulsa. Accordingly, the case can't be closed unless and until the property is brought into compliance. We'll work up an official Notice as soon as possible, then you can file an appeal if you disagree. The code states that the burden of proof is on you to show at the appeal hearing that some other error of law was made, which could include your claim that property was not lawfully annexed.

Doc # 2025-3667 B: 3054 P: 0545
03/24/2025 10:08:38 AM Pg: 41 of Pgs: 42
Fee: $ 100.00
Lori Hendricks, Wagoner County Clerk
Wagoner County - State of Oklahoma

COUNTY CLERK OFFICIAL SEAL WAGONER COUNTY OKLAHOMA

Best,

Michael Rider | Zoning and Sign Official
City of Tulsa Working in Neighborhoods Department

175 East 2nd Street, Suite 590, Tulsa, OK 74103

T: 918-596-9878
F: 918-576-5449
E: mrider@cityoftulsa.org
www.cityoftulsa.org

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NOTICE: This email (including any attachments) is covered by the Electronic Communications Privacy Act, 18 U.S.C. §§2510-2521, is confidential and may be legally privileged. If you are not the intended recipient, you are hereby notified that any retention, dissemination, distribution, or copying of this communication (including any attachments) is strictly prohibited. Please reply to the sender that you have received the message in error, then delete it. Any tax advice contained in this communication is not intended to be used, and cannot be used, to avoid tax penalties.

From: august <august@poeboyssalvage.com>
Sent: Friday, February 10, 2023 9:09 AM
To: Rider, Michael <MRIDER@cityoftulsa.org>
Subject: RE: Zoneing investigation

Exhibit 9, Michael Rider eMail 1 page

8

BOA-23510

Neighborhood Investigations
WORKING IN NEIGHBORHOODS

NOTICE OF VIOLATION – ZONING

To: AUGUST WAKAT
23780 E ADMIRAL PL
CATOOSA, OK 74015

Date: 2/20/2023
Case: 69279-2023

Compliance Date: 3/20/2023

Dear Property Owner and/or Occupant,

You are hereby notified of zoning (Title 42) violations at 04-19-15 A TRCT OF LAND BEING A PORTION OF THE W 10.14 AC OF L-1 DES C COMM FROM THE NW CORNER OFSD TRACT ON A BEARING OF S 01 DEG 36'26 "E A DIST OF 283.13' TO POB - N 88 DEG 45'34" E A DIST OF 680.91' T OA PT ON THE EAST LINE OF THE W 10.14 AC OF SAID L-1 -S 01 DEG 32'2 8" E A DIST OF 385.84' TO PT ON THE S LINEOF SD L1 - S 88 DEG 4678 "W A DIST OF 680.57' TO PT BEING THE SW COR OF L-1 - N 01 DEG 36'26 "W DIS OF 386.88' TO POB CONT 5.86 AC (W2 OF L-1 CONT 10.14 AC) 5.86 Acres

City of Tulsa, Wagoner County State of Oklahoma; And located at the address of: 23610 E Admiral Pl

Violations:

Code Section	Explanation of violation
60.020-A	You must obtain a Sign Permit for signs installed on or after November 13, 2001, including but not limited to the dynamic display sign.
70.080-A; ~~80.040-B.2~~	You must obtain an approved Zoning Clearance Permit for all new uses established on the lot on or after November 13, 2001, including but not limited to the Recycling Use. ~~Any new non-conforming uses, such as the Recycling Use, must also be approved through the Special Exception process.~~
80.040-F	Non-conforming uses, such as junk or salvage yards located in AG zoning districts, may not be enlarged, increased or moved to another portion of the lot. You must return the non-conformity to the same status, scope and use that existed on November 13, 2001 when the land was annexed into the City of Tulsa.

See back of page for what the resolution of each violation requires.

You still have time to correct the issue(s) at your property. To comply, you must correct all violations prior to the compliance deadline listed on this notice above. If you are unable to correct any or all the violation(s) listed above, contact the Code Official listed below to work out an acceptable plan to bring your property into compliance. Ensure that all family members, employees, and/or contractors, etc. are familiarized with and adhere to these regulations. Additional notices will not be sent if recurring violations are found in the future.

Failure to make the correction may result in the issuance of a criminal citation or civil remedial penalties not to exceed $1,200.00 per day. Failure to comply may also result in revoking or withholding permits, certificates or other forms of authorization issued by the City of Tulsa; and/or any other remedies allowed by law.

Your property is an important investment for you and the community. I urge you to make the necessary corrections to eliminate all violations so that no further enforcement will be necessary.

Please understand that it is ultimately the responsibility of the owner to ensure these violations are corrected. Any civil agreements or rental agreements do not alleviate the owner of this responsibility.

Thank you,

Michael Rider
City of Tulsa – Working in Neighborhoods
mrider@cityoftulsa.org
918-596-9878

Appeals: You may appeal the administrative official's decision by filing a complete appeal application (1) with the official listed above c/o the Tulsa City Clerk AND (2) with the Director of the Tulsa Planning Office at INCOG, at the addresses shown below. Appeals must be filed within 10 DAYS of the date of this Notice, and applicable fees must accompany the appeal application filed with INCOG. Appeals are heard by the City of Tulsa Board of Adjustment. For more information related to appeals, see Chapter 70, Section 70.140 of the Tulsa Zoning Code, Title 42 Tulsa Revised Ordinances, Appeals of Administrative Decisions.

Doc # 2025-3667 B: 3054 P: 0544
03/24/2025 10:08:38 AM Pg: 40 of Pgs: 42
Fee: $100.00
Lori Hendricks, Wagoner County Clerk
Wagoner County - State of Oklahoma

Exhibit 8, WIN
BOA-23510
Violation

Doc # 2025-3667 B: 3054 P: 0546
03/24/2025 10:08:38 AM Pg: 42 of Pgs: 42
Fee: $ 100.00
Lori Hendricks, Wagoner County Clerk
Wagoner County - State of Oklahoma

COUNTY CLERK OFFICIAL SEAL WAGONER COUNTY OKLAHOMA

105991402C

02-17-23

County of Wagoner

To Whom This May Concern,

I Henry Winn have not ever gave a hand written consent to the annexation of any township or city annexation during said owner ship of land description as follows;

Lot 1, Section 4, Township 19 North, Range 15 East

Wagoner County, State of Oklahoma

DISTRICT COURT
FILED
OCT 23 2024
DON NEWBERRY, Court Clerk
STATE OF OKLA. TULSA COUNTY

Henry Winn

~~Henry Winn~~

Sworn before me 17th February 2023

Notary Public TK Cline

Commission exp. 8-11-2024

T K CLINE
NOTARY PUBLIC - STATE OF OKLAHOMA
MY COMMISSION EXPIRES AUGUST 11, 2024
COMMISSION #16007710

Exhibit 10, Winn
NON-Consent,
COT Annex 1page

CV-2024-2320

DISTRICT COURT
FILED
MAR 21 2025
DON NEWBERRY, Court Clerk
STATE OF OKLA. TULSA COUNTY

CONFIRMATION OF ZONING
(Must be completed for each zoned location)

Name of Applicant: Henry Winn | Catoosa Auto Salvage

Description of Property: 23780 E. Admiral, Catoosa, OK 74015
West 10.14 acres of Lot 1 in Section 4, Township 19 North, Range 15 East of Indian Meridian, Wagoner County, State of Oklahoma

In the Corporate Limits of: none
(If not inside the corporate limits of any town or city write none.)

◆ The remainder of this form must be completed by the proper zoning authority. ◆

1. What is the zoning designation of the above-referenced property?*
Not Wed grandfathered in as Industrial prior to June 1981

2. Does your city/county have a comprehensive zoning/development plan?
X Yes ____ No

3. If yes, does the above-referenced property's zoning designation meet with the plan guidelines? X Yes ____ No

4. Was this zoning designated within the last two years? ____ Yes X No (If yes, a copy of the zoning application and the approved documentation must be attached.)

Wagoner County	918-485-8123
Name of Authority (City, County, etc.)	Telephone No.
Brenda Robertson	Planner
Printed Name of Official	Title
Brenda Robertson	12-18-06
Signature of Official	Date

*If the zoning designation is PUD, SPUD or Corridor, a copy of the approved plan must be submitted with application.

(Notice: Completion of this form does not constitute official permission or clearance from any local government - this form is solely for the purpose of zoning verification to be used by the Oklahoma Department of Transportation.)

Form OAC Z-504

Doc # 2025-3667 B: 3054 P: 0537
03/24/2025 10:08:38 AM Pg: 33 of Pgs: 42
Fee: $ 100.00
Lori Hendricks, Wagoner County Clerk
Wagoner County - State of Oklahoma

SEAL

Exhibit 3, Conformation of Zoning Brenda Robertson 1 page

Good, Felicity

From: Ted Langham <bcs4me@hotmail.com>
Sent: Thursday, October 23, 2025 7:22 PM
To: Tulsa Planning Office
Subject: Re: RE: [External Mail] meetings

Yes it is.

You are having a "meeting" to talk about rezoning from 41st street to Admiral, and from County line of Midway. Yes, I have questions. However, I do not expect you to be able to answer them, except to give me some boilerplate answers that have been thought of (or maybe not) and answers that will be short. I have zero hope that my questions will be answered in either a timely matter or in full to my satisfaction. As I see it, you have been given an opportunity to increase your tax base and will let nothing stand in the way, all to the detriment of my, and others, way of life. I moved out here to get away from Tulsa, yet you keep following me. I know I am not the only one that feels this way. You schedule your "meetings" at times that are convenient to you, not for those whose lives will be impacted.

Ted Langham

Sent from the Connect for Hotmail app

On Mon, Oct 20, 2025 at 08:16 GMT-05:00, "Tulsa Planning Office" <Planning@cityoftulsa.org> wrote:

> Ted,
>
> Is this in reference to a particular case?
>
> **Felicity Good, AICP**
> **Senior Planner**
> **Tulsa Planning Office**
> 175 E. 2nd Street, Suite 480
> Tulsa, OK 74103
> **T:** 918-596-7602
> **E:** fgood@cityoftulsa.org
> www.tulsaplanning.org
>
> **From:** Ted Langham <bcs4me@hotmail.com>
> **Sent:** Saturday, October 18, 2025 2:33 PM
> **To:** Tulsa Planning Office <Planning@cityoftulsa.org>
> **Subject:** [External Mail] meetings
>
> Sounds like your mind is already made up when have these meetings. Those of us that have to work and might oppose your decison and have to take time off work, and can not, what are we supposed to do. And what about questions?? Where do we go to get those answered?? Have fun at your meeting,

but I know that you time this to be as possibly inconvenient as possible!!!!

Ted Langham
Former Happy Resident on 41st.

Sent from the Connect for Hotmail app

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CAUTION: This email originated from outside of the organization. Do not reply, forward, click links, or open attachments unless you recognize the sender and know the content is safe. Please report using the Phish Alert button in the Outlook Desktop Client if this message contains potentially unsafe content.

Good, Felicity

From: Chris Anderson <afscpa@live.com>
Sent: Tuesday, October 28, 2025 6:43 AM
To: Tulsa Planning Office
Cc: rkbost15; plannig@cityoftulsa.org; adbishop29@hotmail.com; sbluford@gmail.com; chris.bluford@gmail.com; markocolo@hotmail.com; equipone@sbcglobal.net; aaconley17@gmail.com; mfrankenburger@tesproductions.com; wfreeman@cbci-llc.com; lfreemanpac@yahoo.com; coachronbo@hahoo.com; artisteml@yahoo.com; jueyanglor@hahoo.com; jennymarie125@gmail.com; revbillparks@windstream.net; vickiphillips@tulsacoxmail.com; jason.pierce1118@gmail.com; hughandmarywiebe@aol.com; Betty-Jo Anderson
Subject: [External Mail] Re: Case MPD-6

Sirs,

See questions posed by our neighbors.

Thanks,

Chris , CPA, MBA
Sent from my iPhone

On Oct 27, 2025, at 1:22 PM, Betty-Jo Anderson <chaplainbja@gmail.com> wrote:

Thank you for asking the questions! We are very interested in the answers!

Chris and Betty-Jo Anderson 2121 S 280th

On Mon, Oct 27, 2025 at 1:13 PM rkbost15 <rkbost15@proton.me> wrote:

> I have some questions about Case MPD-6. Roadside notifications about this Zoning Change Request recently appeared in alongside several streets in western Wagoner County. A public hearing is to be conducted on Wednesday, October 5, at 1:00 pm at the Tulsa City Hall regarding this request.
>
> My home is located in close proximity to the area specified in this Zoning Change Request. While the requested change from agricultural to residential does not directly impact me, it will alter the semi-rural environment that my neighbors and I currently enjoy. The construction of several hundred homes on agricultural land will dramatically change the quiet, pleasant setting in which we now live. This requested change is very relevant to us.
>
> My questions include:
>
> 1. This zoning change request is apparently being conducted under the jurisdiction of the Tulsa Metropolitan Area Planning Commission (TMAPC). The website for TMAPC ("https://tulsaplanning.org/about-us/staff-directory/) invites comments on "cases **outside of Tulsa city limits** but within Tulsa County". However, the area to which this

change request applies is in western Wagoner County, not Tulsa County. Please clarify why this request is being made through Tulsa County rather than Wagoner County.

2. The roadside notification indicates that the proceedings of the hearing are to be broadcast on TV Cox 24. However, I (and several of my neighbors) are not Cox subscribers. Will these proceedings be available on another venue?

Thank you for your assistance in answering these questions.

Richard Bost
1655 S. 280th East Avenue
Catoosa, OK 74015

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Good, Felicity

From: Joellen McGuire <joellenmcguire@yahoo.com>
Sent: Monday, November 3, 2025 10:26 AM
To: Tulsa Planning Office
Subject: [External Mail] CASE MPD-6

Because the public hearing for case MPD-6 is on November 5, 2025, and on a workday, we are unable to attend the public hearing so we are submitting this letter.

My family has lived on the same property for generations from 51st to 61st St. South and Midway (257th E Ave) and westward. Our family has always and still does depend on the land for our food, our homes, water and existence.

Two years ago a developer bought the land on the south side of our property line and built a housing addition. Since then we have experienced flooding in our yards (which we had never experienced in the past). The deer, which we rely on to feed our families, has drastically declined. Our vegetable garden was literally killed within a matter of days after the housing addition decided to spray insecticide to get rid of weeds in their “manicured” lawns. The noise level has increased tremendously. The traffic has quadrupled. Our little county roads cannot accommodate such a high traffic volume. The above is just our personal experience with just one housing addition next to our property.

Having said that, just think what adverse effects a 300+ acre development in this MPD-6 Zone will bring to everyone living here already. The amount of water and electricity this proposal will require will cause our utility bills to skyrocket. Not to mention our already extremely high property taxes. We will be paying higher prices for utilities.

Flooding is already an issue along Midway around Adams Creek. The flooding problems will only continue to worsen with no place for the water to go. This development will change the water flow patterns even more.

The impact on the people of the area is nothing compared to the impact on wildlife and the habitat they need to survive and thrive. The wildlife has endured such a negative impact with just one housing addition. Imagine what the destruction of 300+ acres of habitat will do to them.

Once the concrete is poured and the buildings are built there is no turning back. Our beautiful land will never be the same.

Please protect our land, resources, wildlife and ecosystem.

We want to make a plea to PLEASE OPPOSE this development. Ours and so many others’ way of life will be forever negatively impacted.

This is an attempt to describe what a negative impact one housing addition had on us. The unimaginable negative impact and destruction, this large scale development will cause, will be so much more severe on the residents already here, the environment and the wildlife.

For once, don’t let greed and the almighty dollar win over what is right for our community, families, way of life, environment and wildlife.

Thank you for your time.

Charles & Joellen Dotson

Sent from my iPhone
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Good, Felicity

From: buchanondowling@gmail.com
Sent: Monday, November 3, 2025 10:49 PM
To: Tulsa Planning Office; Foster, Nathan
Cc: (DIST6) Bengel, Christian; Brooks, Michelle; Barnett, Michelle

Subject: [External Mail] MPD-6 Public Hearing Nov 5 - Resident Opposition to Industrial Zoning Adjacent to Residential

Section 1 - Protest

As a resident of Whiskey Ridge Neighborhood (between 193rd and 209th on 31st), I am writing to express my opposition to certain portions of the MPD-6 Plan. While it is nice to have a master planned neighborhood and shopping center East of the Creek Turnpike, there appears to be an intentional industrial zoning plan designated as Business and Industrial Centers (BICs) West of the Creek Turnpike between 11th St and 31st St. Also, MPD-6 conveniently omits details from Project Anthem which will cause harm to not only the existing residents, but also new residents and patrons the Master Planned Development (MPD) aims to service.

Specifically, Page 5.22 of MPD-6 designates 1,228.7 acres to Business and Industrial Centers (BIC). The MPD-6 document conspicuously fails to acknowledge that Project Anthem—an $800 million, 340-acre data center approved under separate incentive district—falls within this BIC zone as shown on page 5.7. This omission is material and misleading. In total, approximately 1,567.7 acres of industrial development are designated west of the Creek Turnpike, representing 25.1% of the entire 6,229-acre MPD. These industrial acres directly abut existing Whiskey Ridge, Renaissance Park, and more residential neighborhoods along the 31st street boundary.

The Tulsa Comprehensive Plan (cited on page 5.3 of the MPD-6 staff report) explicitly states that the Industrial Site Suitability map “indicates where uses
that are POTENTIALLY INCOMPATIBLE WITH SENSITIVE LAND USES are best suited to locate. This directs industrial uses to PARTICULAR AREAS OF THE CITY while DISCOURAGING INDUSTRIAL IN CLOSE PROXIMITY TO NEIGHBORHOOD AREAS.”

However, MPD-6 does the exact opposite. It concentrates 1,567.7 acres of industrial development immediately adjacent to existing residential neighborhoods. This violates the clear intent and direction of the adopted Tulsa Comprehensive Plan. The TMAPC should not approve a development plan that contradicts the City's own comprehensive planning guidance. I respectfully request that TMAPC defer approval of MPD-6 until the specific deficiencies outlined below are addressed through revised development standards that protect existing adjacent residential neighborhoods.

Section 2 – Questions

1. PROJECT ANTHEM OMISSION
Why is Project Anthem (Section 8, 340 acres, $800M data center) completely omitted from MPD-6 despite being prepared concurrently and falling within BIC zones, with NO noise standards, NO data center protections, NO generator protocols?

2. UNLIMITED HEIGHT & BLOCK LENGTH
Why does BIC (abutting residential) allow unlimited heights and lengths when:

- Regional Center: 90 ft max, 1,600 ft max block
- Town Center: 95 ft max, 500 ft max block

- Neighborhoods: 45 ft max, 600 ft max block
- BIC: UNLIMITED / UNLIMITED

3. INDUSTRIAL MIX & CUMULATIVE IMPACTS
What percentage of 1,228.7 BIC acres are: data centers, moderate-impact manufacturing (such as metal shops, concrete plants operate at 80-95 dBA), warehousing? Given the proximity of the BIC to the new data center, it should be known what supporting infrastructure is planned for these areas.

4. NOISE MONITORING & ENFORCEMENT
What specific noise monitoring, enforcement, and public reporting requirements will be established for BIC operations adjacent to residential areas? Given that:

- OSHA standards (29 CFR 1910.95) require hearing conservation programs at 85 dBA for 8-hour workplace exposure
- Data centers operate at 52-85 dBA continuously, 24/7/365
- Residential noise standards are 40-50 dBA (day/night)
- MPD-6 contains NO decibel limits or monitoring requirements

The following should be established BEFORE MPD-6 approval:

- Baseline noise measurements at residential property lines before any industrial development
- Maximum decibel limits at residential property lines (50 dBA day, 45 dBA night)
- 24/7 noise monitoring with real-time public reporting dashboard
- Diesel generator testing protocols (business hours only, weekdays only, advance notice to residents)
- Enforcement mechanisms including penalties and corrective action requirements

5. SETBACK ADEQUACY
Page 5.37 shows only 30-foot setbacks from unlimited-height BIC to residential. Using basic acoustic attenuation (inverse square law), an 85 dBA industrial noise source at 30 feet produces 77 dBA at residential property line - exceeding residential nighttime standards (45 dBA) by 32 decibels and approaching OSHA workplace action levels. What scientific acoustic analysis supports 30 feet as adequate protection from unlimited-height industrial operations operating 24/7?

6. TRAFFIC IMPACT & 193RD STREET CAPACITY
"What traffic impact study has been conducted on the 31st street corridor between Lynn Lane to Creek Turnpike? Given that BIC allows warehousing, distribution, and moderate-impact manufacturing as permitted uses (pages 5.27-5.28), and page 5.43 states BIC “uses typically generate heavy traffic,” what is the projected daily truck traffic from full BIC buildout?

7. COMPREHENSIVE PLAN COMPLIANCE
Tulsa Comprehensive Plan (page 5.3 of MPD-6) directs industrial to "particular areas" while "discouraging industrial in close proximity to neighborhood areas." Why was BIC placed immediately adjacent to Whiskey Ridge and Renaissance Park residential instead of placing it east of the turnpike abutting the newer neighborhoods?

8. UTILITIES COST & RATEPAYER IMPACT

a) **What is the estimated annual cost** of maintaining public infrastructure (electrical grid, water, wastewater, roads, emergency services) required for Project Anthem and future BIC industrial development?
b) **With a $4.1 million annual tax revenue shortfall** due to the 85% exemption, how will the City cover infrastructure maintenance costs?
c) **Will these costs be passed to residential property taxpayers** through increased property taxes, or to utility customers through increased water, electric, and sewer rates?

d) **What analysis has been conducted** to ensure data center electrical demand (typically 20-100 megawatts for 340-acre facilities) will not increase residential electricity rates?
e) **Are there impact fee agreements** requiring Project Anthem to pay proportional infrastructure costs, or will existing Tulsa residents absorb these costs?

9. STAFF APPROVAL RECOMMENDATION

What specific criteria and analysis did Staff use to recommend approval of MPD-6 when:

a) **Comprehensive Plan Contradiction**: The Tulsa Comprehensive Plan (cited on page 5.3) explicitly directs industrial uses to "particular areas of the city while **discouraging industrial in close proximity to neighborhood areas**," yet MPD-6 places 1,567.7 acres of industrial (BIC + Project Anthem) immediately adjacent to existing residential areas?
b) **No Noise Standards**: MPD-6 establishes NO noise standards, setback requirements beyond 30 feet, or height limits for BIC areas abutting residential, despite OSHA requiring hearing protection at 85 dBA and data centers operating at 52-85 dBA continuously?
c) **No Traffic Analysis**: Pages 5.1-5.4 contain NO traffic impact analysis for 193rd-209th corridor despite page 5.43 stating BIC "uses typically generate heavy traffic"?
d) **No Infrastructure Cost Analysis**: No analysis of utilities cost impact on residential ratepayers despite Project Anthem plan (page 6) stating City is "responsible for maintenance of ALL new public infrastructure"?
e) **Unlimited Heights**: BIC allows unlimited building heights (page 5.43) while all other development areas have specific maximums (90 ft Regional Center, 45 ft Neighborhoods), yet Staff report does not explain why unlimited heights adjacent to residential are appropriate?

AND, what comprehensive analysis supports Staff's conclusion that MPD-6 creates a 'quality, livable environment' (page 5.2, objective #5) for **existing** residential neighborhood residents who will be impacted by un-restricted industrial development 30 feet from their homes? Staff's recommendation appears to prioritize future development over protection of existing residents. I respectfully request that TMAPC require Staff to provide written responses to these specific deficiencies before voting on approval.

Section 3 – Requested Actions

I respectfully request that the Tulsa Metropolitan Area Planning Commission:

1. DEFER APPROVAL of MPD-6 until the following analyses are completed and presented to affected residents with full transparency:

- Noise impact analysis with specific decibel limits for BIC adjacent to residential areas
- Traffic impact study for both the **31st Street corridor between Lynn Lane Road** and **the Creek Turnpike and East 11th Street corridor between 193rd East Avenue and Creek Turnpike**
- Analysis of cumulative traffic impacts on both corridors from BIC industrial operations
- Utilities infrastructure cost analysis and ratepayer impact projection, including electrical grid capacity assessment for data center demand
- Comprehensive Plan conformance analysis explaining why industrial development was placed in close proximity to residential neighborhoods when the adopted Comprehensive Plan explicitly discourages this practice

2. REQUIRE REVISED BIC STANDARDS for areas within 500 feet of residential:

- Maximum building height: 60 feet (not unlimited)
- Maximum noise at property line: 50 dBA day, 45 dBA night
- Minimum setback: 200 feet (not 30 feet)
- Mandatory 24/7 noise monitoring real-time public reporting dashboard
- Diesel generator testing: business hours only (8 am-4 pm), weekdays, with 48-hour advance notice

3. ESTABLISH SEPARATE PUBLIC HEARING for Project Anthem impacts with notice to:

- Whiskey Ridge residents (193rd-209th on 31st Street)
- Renaissance Park residents
- East 11th Street residents between Creek Turnpike and 193rd
- All residents within 1,000 feet of Project Anthem location

4. REVISE MPD-6 TO INCLUDE DATA CENTER PROVISIONS in all calculations, traffic projections, noise analyses, and utilities cost assessments, ensuring Project Anthem and future data centers comply with all BIC standards and residential protections outlined above

5. REQUIRE WRITTEN STAFF RESPONSES to Section 2 questions, distributed to affected residents **at least 7 days prior to any approval vote**

Section 4 – Closing

I am not opposed to economic development. However, I am opposed to placing 1,567.7 acres of unlimited-height industrial immediately adjacent to multiple existing residential neighborhoods (Whiskey Ridge, Renaissance Park, East 11th Street) in violation of the Comprehensive Plan, without noise standards, traffic analysis, or utilities cost assessment.

The current MPD-6 asks existing residents to bear negative impacts (24/7 noise, heavy truck traffic, infrastructure costs, decreased property values) while receiving none of the benefits. Project Anthem is projected to create only 50 jobs yet requires $100-200 million in public infrastructure with an 85% tax exemption, shifting costs to existing residents.

Existing residents deserve the same protections as future residents. I respectfully request TMAPC defer approval until adequate safeguards are established.

I plan to attend the November 5, 2025 hearing at 1:00 PM and encourage my neighbors in Whiskey Ridge, Renaissance Park, and along East 11th Street to also attend.

-Buchanon Dowling

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Good, Felicity

From: Deborah Enkey <inkkeys@aol.com>
Sent: Tuesday, November 4, 2025 9:29 AM
To: Tulsa Planning Office
Subject: [External Mail] Subject: Concerns regarding case number MPD-6
Attachments: fromMotherNature.pdf

Deborah Enkey
25257 E 31st ST
Catoosa, OK 74015
inkkeys@aol.com
(539) 593-1939

November 3, 2025

City of Tulsa Planning Office
175 E 2nd Street
Tulsa, OK 74103

Subject: Concerns regarding case number MPD-6

To the Tulsa Planning Office,

My name is Deborah Enkey and I live at 25257 E 31st St, Catoosa which is within the area to be rezoned. I am writing to formally express my concern about the environmental impact on area wildlife and habitats.

I understand the need for development in Tulsa and have seen the land use plan for the Master Planned Development. It's a great design and will be a nice place to live when completed. I have significant concerns that need to be addressed before the rezoning:

- **Tree canopy and green space**

I urge the planning commission to encourage the existing canopy and mandate measures to increase it through substantial new landscaping and preservation of natural green space. This is vital to the greater Tulsa area for temperature control and air quality.

- **Storm water management**

Increased impervious areas (roofs, roads, parking lots) from a densely populated area will increase storm water runoff in a flood prone area. This will potentially contaminate nearby streams and my well water which is my only source of water.

- **Wildlife and habitat**

This area serves as a habitat for many types of wildlife. The extensive nature of this project would destroy the ecosystem. I request a thorough review of the impact on local

wildlife and the implementation of measures to protect sensitive natural areas in and around the proposed zone.

Generations of our family have lived here on part of my grandfather's land allotment from the Dawes Act of 1887. My grandmother and her infant son are buried here.

I request that these concerns be considered as part of the official record for this case.

Thank you for your time and for the opportunity to comment on this important matter.

Sincerely,

Deborah Enkey

1 attachment

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To whom it may concern:

On behalf of the living world, we, the flora and fauna, plead for your attention to our plight, for the ecosystems that sustain us are in peril. We are the green of the forests, the colors of the wild flowers, the songs of the birds, and the silent pulse of the earth, providing oxygen, food, and life itself, and it is our collective voice, from the roots of a tree to the wings of a bird, that calls out for a renewed sense of responsibility from you, humanity. We are threatened by the rapid pace of development, pollution, and climate change, and the balance of our shared home is being irrevocably disrupted.

We saw the environment in our area change and watched the road runner, jack rabbit and others leave while the immigrant armadillo arrived, all seeking a suitable place to exist. We will not have a place in a master planned development and are running out of places to live until soon we will have no place left to go.

We are the silent witnesses to the melting ice caps, the parched lands, and the choked rivers. The great forests are shrinking, and the creatures that call them home are disappearing at an alarming rate. We are losing our habitats and the intricate web of life that has supported us for millennia. We cannot speak for ourselves in your world of meetings and policies, but our fading presence serves as a final, desperate plea for you to act with the urgency our situation demands.

We ask that you consider the impact of your actions on our world before it is too late. We implore you to protect our remaining wild spaces, to clean the air and water, and to find sustainable ways to live in harmony with nature. Our existence is not separate from yours, but is intrinsically linked to it. The health of our ecosystems is a direct reflection of the health of your own future. Please, hear our silent cry for help and act as the stewards we need you to be.

With deepest gratitude,

Flora and Fauna

Foster, Nathan

From: Suzanne <suz71@yahoo.com>
Sent: Tuesday, November 4, 2025 9:49 PM
To: Tulsa Planning Office
Cc: Suzanne Langham
Subject: [External Mail] Opposition to Zoning Change Case MPD-6 – Concerns Regarding Flooding, Infrastructure, and Environmental Impact

Subject: Opposition to Zoning Change Case MPD-6 – Concerns Regarding Flooding, Infrastructure, and Environmental Impact

Dear Tulsa Planning Office,

I am writing to express my strong opposition to the proposed zoning change (Case MPD-6) from agricultural (AG) to Master Planned Development (MPD-6) for the properties bounded by US Highway 412, East 41st Street South, South 193rd East Avenue, and South 273rd East Avenue.

My concerns fall into the following main categories:

1. Flooding Issues:
Our area already experiences frequent and severe flooding events that adversely impact residents and property. Any large-scale development will increase the amount of impervious surfaces, further reducing the soil's ability to absorb rainfall. This will likely exacerbate existing flooding, threatening homes, public safety, and the overall resilience of our community.

2. Road Infrastructure and Jurisdictions:
The primary access road in this area is a two-lane, unmarked country road that is already inadequate for current traffic volumes. Adding a master planned development would bring a significant increase in traffic without the necessary infrastructure, raising the risk of accidents, congestion, and emergency response delays. Additionally, questions remain as to which authority (city, county, or developer) would be responsible for maintaining and upgrading these roads to handle the additional load.

3. Environmental Impact:
Converting agricultural land to dense development will destroy natural habitats for local wildlife, remove the natural green space that helps with air and water quality, and degrade the rural character of our property. Such a rapid land use change could have lasting negative impacts on the local environment and diminish the quality of life for area residents.

I respectfully urge the Planning Commission and City Council to prioritize the concerns of existing residents and thoroughly investigate the potential impacts outlined above before making a decision. Please delay or deny this rezoning request until comprehensive studies and mitigation plans have been presented and public concerns have been properly addressed. I would also like to respectfully ask that an additional hearing be scheduled outside of normal business hours for more residents to be able to attend.

Thank you for your attention and consideration.

Sincerely,
Suzanne and Ted Langham
24906 E 41st St So
918-645-7962
suz71@yahoo.com

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3.92

Good, Felicity

From: Kenneth Baucum <kenneth@kennethbaucum.com>
Sent: Wednesday, November 5, 2025 9:56 AM
To: Tulsa Planning Office
Subject: [External Mail] MPD-6

Hello, my name is Kenneth Baucum, and I live near the area being considered for the MPD-6 rezoning. First, I want to thank the Commission for the time, thought, and expertise that has clearly gone into this plan, and for giving residents like me the chance to voice our concerns.

I understand that growth is coming and that this Master Planned Development aims to create a balanced mix of housing, business, and community spaces. I'm not here to oppose growth - I'm here to advocate for thoughtful development that preserves what is unique and valued about this area.

One of my key concerns is the transition of the currently agricultural land along 31st street west of the turnpike - home to wild horses and the rural buffer that makes this corridor feel "outside of town" - into areas designated for commercial and industrial use. That specific land serves as a natural gateway into our community. Losing it to higher-intensity development *as the first impression when entering the area* would significantly change the character we've all come to love.

I respectfully ask that additional consideration be given to maintaining more of a natural or low-intensity transition zone along that portion of the property, whether through expanded open space, conservation-minded land use, or limiting heavy commercial/industrial uses closest to existing residential and agricultural neighbors.

This request isn't about stopping development - it's about ensuring the plan aligns with the MPD's own stated vision of preserving natural features and enhancing quality of life. A thoughtful transition would benefit both current residents and future development, maintaining the rural charm and beauty that make this community special, while still allowing progress to move forward.

Thank you for your time, your service, and for considering how this development can grow *with* the community, not just around it.

Kenneth Baucum
Broken Arrow, OK 74014

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Good, Felicity

From: Michael Denson <mgdenson1@gmail.com>
Sent: Wednesday, November 5, 2025 10:59 AM
To: Tulsa Planning Office
Subject: [External Mail] MPD-6

I am protesting against project anthem, I do not want rezoning and I do not want a Data center in my neighborhood Michael Denson Sent from my iPhone
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Good, Felicity

From: Jacob Osborn <jacaosborn@gmail.com>
Sent: Wednesday, November 12, 2025 11:55 AM
To: Tulsa Planning Office
Subject: [External Mail] MPD-6 Project Anthem

Hello, I am emailing to inform you of my stark opposition to the proposed data center known as Project Anthem. We will not see significant economic benefit from this development but we will see an ecological disaster. Heavy water use, destruction of natural ecosystems, and excessive heat generation to name a few things. WE CANNOT APPROVE this development.

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Good, Felicity

From: Danny McKee <dannylmckee@gmail.com>
Sent: Tuesday, December 30, 2025 2:51 PM
To: Tulsa Planning Office
Subject: [External Mail] MPD-6 Data Center

Greetings,

I hope that you have had a wonderful Christmas holiday with family and friends. We all are truly blessed to live in this beautiful city, state, and country! I did attend the scheduled meeting back in November, but I will not be able to make the meeting that is scheduled for January 7, 2026 with TMAPC. As a residential owner of a home (Whiskey Ridge), located near 31st street & county line, I am very concerned with what will replace the horse farm that is just north of 31st street. I am also a retired public educator with 35+ years of experience with 17 of those years in administration and I always prayed for wisdom, common sense, and what would be best for the child, his/her safety, and the long-term vision for that child. I am advocating against the inclusion of a data center within the MPD-6 zoning plans.

- Power & Grid How much electricity will this facility use — in megawatts? Is our current grid built to handle that load without causing outages? Who is paying for new substations or transmission upgrades? What happens during heat waves or grid emergencies?
- Water Will this data center use water for cooling? How much water per year? Will it rely on closed-loop systems or evaporative cooling? How does this impact a region already facing water stress?
- Infrastructure Were our systems designed for AI-scale, 24/7 demand? What breaks first if demand spikes faster than upgrades? How long do upgrades take compared to how fast this facility comes online?
- Jobs vs Reality How many permanent local jobs will exist after construction? How many will be temporary? What is the long-term economic benefit to residents?

Are water and energy use publicly reported?
Can residents see those numbers?
What about noise levels? One of my main concerns is the fact that Project Anthem is already in the works and if this data center is approved, there will be two centers within 2-3 mile radius.

And finally NDA, although they might be necessary in some cases here might be some reason to consider to go against the norm:

- violates a very fundamental norm of democracy, which is that a local board is answerable first to the voters and to their constituents, not to some secret corporation or a shell company that they're cutting deals with in the back room.
- destroy the trust in local government and people feel let down and betrayed.
- Limited transparency

Thanks again for your time in this matter.

Best regards,

Danny McKee
918-605-0984
2813 E. Quaker St.
Broken Arrow, OK 74014

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